

अनुबंध | Contract



अनुबंध क्रमांक | Contract No: GEMC-511687701086091
अनुबंध तिथि | Contract Generated Date : 19-Dec-2025
बोली/आरए/पीबीपी संख्या | Bid/RA/PBP No.: [GEM/2025/B/6680107](#)

संगठन विवरण Organisation Details प्ररूप Type : State Government मंत्रालय Ministry : - विभाग Department : Health & Family Welfare Department Gujarat संगठन का नाम Organisation Name : N/A कार्यालय क्षेत्र Office Zone: Civil Hospital - Rajpipla		खरीदार विवरण Buyer Details पद Designation : CDMO CUM CIVIL SURGEON संपर्क नंबर Contact No. : - ईमेल आईडी Email ID : cdm-health-nrd@gujarat.gov.in जीएसटीआईएन GSTIN : - पता Address : GMERS MEDICAL COLLEGE & GENERAL HOSPITAL RAJPIPLA, NARMADA, GUJARAT-393145, India	
वित्तीय स्वीकृति विवरण Financial Approval Detail आईएफडी सहमति IFD Concurrence : No प्रशासनिक अनुमोदन का पदनाम Designation of Administrative Approval: cdm वित्तीय अनुमोदन का पदनाम Designation of Financial Approval: officer		भुगतान प्राधिकरण विवरण Paying Authority Details भुगतान का तरीका Role: PAO भुगतान का तरीका Payment Mode: Offline पद Designation : AO ईमेल आईडी Email ID : cdm.health.rajpipla@gmail.com जीएसटीआईएन GSTIN : N पता Address: GENERAL HOSPITAL RAJPIPLA DIST NARMADA (GUJARAT), NARMADA, GUJARAT-393145, India	
परेषिती विवरण Consignee Details			
क्र.सं. S.No	परेषिती नाम & पता Consignee Name & Address	सेवा विवरण Service Description	मात्रा Quantity
1	संपर्क Contact : - ईमेल आईडी Email ID : cdm-health-nrd@gujarat.gov.in जीएसटीआईएन GSTIN : - पता Address : GMERS MEDICAL COLLEGE & GENERAL HOSPITAL RAJPIPLA, NARMADA, GUJARAT-393145, India	Facility Management Services - LumpSum Based - Healthcare; Patient Support Services; Consumables to be provided by service provider (inclusive in contract cost)	1
सेवा प्रदाता विवरण Service Provider Details जेम विक्रेता आईडी GeM Seller ID : 0D0E200001130179 कंपनी का नाम Company Name : SHIV TRADING संपर्क नंबर Contact No. : 08866545280 ईमेल आईडी Email ID : shivtradingsrt@gmail.com पता Address : FIRST,1,VAIBHAV COMPLEX,NEAR VAIBHAV CINEMA, Surat, GUJARAT-394650, - एमएसएमई पंजीकरण संख्या MSME Registration number : - जीएसटीआईएन GSTIN: 24AISP8250F1ZR (R) खरीदार द्वारा सत्यापित एमएसएमई स्थिति MSME Status as verified by buyer : Not Verified			
*जिसके नाम के पक्ष में GST/TAX इनवॉइस पेश किया जाएगा GST / Tax invoice to be raised in the name of - Buyer			
सेवा विवरण Service Details			
सेवा प्रारंभ दिनांक (नवीनतम) Service Start Date (latest by): 22-Dec-2025		सेवा समाप्ति तिथि Service End Date : 22-Jan-2026	
श्रेणी नाम Category Name : Facility Management Services - LumpSum Based			
बिलिंग चक्र Billing Cycle: weekly			
विवरण Description		To be set as 1	Total Bid Value(Lumpsum quote)
Type of Premises	Healthcare	1	2489200
Type of services required	Patient Support Services		
Cost for Consumables/ Materials	Consumables to be provided by service provider (inclusive in contract cost)		
Service component	all operation theater setup		
कुल राशि (सूत्र) Total Amount (Formula) : (Total Bid Value(Lumpsum quote)*1)			
ऐडऑन के बिना कुल मूल्य Total Value without Addons(INR)			2489200
कुल ऐडऑन मूल्य Total Addon Value(INR)			0
ऐडऑन सहित कुल मूल्य Total Value Including Addons(INR)			2489200
अनुबंध की राशि Amount of Contract			
सभी शुल्क और करों सहित कुल अनुबंध मूल्य Total Contract Value Including All Duties and Taxes(INR)			2489200
एसएलए विवरण SLA Details			
Service Level Agreement for Facility Management Services Lump Sum Basis All Facility Management Services related Contracts/ Agreement placed through GeM shall be governed by following set of Terms and Conditions: 1. General terms and conditions for Services ("GTC");			

2. Service Specific Terms and Conditions ("STC") of the Services contracts shall include the Service Level Agreement ("SLA") for the service;
3. BID / Reverse Auction specific Additional Terms and Conditions ("ATC") as specified by the Buyer.

The above terms and conditions are in reverse order of precedence i.e. ATC supersedes Service specific STC which supersede GTC, whenever there are any conflicting provisions. The above set of terms and conditions along with scope of work and SLA as enumerated in the document shall be construed to be part of the Contract between the Buyer and the Service Provider. The service will be provided in bid only mode.

1 Objectives and Goals

The objective of this Agreement is to ensure that all the commitments and obligations are in place to ensure consistent delivery of services to the Buyer by the Service Provider. The goals of this Agreement are to:

- i. Provide clear reference to service ownership, accountability, roles and responsibilities of both parties
- ii. Present a clear, concise and measurable description of services offered to the Buyer
- iii. Establish terms and conditions for all the involved stakeholders, it also includes the actions to be taken in case of failure to comply with conditions specified
- iv. To ensure that both the parties understand the consequences in case of termination of services due to any of the stated reasons

The Agreement will act as a reference document that both the parties have understood the above-mentioned terms and conditions and have agreed to comply by the same. The Agreement can also be revised/ modified on mutual consent of the stakeholders.

2 Parties to the Agreement

The main stakeholders associated with this Agreement are below-

- i. **Buyer:** The Buyer is responsible to provide clear instructions, approvals and timely payments for the services availed
- ii. **Service Provider:** The Service Provider is responsible to provide all the required services in timely manner. The Service Provider may also include seller, any authorized agents, assignees, successors and nominees as described in the Agreement

The responsibilities and obligations of the stakeholders have been outlined in this document. The document also encompasses service level/ deductions in case of non-adherence to the defined terms and conditions. It is assumed that all stakeholders have read and understood the same before signing the document.

3 Scope of Services

This service deals with hiring of facility management services which encompasses all activities related to keeping a complex operating with all its infrastructural and maintenance related requirements. This service includes multiple disciplines to ensure functionality, comfort, safety and efficiency of the built environment by integrating people, place, process and technology. It typically includes a wide range of function and support services such as housekeeping, security, property or building management, basic engineering services, mail and messenger services, records management, safety and other support duties.

Type of Model: This service offering is on Lump sum basis, for the contract duration, the Buyer can take the item-wise pricing of various components involved in this service, through Financial Upload document.

Types of Services: This service offering provides multiple services under a single contract for professional maintenance and upkeep of the property (commercial, residential, hospitality, healthcare, industrial, etc.). Buyer of this service will have the option to choose the type of service and service components as per their requirement, for which the following categories have been defined:

#	Services	Service Component
1	Housekeeping	· Cleaning & Sanitation
		· Front Desk Management
		· Mail Management/ Runner
		· Waste Management (other than healthcare facility)
		· Waste Management (Healthcare)
		· Laundry Services
		· Work Routine Services (Healthcare)
2	Security Services	· Work Routine Services (other than healthcare facility)
		· Regular work of Guest House/ Hostel (Hospitality) (such as porter services, lift man, etc.)
		· Physical Security
		· Parking Management
3	Horticulture Services	· CCTV Control & Operations
		· Visitor Management & Access Control
4	Patient Support Services	· Gardening
		· Landscape
		· Assisting the patient in getting into or out of the bed
		· Attend to the personal hygiene of patients
		· Preparing and carrying the patients for operations, laboratory, X-ray and other investigations
		· Carrying and transporting patients to various wards/ departments in the hospital
		· Assist in maintaining stocks of linen and non-medical supplies
		· Assist the nurses or doctors in diagnostic and treatment procedures
		· Assist in sterilization of instruments, appliances and dressings and dressing of postoperative wounds
		· Bedbug control

#	Services	Service Component
		- Disinfestation - General Pest Control - Rodent control
5	Pest Control Service	- Termite Control (Spot treatment/ drilling treatment) - Vector control (mosquitos/ insects) - Cockroach control - Fumigation - Pest proofing (Pest proofing is closure of holes and cracks that may potentially cause pest infestation) - Infection control (Surface sterilization) - Plumbing - Water Supply
6	O&M Mechanical	- Pumps - Fire Fighting System - Lift - Electrical Supply of HT/LT - DG Sets
7	O&M of Electrical Work	- UPS - AC Chillers - HVAC - Transformers

Manpower Required: Service Provider shall provide manpower based on the Buyer's selection of manpower profile, quantity and skill level. The Buyer of this service will have the option to choose the type of manpower as per their requirement, for which the following categories have been defined:

#	Type of Manpower Required
1	Cleaner / Sweeper
2	Office Attendant
3	Receptionist
4	Mail Attendant/ Runner
5	Guest house attendant
6	Porter
7	Laundry wash boys
8	Security Guard
9	Gardener
10	Ward Boys/Girls
11	Plumber
12	Electrician
13	Fire Supervisor
14	AC Plant Operator
15	Help Desk Support Executive
16	Others - Please Specify

Consumables: The Service Provider shall provide consumables such as cleaning agents, equipment, etc. based on the Buyer's selection of cost to be borne by the Buyer/ Service Provider/ reimbursable by the Buyer. In case wherein consumables are to be provided by the Service Provider and the cost is to be included in the Contract cost, a list of suggestive consumables will be provided by the Buyer.

3.1 Service Details and Standards

- i. The Service Provider shall abide at all times by the all existing labor enactments and rules made there under, regulations, notifications and bye laws of the State or Central Government or local authority and any other labor law (including rules), regulations, bye laws that may be passed or notification that may be issued under any labor law in future either by the State or the Central Government or the local authority
- ii. The Service Provider shall make his own arrangements for the engagement of all staff and labor, local or other, and for their payment, housing, feeding and transport.
- iii. The Service Provider is responsible for co-ordination and management of delivery of services from AMC vendors/suppliers/contractors, therefore for ensuring safety compliance by them, FMC is required to monitor the delivery of service and report client in case of non-compliance of safety requirements immediately
- iv. The manpower deployed should maintain polite & courteous behavior towards the Buyer. "Misbehavior" which may include, but not limited to, consumption of alcohol during or prior to duty, denial of duty during service hours as defined by user, use of abusive language, theft, shall attract deductions as per provisions of the Contract.

3.2 Service Assumptions

- i. The Service Provider shall not sublet any part of the Contract. The Service Provider may act as an aggregator of manpower to be provided. However, it is the Service Provider who shall be responsible and liable to deliver the services as per the Contract.
- ii. The manpower provided by the Service Provider shall not be deemed employees of the Buyer hence the compliance of the applicable labor laws and acts and other relevant laws will be the sole responsibility of the Service Provider.
- iii. The Service Provider shall not deploy any manpower that is ailing from any contagious disease.
- iv. The Service Provider shall verify the character & antecedent of manpower to be deployed.
- v. The persons deployed during the course of their work shall perform integrity to the Buyer and shall not disclose/ share any qualified documents and information which they are not supposed to divulge to the Service Provider/ third parties.
- vi. The Service Provider shall indemnify the Buyer against all the losses, injuries and any kind of damage arrived due to its activities
- vii. The Buyer will in no way be responsible for violation of labor laws and /or infringement of any other law for the time being in force, either by the manpower provided or by the Service Provider.
- viii. The attendance of the employees will be entered in the register provided by the Service Provider and/or in the Aadhaar based Biometric attendance system at the Buyer's premises. The persons deployed should be polite, cordial and efficient while handling the assigned work and their actions should promote good will and enhance the image of the Corporation or office concerned. The Service Provider shall be responsible for any act of indiscipline on the part of the persons deployed.
- ix. The Service Provider shall ensure that all the relevant licenses / registrations / permissions which may be required for providing the services are valid during the entire period of the contract; failing so shall attract the appropriate deductions. The documents relevant in this regard shall be provided by the Service Provider to the Buyer on demand.
- x. The Service Provider shall be required to keep the Buyer updated about the change of address, change of the Management etc. from time to time.

4 Service Provider's Obligation

- i. The Service Provider shall ensure the level of service required is of the highest professional standard and shall ensure full compliance to the terms and conditions of the Contract.
- ii. The Service Provider shall attend to emergency works in time. No extra payment will be made for working on odd hours for emergency works.
- iii. The Service Provider will be required to submit list of the manpower being deployed with photo ID, address proof, police verification certificate and educational qualifications before deputing the workers. The Service Provider shall be solely responsible for the credentials/ acts of his staff /workers
- iv. The Service Provider shall provide at his own cost proper uniform and badges and photo identity cards to the manpower deployed.
- v. In an event that, for any reason, the manpower provided change their contact number during the tenure of the contract then service provider will immediately notify the buyer of the above change.
- vi. The Service Provider shall be responsible for ensuring compliance with the provisions related to Labour Law [Central/State] and specially Workmen Compensation Act, EPF Laws, ESIC Laws, Income tax laws and Minimum Wages Laws, Contract Labour (Regulations Abolition Act) and any other relevant acts as applicable at present or in future during the tenure of the Contract and as may be enforced from time to time. Onus of compliance of all the applicable Laws/Acts/Rules/Bye-Laws/Regulations/Standards/Guidelines/Notification/Recommended Practices, etc. shall rest with the Service Provider only and the Buyer will not be liable in any manner.
- vii. The Service Provider shall produce to the Buyer the details of payments of statutory benefits like bonus, leave, relief etc. from time to time to its personnel.
- viii. The Service Provider shall cover all its personnel under the relevant laws of EPF, Labor, ESIC etc. Proof of the same should be submitted by the Service Provider.
- ix. The Service Provider shall submit a copy of wages sheet showing monthly wages paid to its personnel.
- x. The Service Provider shall cover its personnel for personal accident and death whilst performing the duty and the Buyer shall own no liability and obligation in this regard.
- xi. The Service Provider shall also provide at its own cost all benefits statutory or otherwise to its deployed personnel and the Buyer shall not have any liability whatsoever on this account.
- xii. The Service Provider shall employ only manpower who has completed eighteen years of age and not above 65 years of age
- xiii. The Service Provider shall provide the documentary proof for the qualifications and experience of the manpower deployed by them. The bio-data, qualification and experience of the said manpower should be certified by the Service Provider.
- xiv. The Service Provider shall not deploy or shall discontinue deploying the person(s), if desired by the Buyer and must ensure prompt replacement of the personnel without any additional cost to the Buyer. The personnel being deployed shall ordinarily be continued and should not be changed without written intimation and consultation with the Buyer.
- xv. The Service Provider would be bound by the conditions with regard to police verification of the deployed staff and their medical fitness.
- xvi. Adequate supervision shall be provided to ensure correct performance of the services in accordance with the prevailing requirements agreed upon between the two parties.
- xvii. In an event that the Service Provider fails to deliver or fails to carry out tasks as per schedule due to absence of personnel or any other reasons, the Service Provider at his own cost shall make alternate arrangement by providing similar manpower for which agreement is entered into, without any extra charges. Failure to do so will evoke deductions and the Buyer shall have right to recover damages as per the provisions of the Contract.
- xviii. The Service Provider shall be personally responsible for any theft, misconduct and /or disobedience on the part of personnel so provided by him.
- xix. The working hours and days of the manpower will be as per the existing applicable rules of the respective Central/State Government organizations. However, they have to work on holidays, if necessary and required based on demand of work.
- xx. The Service Provider shall be fully responsible for the acts of their employees/ agents/ representatives / consultants/ team members and shall fully indemnify the Buyer for any kind of losses or damages caused by its employees/ agents/ representatives/ team members/ consultants. The Buyer shall not be responsible for any claim from any employees/ agents/ representatives /consultant / team member employed or engaged by the Service Provider. The Service Provider shall wholly and fully be responsible for any such claims.

5 Buyer's Obligations

- i. The location for reporting shall be provided by the Buyer to the Service Provider.
- ii. The Buyer must immediately report to the designated representative of the Service Provider for any problems, complaints, incidents or accidents that occur during the contract including any form of inappropriate behavior/ improper uniform by the personnel.
- iii. The Buyer shall notify the Service Provider of any dishonest, wrongful or negligent acts or omissions of its personnel or agents in connection with the services as soon as possible after the Buyer becomes aware of them.

iv. The Buyer may calculate their requirement of resources based on 8 hours per shift. For example, to hire a security personnel for a month (i.e. thirty service days) to offer the services for 24 hours on a 3-shift basis, the required number of resources would be 90 personnel for the month.

6 Service Tracking

Tracking of services ensures quality of service delivery in time bound manner, effective service tracking helps in analyzing the Service Provider's performance as well as the Buyer's timely inputs for services and leads to immediate actions against the defaulters if any. Service tracking shall be mandatory for the both Buyer and Service Provider, non-tracking of the same may lead to a deductions

6.1 Logbook

- i. The Service Provider shall maintain registers and checklists for each activity and the work done by each of the personnel shall be recorded on a Job Card, duly signed by the Buyer's representative. The Service Provider shall also submit a duly signed comprehensive report every month, detailing the services performed during the month.
- ii. The Service Provider shall thereafter update the logbook on the GeM portal as per the logbook process flow.
- iii. Once the Service Provider updates the logbook online, the Buyer shall either accept or reject these entries within the prescribed time lime. The Buyer will also record the any service non delivery or non-performance issues, and subsequent deductions. Failure to take action on logbook entries updated by service provider shall be deemed as accepted.
- iv. The Service Provider can raise an issue against the rejection of any entry by the Buyer within prescribed timelines of such rejection with the designated representative of the Buyer.

6.2 Service Performance and Feedback

- i. The principal point of contact for the issues arising out of this Agreement will be the Service Provider or a designated representative who shall be any employee of the Service Provider in administrative and managerial capacity and in a position of authority to resolve issues. Nonetheless, the Service Provider shall be solely responsible for maintaining the quality and level of services provided.
- ii. The Service Provider shall maintain a complaint register at the premises for the complaints by the Buyer.

7 Deductions

In case of noncompliance of the standards of the services to be provided as per this agreement, the Buyer would be at liberty to levy such deductions and terminate the Contract as per the conditions detailed out below:

#	Nature of Default	Default Details	Deductions			Remarks
			1st instance	2 nd instance	3 rd instance	
1	Non deployment of manpower	Non-deployment of total manpower mentioned in the contract as per the date of joining	Up to 15 days, @1 % per day of the total value and beyond 15 days cancellation of contract with cancellation charges @ 10% of the order value	Up to 15 days, @2 % per day of the total value and beyond 15 days cancellation of contract with cancellation charges @ 10% of the order value	Cancellation of contract with cancellation charges @ 10% of the order value	-
2	Failure to address deficiencies/ complaints brought to notice by the Buyer	Deficiencies/ complaints not addressed promptly	Deduction of Rs. 500/- (Rupees Five Hundred Only)	Deduction of Rs. 800/- (Rupees Eight Hundred Only)	Deduction of Rs. 1000/- (Rupees One Thousand Only)	After 3 rd instance, the Buyer may continue to impose the same deductions as imposed for 3 rd instance.
3	If employee is found disclosing any confidential information/ document to the Service Provider/ any third parties		Cancellation of the contract with cancellation charges @ 10% of the order value along with recovery of losses caused (if any) and legal action against the Service Provider depending on the gravity of the act			
4	If the employee is found responsible for any theft, loss of material/ articles and damages		Immediate payment in actuals, equivalent to the value of the article theft/ lost/ damaged. Replacement of employee within 2 days	Immediate payment in actuals, equivalent to the value of the article theft/ lost/ damaged. Replacement of employee within 2 days/ cancellation of contract as decided by the Buyer depending on the gravity of the act.	Cancellation of the contract with cancellation charges @ 10% of the order value	
5	If the employee is found responsible for disobedience/ misconduct		Warning/ counselling of employee as decided by the Buyer depending on the gravity of the act	Warning/ counselling/ Immediate replacement of employee within 2 days as decided by the Buyer and Warning to Service Provider depending on the gravity of the act	Cancellation of the contract with cancellation charges @ 10% of the order value	
6	Delay in payments of take-home remuneration by the Service Provider and deposit of EPF and ESI (both employee and		Rs. 100 per day for each default, warning to Service Provider to deposit the said amount	Rs. 200 per day for each default, hold on all type of payments to Service Provider till the said amount is deposited to respective stakeholders	Cancellation of the contract with cancellation charges @ 10% of	

	employer share)	within 7 working days	and proof of same is submitted to Buyer	the order value	
		Deductions			
#	Nature of Default	Default Details			Remarks
		1st instance	2nd instance	3rd instance	
7	If the employee is absent or takes leave for more than 2 days without informing or taking prior approval.	Substitute within 2 days failing which, @ 1 % per day of the total value (excluding service tax etc.) of the absent resources up to 15 days. Beyond 15 days, cancellation of the contract with cancellation charges @ 10% of the order value	Substitute within 2 days failing which, @ 3 % per day of the total value (excluding service tax etc.) of the absent resources up to 15 days. Beyond 15 days, cancellation of the contract with cancellation charges @ 10% of the order value	Cancellation of the contract with cancellation charges @ 10% of the order value	
8	If the employee is found responsible for adopting illegal and foul methods or exercising any corrupt practice in collusion with any third party or officials at the workplace	Immediate replacement within 2 days/ cancellation of the contract with cancellation charges @ 10%, as decided by the Buyer depending on the gravity of the act.	Cancellation of the contract with cancellation charges @ 10% of the order value	-	
- Deductions for a specific month / period shall be capped at 10% of bill generated for that month / period. - If any SLA is breached beyond 3 instances in any billing period, then same shall be treated as a breach of Contract and the Buyer will have full rights to terminate the contract after giving a notice of 30 days.					

8 Payment Terms

8.1 Payment Condition

- The payment shall be made as per the financial quotes submitted by the Service Provider and accepted by the Buyer.
- No advance payment shall be made to the Service Provider.
- The price quoted shall cover all aspects of service delivery.
- The Service Provider shall also deposit EPF and ESI of both employer and employee share within 15th day of the month of payment for the support staff engaged from their account and prefer the bill to the Buyer Department for reimbursement of employer share only.
- Employers share of EPF & ESI actually deposited to the respective authorities with proof of deposit of both employee and employer share by the end of the second week of the succeeding month. Employee share of EPF and ESI contribution shall be recovered from the gross remuneration & balance amount is to be released to the persons employed.
- The Service Providing Agency shall furnish statement of amount paid for the month to the persons deployed along with cheque number and date and Bank account from which the payment has been made. Service Providing agency is to furnish copy of bank statement in support of amount paid as and when required by the Buyer.
- The Service Provider shall be responsible for timely payment of take-home remuneration to the supporting staff and deposit of EPF and ESI (both employee and employer share), failing which a deduction will be deducted.
- The Service Provider shall submit before the Buyer, one copy of the return within 7 days from the date of filing of monthly / quarterly / half yearly / annual return if any before the EPF and ESI authorities.
- The payment to the Service Provider will be made on monthly and quarterly basis, depending upon the actual duration of the services rendered as per order.
- Any violation of contractual obligations by the Service Provider/employee shall attract deductions as mentioned against each obligation. The Service Provider confirms and agrees that penalty whenever becomes payable, the same shall be deducted by the user department from the payments due to the Service Provider.
- All applicable taxes and duties except GST, shall be payable by the Service Provider and the Buyer shall not entertain any claims whatsoever with respect to the same. The Service Provider shall pay the GST and the price quoted is inclusive.
- The Service Provider shall ensure payment regularly for the deployed manpower to their entitlements like monthly salaries/wages etc. and submit the documentary proof of the salary paid as per the terms and conditions of the contract. Bill for the subsequent month will be paid only after submission of certificate of disbursement of wages of previous month.
- In case of any changes in the minimum wages as per the Applicable Laws during the Contract period, Buyer shall pay the Service Provider the difference in wage from the amount mentioned in the contract on pro rata basis.
- The cost of the Contract shall be valid for initial contract period. No price escalation, other than minimum wages revision, shall be entertained by the Buyer during the period.

8.2 Payment Cycle

- Payment shall be made once the Service Provider submits the invoice for the same as per the prescribed process flow.
- The Buyer shall make the payment within prescribed timelines as per the payment process flow upon submission of invoice, logbook and service feedback.

8.3 Payment Process

- Payment shall be made only after submission of invoices, logbook, service feedback, non-submission of the same may lead to delay/ deduction in payment.
- All the deductions/ fine/ interest (if applicable) will be settled before making the payments. Service Provider shall not have any objection on the same.
- Payment will be made through bank transfer only, in no circumstance cash/ cheque payment will be made.

9 Amendment of Contract

During service delivery period some conditions may occur when the Buyer and/ or Service Provider may require amending the Agreement, some of such conditions may be as followed-

- Amendment of the Contract after event of Force Majeure:* In case of occurrence of any exceptional event/ circumstance which has affected either party directly to perform the agreed services, the agreement can be amended. However, cause, evidence and nature of such effect shall be notified to the other party.
- Amendment in statutory variations:* .
- Variation of the Contract as per both parties' consent:* Variation of the Contract shall be done as per mutual consent of both parties; no party shall be made liable to pay/ get any compensation for agreement amendment. The variation in the contract can be through the following, however, the variation put together shall not reduce or exceed 25% of contract value:

- a. Increase or decrease in the manpower requirement or services to be provided
- b. Increase or decrease in duration of contract

10 Termination of Contract

The Agreement shall be come to an end either on completion of the Contract Period or shall be terminated for the following reasons:

- i. *Mutual consent:* The contract may be terminated based on mutual consent in case the services are no longer required. Termination based on mutual consent will not attract any deductions or shall not be liable for any extra payments other than payment of invoices raised till the time of termination including notice period.
- ii. *Breach of contractual obligations:* Any incidents considered as the breach of contract will result in immediate termination of services. The Buyer shall have the right to terminate the Contract effective immediately by giving written notice to the Service Provider if, the Service Provider breaches a material provision of this Contract where that breach is not capable of remedy; or if the Service Provider breaches any provision of this Contract and fails to remedy the breach within 14 days after receiving notice requiring it to do so.
- iii. *Breach of SLAs:* The contract may also be terminated if i) the cumulative deductions rise to 10% of the contract value ii) repeated breach of any SLA beyond 3 instances as per the Buyer's discretion.
- However, termination of this Contract shall not affect any accrued rights or remedies of either party.

अतिरिक्त आवश्यक डेटा/दस्तावेज़: खरीदार | Additional Required Data/Document(s) : Buyer

1. Geographic Presence in states : Gujarat
2. Details of the premise : [click here](#)
3. Scope of work : [click here](#)

अतिरिक्त डेटा/दस्तावेज़ : विक्रेता | Additional Data/Document(s) : Seller

1. Certificate (Requested in ATC) : [click here](#)
2. Additional Doc 1 (Requested in ATC) : [click here](#)
3. Additional Doc 2 (Requested in ATC) : [click here](#)

ईपीबीजी विवरण | ePBG Detail

सलाहकार बैंक Advisory Bank :	State Bank of India
ईपीबीजी प्रतिशत (%) ePBG Percentage(%):	5.00
बोली लगाने वाले को बोली के नियमों और शर्तों के अनुसार लागू ईपीबीजी प्रस्तुत करना होगा The bidder shall furnish ePBG as applicable as per bid's terms and conditions	

नियम और शर्तें | Terms and Conditions

1. General Terms and Conditions-

- 1.1 This contract is governed by the [General Terms and Conditions](#), conditions stipulated to this Product/Service as provided in the Marketplace.
- 1.2 This Contract between the Seller and the Buyer, is for the supply of the Goods and/ or Services, detailed in the schedule above, in accordance with the General Terms and Conditions (GTC) unless otherwise superseded by Goods / Services specific Special Terms and Conditions (STC) and/ or BID/Reverse Auction Additional Terms and Conditions (ATC), as applicable
- 1.3 All GeM Sellers / Service Providers are mandated to ensure compliance with all the applicable laws / acts / rules including but not limited to all Labour Laws such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972 etc. Any non-compliance will be treated as breach of contract and Buyer may take suitable actions as per GeM Contract.

2. Buyer Added Bid Specific Terms and Conditions-

2.1 Generic

OPTION CLAUSE: The buyer can increase or decrease the contract quantity or contract duration up to 25 percent at the time of issue of the contract. However, once the contract is issued, contract quantity or contract duration can only be increased up to 25 percent. Bidders are bound to accept the revised quantity or duration

2.2 Generic

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

2.3 Forms of EMD and PBG:

Bidders can also submit the EMD with Account Payee Demand Draft in favour of

JILLA ROGI KLYAN SAMITI

payable at

RAJPIPLA

. Bidder has to upload scanned copy / proof of the DD along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date / Bid Opening date.

2.4 Forms of EMD and PBG:

Bidders can also submit the EMD with Fixed Deposit Receipt made out or pledged in the name of A/C

JILLA ROGI KLYAN SAMITI, RAJPIPLA

. The bank should certify on it that the deposit can be withdrawn only on the demand or with the sanction of the pledgee. For release of EMD, the FDR will be released in the favour of the bidder by the Buyer after making endorsement on the back of the FDR duly signed and stamped along with covering letter. Bidder has to upload scanned copy/ proof of the FDR along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date/ Bid Opening date

2.5 Certificates:

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

2.6 Buyer Added Bid Specific ATC:

Buyer uploaded ATC document [Click here to view the file.](#)

2.7 Service & Support:

AVAILABILITY OF OFFICE OF SERVICE PROVIDER: An office of the Service Provider must be located in the state of Consignee. DOCUMENTARY EVIDENCE TO BE SUBMITTED.

2.8 Service & Support:

Dedicated /toll Free Telephone No. for Service Support : BIDDER/OEM must have Dedicated/toll Free Telephone No. for Service Support.

2.9 Service & Support:

Escalation Matrix For Service Support : Bidder/OEM must provide Escalation Matrix of Telephone Numbers for Service Support.

2.10 Purchase Preference (State):

Bid reserved for MSE from the State of Bid Inviting Authority: Procurement under this bid is reserved for purchase from Micro and Small Enterprises from the State of Bid Inviting Authority having valid Udyam Registration and whose credentials are validated online through Udyam Registration portal. If the bidder wants to avail themselves of the reservation benefit, the bidder must be the manufacturer / OEM of the offered product on GeM. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible to participate in this bid. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility based on documentary evidence submitted, while evaluating the bid. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2.11 Purchase Preference (State):

Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs from the State of Bid Inviting Authority having valid Udyam Registration and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry / State of Bid inviting authority. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service and Buyer will decide eligibility for purchase preference based on documentary evidence submitted, while evaluating the bid. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15 % of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 15 percentage of total quantity. The buyers are advised to refer the OM No. F.1/4/2021-PPD dated 18.05.2023 OM_No.1_4_2021_PPD_dated_18.05.2023 for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2.12 Past Project Experience:

Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.

Note:

1. Service Providers are required to raise invoices online as per the contract terms on GeM portal. Timely invoice submission is mandatory for compliances, smooth payment processing, and will also contribute to improving their ratings.
2. The Excess settlement has been enabled for this contract. The service provider can claim additional charges, if applicable, in the invoice. Any additional charges must be supported with documentary evidence.

नोट: यह सिस्टम जनरेटेड फाइल है। कोई हस्ताक्षर की आवश्यकता नहीं है।

Note: This is system generated file. No signature is required.

अनुबंध | Contract



अनुबंध क्रमांक | Contract No: GEMC-511687702201643
 अनुबंध तिथि | Contract Generated Date : 27-Mar-2026
 बोली/आरए/पीबीपी संख्या | Bid/RA/PBP No.: [GEM/2026/B/7213282](#)
 खरीद का माध्यम | Procurement Mode: BID/RA

संगठन विवरण Organisation Details	खरीदार विवरण Buyer Details
प्ररूप Type : State Government मंत्रालय Ministry : - विभाग Department : Health & Family Welfare Department Gujarat संगठन का नाम Organisation Name : N/A कार्यालय क्षेत्र Office Zone: Community Health Center Shamgahan	पद Designation : Dental Surgeon संपर्क नंबर Contact No. : 999-9999990- ईमेल आईडी Email ID : chcshamgahan13@gmail.com जीएसटीआईएन GSTIN : - पता Address : "Community Health Center Shamgahan, Near Shivaji Temple, Shamgahan, Ta.Ahwa Dist.Dang- 394730", THE DANGS, GUJARAT-394730, India

वित्तीय स्वीकृति विवरण Financial Approval Detail	भुगतान प्राधिकरण विवरण Paying Authority Details
आईएफडी सहमति IFD Concurrence : No प्रशासनिक अनुमोदन का पदनाम Designation of Administrative Approval: SUPERINTENDENT CHC SHAMGAHAN वित्तीय अनुमोदन का पदनाम Designation of Financial Approval: SUPERINTENDENT CHC SHAMGAHAN	Role: BUYER भुगतान का तरीका Payment Mode: Offline पद Designation : Dental Surgeon ईमेल आईडी Email ID : chcshamgahan13@gmail.com जीएसटीआईएन GSTIN : - पता Address: "Community Health Center Shamgahan, Near Shivaji Temple, Shamgahan, Ta.Ahwa Dist.Dang- 394730", THE DANGS, GUJARAT-394730, India

प्रेषिती विवरण Consignee Details			
क्र.सं. S.No	प्रेषिती नाम & पता Consignee Name & Address	सेवा विवरण Service Description	मात्रा Quantity
1	संपर्क Contact : 999-9999990- ईमेल आईडी Email ID : chcshamgahan13@gmail.com जीएसटीआईएन GSTIN : - पता Address : "Community Health Center Shamgahan, Near Shivaji Temple, Shamgahan, Ta.Ahwa Dist.Dang- 394730", THE DANGS, GUJARAT-394730, India	Facility Management Services - LumpSum Based - Medical Equipment; Patient Support Services; Consumables to be provided by service provider (inclusive in contract cost)	Project/Lumpsum Based

सेवा प्रदाता विवरण Service Provider Details	
जेम विक्रेता आईडी GeM Seller ID : 0D0E200001130179 कंपनी का नाम Company Name : SHIV TRADING संपर्क नंबर Contact No. : 08866545280 ईमेल आईडी Email ID : shivtradingsrt@gmail.com पता Address : FIRST,1,VAIBHAV COMPLEX,NEAR VAIBHAV CINEMA, Surat, GUJARAT-394650, - एमएसएमई पंजीकरण संख्या MSME Registration number : - जीएसटीआईएन GSTIN: 24AISPV8250F1ZR (R)	खरीदार द्वारा सत्यापित एमएसएमई स्थिति MSME Status as verified by buyer : Not Verified

*जिसके नाम के पक्ष में GST/TAX इनवॉइस पेश किया जाएगा | GST / Tax invoice to be raised in the name of - Buyer

सेवा विवरण Service Details	
सेवा प्रारंभ दिनांक (नवीनतम) Service Start Date (latest by): 31-Mar-2026	सेवा समाप्ति तिथि Service End Date : 30-Apr-2026
श्रेणी नाम Category Name : Facility Management Services - LumpSum Based	

बिलिंग चक्र Billing Cycle: weekly			
विवरण Description		Quantity	Total Bid Value(Lumpsum quote)
Type of Premises	Medical Equipment	Project/Lumpsum Based	803390
Type of services required	Patient Support Services		
Cost for Consumables/ Materials	Consumables to be provided by service provider (inclusive in contract cost)		
Service component	Medical Equipment		
कुल राशि (सूत्र) Total Amount (Formula) : (Total Bid Value(Lumpsum quote)*1)			
ऐडऑन के बिना कुल मूल्य Total Value without Addons(INR)			803390
कुल ऐडऑन मूल्य Total Addon Value(INR)			0
ऐडऑन सहित कुल मूल्य Total Value Including Addons(INR)			803390
अनुबंध की राशि Amount of Contract			
सभी शुल्क और करों सहित कुल अनुबंध मूल्य Total Contract Value Including All Duties and Taxes(INR)			803390

एसएलए विवरण SLA Details
Service Level Agreement for Facility Management Services

Lump Sum Basis

All Facility Management Services related Contracts/ Agreement placed through GeM shall be governed by following set of Terms and Conditions:

1. General terms and conditions for Services ("GTC");
2. Service Specific Terms and Conditions ("STC") of the Services contracts shall include the Service Level Agreement ("SLA") for the service;
3. BID / Reverse Auction specific Additional Terms and Conditions ("ATC") as specified by the Buyer.

The above terms and conditions are in reverse order of precedence i.e. ATC supersedes Service specific STC which supersede GTC, whenever there are any conflicting provisions. The above set of terms and conditions along with scope of work and SLA as enumerated in the document shall be construed to be part of the Contract between the Buyer and the Service Provider. The service will be provided in bid only mode.

1 Objectives and Goals

The objective of this Agreement is to ensure that all the commitments and obligations are in place to ensure consistent delivery of services to the Buyer by the Service Provider. The goals of this Agreement are to:

- i. Provide clear reference to service ownership, accountability, roles and responsibilities of both parties
- ii. Present a clear, concise and measurable description of services offered to the Buyer
- iii. Establish terms and conditions for all the involved stakeholders, it also includes the actions to be taken in case of failure to comply with conditions specified
- iv. To ensure that both the parties understand the consequences in case of termination of services due to any of the stated reasons

The Agreement will act as a reference document that both the parties have understood the above-mentioned terms and conditions and have agreed to comply by the same. The Agreement can also be revised/ modified on mutual consent of the stakeholders.

2 Parties to the Agreement

The main stakeholders associated with this Agreement are below-

- i. **Buyer:** The Buyer is responsible to provide clear instructions, approvals and timely payments for the services availed
- ii. **Service Provider:** The Service Provider is responsible to provide all the required services in timely manner. The Service Provider may also include seller, any authorized agents, assignees, successors and nominees as described in the Agreement

The responsibilities and obligations of the stakeholders have been outlined in this document. The document also encompasses service level/ deductions in case of non-adherence to the defined terms and conditions. It is assumed that all stakeholders have read and understood the same before signing the document.

3 Scope of Services

This service deals with hiring of facility management services which encompasses all activities related to keeping a complex operating with all its infrastructural and maintenance related requirements. This service includes multiple disciplines to ensure functionality, comfort, safety and efficiency of the built environment by integrating people, place, process and technology. It typically includes a wide range of function and support services such as housekeeping, security, property or building management, basic engineering services, mail and messenger services, records management, safety and other support duties.

Type of Model: This service offering is on Lump sum basis, for the contract duration, the Buyer can take the item-wise pricing of various components involved in this service, through Financial Upload document.

Types of Services: This service offering provides multiple services under a single contract for professional maintenance and upkeep of the property (commercial, residential, hospitality, healthcare, industrial, etc.). Buyer of this service will have the option to choose the type of service and service components as per their requirement, for which the following categories have been defined:

#	Services	Service Component
1	Housekeeping	· Cleaning & Sanitation
		· Front Desk Management
		· Mail Management/ Runner
		· Waste Management (other than healthcare facility)
		· Waste Management (Healthcare)
		· Laundry Services
		· Work Routine Services (Healthcare)
		· Work Routine Services (other than healthcare facility)
		· Regular work of Guest House/ Hostel (Hospitality) (such as porter services, lift man, etc.)
		· Physical Security
2	Security Services	· Parking Management
		· CCTV Control & Operations
		· Visitor Management & Access Control
3	Horticulture Services	· Gardening
		· Landscape
4	Patient Support Services	· Assisting the patient in getting into or out of the bed
		· Attend to the personal hygiene of patients
		· Preparing and carrying the patients for operations, laboratory, X-ray and other investigations
		· Carrying and transporting patients to various wards/ departments in the hospital
		· Assist in maintaining stocks of linen and non-medical supplies
		· Assist the nurses or doctors in diagnostic and treatment procedures

#	Services	Service Component
		Assist in sterilization of instruments, appliances and dressings and dressing of postoperative wounds
		- Bedbug control - Disinfestation - General Pest Control - Rodent control - Termite Control (Spot treatment/ drilling treatment)
5	Pest Control Service	- Vector control (mosquitos/ insects) - Cockroach control - Fumigation - Pest proofing (Pest proofing is closure of holes and cracks that may potentially cause pest infestation) - Infection control (Surface sterilization)
		- Plumbing - Water Supply
6	O&M Mechanical	- Pumps - Fire Fighting System - Lift - Electrical Supply of HT/LT - DG Sets
7	O&M of Electrical Work	- UPS - AC Chillers - HVAC - Transformers
Manpower Required: Service Provider shall provide manpower based on the Buyer's selection of manpower profile, quantity and skill level. The Buyer of this service will have the option to choose the type of manpower as per their requirement, for which the following categories have been defined:		
#	Type of Manpower Required	
1	Cleaner / Sweeper	
2	Office Attendant	
3	Receptionist	
4	Mail Attendant/ Runner	
5	Guest house attendant	
6	Porter	
7	Laundry wash boys	
8	Security Guard	
9	Gardener	
10	Ward Boys/Girls	
11	Plumber	
12	Electrician	
13	Fire Supervisor	
14	AC Plant Operator	
15	Help Desk Support Executive	
16	Others - Please Specify	

Consumables: The Service Provider shall provide consumables such as cleaning agents, equipment, etc. based on the Buyer's selection of cost to be borne by the Buyer/ Service Provider/ reimbursable by the Buyer. In case wherein consumables are to be provided by the Service Provider and the cost is to be included in the Contract cost, a list of suggestive consumables will be provided by the Buyer.

3.1 Service Details and Standards

- i. The Service Provider shall abide at all times by the all existing labor enactments and rules made there under, regulations, notifications and bye laws of the State or Central Government or local authority and any other labor law (including rules), regulations, bye laws that may be passed or notification that may be issued under any labor law in future either by the State or the Central Government or the local authority
- ii. The Service Provider shall make his own arrangements for the engagement of all staff and labor, local or other, and for their payment, housing, feeding and transport.
- iii. The Service Provider is responsible for co-ordination and management of delivery of services from AMC vendors/suppliers/contractors, therefore for ensuring safety compliance by them, FMC is required to monitor the delivery of service and report client in case of non-compliance of safety requirements immediately
- iv. The manpower deployed should maintain polite & courteous behavior towards the Buyer. "Misbehavior" which may include, but not limited to, consumption of alcohol during or prior to duty, denial of duty during service hours as defined by user, use of abusive language, theft, shall attract deductions as per provisions of the Contract.

3.2 Service Assumptions

- i. The Service Provider shall not sublet any part of the Contract. The Service Provider may act as an aggregator of manpower to be provided. However, it is the Service Provider who shall be responsible and liable to deliver the services as per the Contract.
- ii. The manpower provided by the Service Provider shall not be deemed employees of the Buyer hence the compliance of the applicable labor laws and acts and other relevant laws will be the sole responsibility of the Service Provider.
- iii. The Service Provider shall not deploy any manpower that is ailing from any contagious disease.
- iv. The Service Provider shall verify the character & antecedent of manpower to be deployed.
- v. The persons deployed during the course of their work shall perform integrity to the Buyer and shall not disclose/ share any qualified documents and information which they are not supposed to divulge to the Service Provider/ third parties.
- vi. The Service Provider shall indemnify the Buyer against all the losses, injuries and any kind of damage arrived due to its activities
- vii. The Buyer will in no way be responsible for violation of labor laws and /or infringement of any other law for the time being in force, either by the manpower provided or by the Service Provider.
- viii. The attendance of the employees will be entered in the register provided by the Service Provider and/or in the Aadhaar based Biometric attendance system at the Buyer's premises. The persons deployed should be polite, cordial and efficient while handling the assigned work and their actions should promote good will and enhance the image of the Corporation or office concerned. The Service Provider shall be responsible for any act of indiscipline on the part of the persons deployed.
- ix. The Service Provider shall ensure that all the relevant licenses / registrations / permissions which may be required for providing the services are valid during the entire period of the contract; failing so shall attract the appropriate deductions. The documents relevant in this regard shall be provided by the Service Provider to the Buyer on demand.
- x. The Service Provider shall be required to keep the Buyer updated about the change of address, change of the Management etc. from time to time.

4 Service Provider's Obligation

- i. The Service Provider shall ensure the level of service required is of the highest professional standard and shall ensure full compliance to the terms and conditions of the Contract.
- ii. The Service Provider shall attend to emergency works in time. No extra payment will be made for working on odd hours for emergency works.
- iii. The Service Provider will be required to submit list of the manpower being deployed with photo ID, address proof, police verification certificate and educational qualifications before deputing the workers. The Service Provider shall be solely responsible for the credentials/ acts of his staff /workers
- iv. The Service Provider shall provide at his own cost proper uniform and badges and photo identity cards to the manpower deployed.
- v. In an event that, for any reason, the manpower provided change their contact number during the tenure of the contract then service provider will immediately notify the buyer of the above change.
- vi. The Service Provider shall be responsible for ensuring compliance with the provisions related to Labour Law [Central/State] and specially Workmen Compensation Act, EPF Laws, ESIC Laws, Income tax laws and Minimum Wages Laws, Contract Labour (Regulations Abolition Act) and any other relevant acts as applicable at present or in future during the tenure of the Contract and as may be enforced from time to time. Onus of compliance of all the applicable Laws/Acts/Rules/Bye-Laws/Regulations/Standards/Guidelines/Notification/Recommended Practices, etc. shall rest with the Service Provider only and the Buyer will not be liable in any manner.
- vii. The Service Provider shall produce to the Buyer the details of payments of statutory benefits like bonus, leave, relief etc. from time to time to its personnel.
- viii. The Service Provider shall cover all its personnel under the relevant laws of EPF, Labor, ESIC etc. Proof of the same should be submitted by the Service Provider.
- ix. The Service Provider shall submit a copy of wages sheet showing monthly wages paid to its personnel.
- x. The Service Provider shall cover its personnel for personal accident and death whilst performing the duty and the Buyer shall own no liability and obligation in this regard.
- xi. The Service Provider shall also provide at its own cost all benefits statutory or otherwise to its deployed personnel and the Buyer shall not have any liability whatsoever on this account.
- xii. The Service Provider shall employ only manpower who has completed eighteen years of age and not above 65 years of age
- xiii. The Service Provider shall provide the documentary proof for the qualifications and experience of the manpower deployed by them. The bio-data, qualification and experience of the said manpower should be certified by the Service Provider.
- xiv. The Service Provider shall not deploy or shall discontinue deploying the person(s), if desired by the Buyer and must ensure prompt replacement of the personnel without any additional cost to the Buyer. The personnel being deployed shall ordinarily be continued and should not be changed without written intimation and consultation with the Buyer.
- xv. The Service Provider would be bound by the conditions with regard to police verification of the deployed staff and their medical fitness.
- xvi. Adequate supervision shall be provided to ensure correct performance of the services in accordance with the prevailing requirements agreed upon between the two parties.
- xvii. In an event that the Service Provider fails to deliver or fails to carry out tasks as per schedule due to absence of personnel or any other reasons, the Service Provider at his own cost shall make alternate arrangement by providing similar manpower for which agreement is entered into, without any extra charges. Failure to do so will evoke deductions and the Buyer shall have right to recover damages as per the provisions of the Contract.
- xviii. The Service Provider shall be personally responsible for any theft, misconduct and /or disobedience on the part of personnel so provided by him.
- xix. The working hours and days of the manpower will be as per the existing applicable rules of the respective Central/State Government organizations. However, they have to work on holidays, if necessary and required based on demand of work.
- xx. The Service Provider shall be fully responsible for the acts of their employees/ agents/ representatives / consultants/ team members and shall fully indemnify the Buyer for any kind of losses or damages caused by its employees/ agents/ representatives/ team members/ consultants. The Buyer shall not be responsible for any claim from any employees/ agents/ representatives /consultant / team member employed or engaged by the Service Provider. The Service Provider shall wholly and fully be responsible for any such claims.

5 Buyer's Obligations

- i. The location for reporting shall be provided by the Buyer to the Service Provider.

- ii. The Buyer must immediately report to the designated representative of the Service Provider for any problems, complaints, incidents or accidents that occur during the contract including any form of inappropriate behavior/ improper uniform by the personnel.
- iii. The Buyer shall notify the Service Provider of any dishonest, wrongful or negligent acts or omissions of its personnel or agents in connection with the services as soon as possible after the Buyer becomes aware of them.
- iv. The Buyer may calculate their requirement of resources based on 8 hours per shift. For example, to hire a security personnel for a month (i.e. thirty service days) to offer the services for 24 hours on a 3-shift basis, the required number of resources would be 90 personnel for the month.

6 Service Tracking

Tracking of services ensures quality of service delivery in time bound manner, effective service tracking helps in analyzing the Service Provider's performance as well as the Buyer's timely inputs for services and leads to immediate actions against the defaulters if any. Service tracking shall be mandatory for the both Buyer and Service Provider, non-tracking of the same may lead to a deductions

6.1 Logbook

- i. The Service Provider shall maintain registers and checklists for each activity and the work done by each of the personnel shall be recorded on a Job Card, duly signed by the Buyer's representative. The Service Provider shall also submit a duly signed comprehensive report every month, detailing the services performed during the month.
- ii. The Service Provider shall thereafter update the logbook on the GeM portal as per the logbook process flow.
- iii. Once the Service Provider updates the logbook online, the Buyer shall either accept or reject these entries within the prescribed time limit. The Buyer will also record the any service non delivery or non-performance issues, and subsequent deductions. Failure to take action on logbook entries updated by service provider shall be deemed as accepted.
- iv. The Service Provider can raise an issue against the rejection of any entry by the Buyer within prescribed timelines of such rejection with the designated representative of the Buyer.

6.2 Service Performance and Feedback

- i. The principal point of contact for the issues arising out of this Agreement will be the Service Provider or a designated representative who shall be any employee of the Service Provider in administrative and managerial capacity and in a position of authority to resolve issues. Nonetheless, the Service Provider shall be solely responsible for maintaining the quality and level of services provided.
- ii. The Service Provider shall maintain a complaint register at the premises for the complaints by the Buyer.

7 Deductions

In case of noncompliance of the standards of the services to be provided as per this agreement, the Buyer would be at liberty to levy such deductions and terminate the Contract as per the conditions detailed out below:

#	Nature of Default	Default Details	Deductions			Remarks
			1st instance	2 nd instance	3 rd instance	
1	Non deployment of manpower	Non-deployment of total manpower mentioned in the contract as per the date of joining	Up to 15 days, @1 % per day of the total value and beyond 15 days cancellation of contract with cancellation charges @ 10% of the order value	Up to 15 days, @2 % per day of the total value and beyond 15 days cancellation of contract with cancellation charges @ 10% of the order value	Cancellation of contract with cancellation charges @ 10% of the order value	-
2	Failure to address deficiencies/ complaints brought to notice by the Buyer	Deficiencies/ complaints not addressed promptly	Deduction of Rs. 500/- (Rupees Five Hundred Only)	Deduction of Rs. 800/- (Rupees Eight Hundred Only)	Deduction of Rs. 1000/- (Rupees One Thousand Only)	After 3 rd instance, the Buyer may continue to impose the same deductions as imposed for 3 rd instance.
3	If employee is found disclosing any confidential information/ document to the Service Provider/ any third parties		Cancellation of the contract with cancellation charges @ 10% of the order value along with recovery of losses caused (if any) and legal action against the Service Provider depending on the gravity of the act			
4	If the employee is found responsible for any theft, loss of material/ articles and damages		Immediate payment in actuals, equivalent to the value of the article theft/ lost/ damaged. Replacement of employee within 2 days	Immediate payment in actuals, equivalent to the value of the article theft/ lost/ damaged. Replacement of employee within 2 days/ cancellation of contract as decided by the Buyer depending on the gravity of the act.	Cancellation of the contract with cancellation charges @ 10% of the order value	
5	If the employee is found responsible for disobedience/ misconduct		Warning/ counselling of employee as decided by the Buyer depending on the gravity of the act	Warning/ counselling/ Immediate replacement of employee within 2 days as decided by the Buyer and Warning to Service Provider depending on the gravity of the act	Cancellation of the contract with cancellation charges @ 10% of the order value	
			Rs. 200 per day for each			

#	Nature of Default	Default Details	Deductions	Remarks
6	Delay in payments of take-home remuneration by the Service Provider and deposit of EPF and ESI (both employee and employer share)		Rs. 100 per day for each default, warning to Service Provider to deposit the said amount within 7 working days	default, hold on all type of payments to Service Provider till the said amount is deposited to respective stakeholders and proof of same is submitted to Buyer
7	If the employee is absent or takes leave for more than 2 days without informing or taking prior approval.		Substitute within 2 days failing which, @ 1 % per day of the total value (excluding service tax etc.) of the absent resources up to 15 days. Beyond 15 days, cancellation of the contract with cancellation charges @ 10% of the order value	Substitute within 2 days failing which, @ 3 % per day of the total value (excluding service tax etc.) of the absent resources up to 15 days. Beyond 15 days, cancellation of the contract with cancellation charges @ 10% of the order value
8	If the employee is found responsible for adopting illegal and foul methods or exercising any corrupt practice in collusion with any third party or officials at the workplace		Immediate replacement within 2 days/ cancellation of the contract with cancellation charges @ 10%, as decided by the Buyer depending on the gravity of the act.	Cancellation of the contract with cancellation charges @ 10% of the order value
- Deductions for a specific month / period shall be capped at 10% of bill generated for that month / period. - If any SLA is breached beyond 3 instances in any billing period, then same shall be treated as a breach of Contract and the Buyer will have full rights to terminate the contract after giving a notice of 30 days.				

8 Payment Terms

8.1 Payment Condition

- i. The payment shall be made as per the financial quotes submitted by the Service Provider and accepted by the Buyer.
- ii. No advance payment shall be made to the Service Provider.
- iii. The price quoted shall cover all aspects of service delivery.
- iv. The Service Provider shall also deposit EPF and ESI of both employer and employee share within 15th day of the month of payment for the support staff engaged from their account and prefer the bill to the Buyer Department for reimbursement of employer share only.
- v. Employers share of EPF & ESI actually deposited to the respective authorities with proof of deposit of both employee and employer share by the end of the second week of the succeeding month. Employee share of EPF and ESI contribution shall be recovered from the gross remuneration & balance amount is to be released to the persons employed.
- vi. The Service Providing Agency shall furnish statement of amount paid for the month to the persons deployed along with cheque number and date and Bank account from which the payment has been made. Service Providing agency is to furnish copy of bank statement in support of amount paid as and when required by the Buyer.
- vii. The Service Provider shall be responsible for timely payment of take-home remuneration to the supporting staff and deposit of EPF and ESI (both employee and employer share), failing which a deduction will be deducted.
- viii. The Service Provider shall submit before the Buyer, one copy of the return within 7 days from the date of filing of monthly / quarterly / half yearly / annual return if any before the EPF and ESI authorities.
- ix. The payment to the Service Provider will be made on monthly and quarterly basis, depending upon the actual duration of the services rendered as per order.
- x. Any violation of contractual obligations by the Service Provider/employee shall attract deductions as mentioned against each obligation. The Service Provider confirms and agrees that penalty whenever becomes payable, the same shall be deducted by the user department from the payments due to the Service Provider.
- xi. All applicable taxes and duties except GST, shall be payable by the Service Provider and the Buyer shall not entertain any claims whatsoever with respect to the same. The Service Provider shall pay the GST and the price quoted is inclusive.
- xii. The Service Provider shall ensure payment regularly for the deployed manpower to their entitlements like monthly salaries/wages etc. and submit the documentary proof of the salary paid as per the terms and conditions of the contract. Bill for the subsequent month will be paid only after submission of certificate of disbursement of wages of previous month.
- xiii. In case of any changes in the minimum wages as per the Applicable Laws during the Contract period, Buyer shall pay the Service Provider the difference in wage from the amount mentioned in the contract on pro rata basis.
- xiv. The cost of the Contract shall be valid for initial contract period. No price escalation, other than minimum wages revision, shall be entertained by the Buyer during the period.

8.2 Payment Cycle

- i. Payment shall be made once the Service Provider submits the invoice for the same as per the prescribed process flow.
- ii. The Buyer shall make the payment within prescribed timelines as per the payment process flow upon submission of invoice, logbook and service feedback.

8.3 Payment Process

- i. Payment shall be made only after submission of invoices, logbook, service feedback, non-submission of the same may lead to delay/ deduction in payment.
- ii. All the deductions/ fine/ interest (if applicable) will be settled before making the payments. Service Provider shall not have any objection on the same.
- iii. Payment will be made through bank transfer only, in no circumstance cash/ cheque payment will be made.

9 Amendment of Contract

During service delivery period some conditions may occur when the Buyer and/ or Service Provider may require amending the Agreement, some of such conditions may be as followed-

- i. *Amendment of the Contract after event of Force Majeure:* In case of occurrence of any exceptional event/ circumstance which has affected either party directly to perform the agreed services, the agreement can be amended. However, cause, evidence and nature of such effect shall be notified to the other party.

ii. Amendment in statutory variations: .

iii. Variation of the Contract as per both parties' consent: Variation of the Contract shall be done as per mutual consent of both parties; no party shall be made liable to pay/ get any compensation for agreement amendment. The variation in the contract can be through the following, however, the variation put together shall not reduce or exceed 25% of contract value:

- a. Increase or decrease in the manpower requirement or services to be provided
- b. Increase or decrease in duration of contract

10 Termination of Contract

The Agreement shall be come to an end either on completion of the Contract Period or shall be terminated for the following reasons:

- i. Mutual consent: The contract may be terminated based on mutual consent in case the services are no longer required. Termination based on mutual consent will not attract any deductions or shall not be liable for any extra payments other than payment of invoices raised till the time of termination including notice period.
 - ii. Breach of contractual obligations: Any incidents considered as the breach of contract will result in immediate termination of services. The Buyer shall have the right to terminate the Contract effective immediately by giving written notice to the Service Provider if, the Service Provider breaches a material provision of this Contract where that breach is not capable of remedy; or if the Service Provider breaches any provision of this Contract and fails to remedy the breach within 14 days after receiving notice requiring it to do so.
 - iii. Breach of SLAs: The contract may also be terminated if i) the cumulative deductions rise to 10% of the contract value ii) repeated breach of any SLA beyond 3 instances as per the Buyer's discretion.
- However, termination of this Contract shall not affect any accrued rights or remedies of either party.

शुद्धिपत्र | Corrigendum

- 1. तक बढ़ाया गया | Extended Upto : 2026-02-23 16:00:00
- 2. तक बढ़ाया गया | Extended Upto : 2026-02-24 16:00:00

अतिरिक्त आवश्यक डेटा/दस्तावेज़: खरीदार | Additional Required Data/Document(s) : Buyer

- 1. Geographic Presence in states : Gujarat
- 2. Total experience in providing facility management services to government departments, public sector companies, and government autonomous organizations: : 3
- 3. Details of the premise : [click here](#)
- 4. Scope of work : [click here](#)

अतिरिक्त डेटा/दस्तावेज़: विक्रेता | Additional Data/Document(s) : Seller

- 1. Certificate (Requested in ATC) : [click here](#)
- 2. Additional Doc 1 (Requested in ATC) : [click here](#)
- 3. Additional Doc 2 (Requested in ATC) : [click here](#)

ईपीबीजी विवरण | ePBG Detail

सलाहकार बैंक Advisory Bank :	State Bank of India
ईपीबीजी प्रतिशत (%) ePBG Percentage(%):	5.00

बोली लगाने वाले को बोली के नियमों और शर्तों के अनुसार लागू ईपीबीजी प्रस्तुत करना होगा | The bidder shall furnish ePBG as applicable as per bid's terms and conditions

नियम और शर्तें | Terms and Conditions

1. General Terms and Conditions-

- 1.1 This contract is governed by the [General Terms and Conditions](#), conditions stipulated to this Product/Service as provided in the Marketplace.
- 1.2 This Contract between the Seller and the Buyer, is for the supply of the Goods and/ or Services, detailed in the schedule above, in accordance with the General Terms and Conditions (GTC) unless otherwise superseded by Goods / Services specific Special Terms and Conditions (STC) and/ or BID/Reverse Auction Additional Terms and Conditions (ATC), as applicable
- 1.3 All GeM Sellers / Service Providers are mandated to ensure compliance with all the applicable laws / acts / rules including but not limited to all Labour Laws such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972 etc. Any non-compliance will be treated as breach of contract and Buyer may take suitable actions as per GeM Contract.

2. Buyer Added Bid Specific Terms and Conditions-

- 2.1 Generic
OPTION CLAUSE: The buyer can increase or decrease the contract quantity or contract duration up to 25 percent at the time of issue of the contract. However, once the contract is issued, contract quantity or contract duration can only be increased up to 25 percent. Bidders are bound to accept the revised quantity or duration
- 2.2 Generic
Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.
- 2.3 Forms of EMD and PBG:
Bidders can also submit the EMD with Account Payee Demand Draft in favour of

Superintendent Community Health Center Shamgahan
payable at
Shamgahan
.
Bidder has to upload scanned copy / proof of the DD along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date / Bid Opening date.
- 2.4 Forms of EMD and PBG:
Bidders can also submit the EMD with Fixed Deposit Receipt made out or pledged in the name of A/C

Superintendent Community Health Center Shamgahan

. The bank should certify on it that the deposit can be withdrawn only on the demand or with the sanction of the pledgee. For release of EMD, the FDR will be released in the favour of the bidder by the Buyer after making endorsement on the back of the FDR duly signed and stamped along with covering letter. Bidder has to upload scanned copy/ proof of the FDR along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date/ Bid Opening date

2.5 Certificates:

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

2.6 Buyer Added Bid Specific ATC:

Buyer uploaded ATC document [Click here to view the file.](#)

2.7 Service & Support:

AVAILABILITY OF OFFICE OF SERVICE PROVIDER: An office of the Service Provider must be located in the state of Consignee. DOCUMENTARY EVIDENCE TO BE SUBMITTED.

2.8 Service & Support:

Dedicated /toll Free Telephone No. for Service Support : BIDDER/OEM must have Dedicated/toll Free Telephone No. for Service Support.

2.9 Service & Support:

Escalation Matrix For Service Support : Bidder/OEM must provide Escalation Matrix of Telephone Numbers for Service Support.

2.10 Purchase Preference (State):

Bid reserved for MSE from the State of Bid Inviting Authority: Procurement under this bid is reserved for purchase from Micro and Small Enterprises from the State of Bid Inviting Authority having valid Udyam Registration and whose credentials are validated online through Udyam Registration portal. If the bidder wants to avail themselves of the reservation benefit, the bidder must be the manufacturer / OEM of the offered product on GeM. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible to participate in this bid. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility based on documentary evidence submitted, while evaluating the bid. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2.11 Purchase Preference (State):

Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs from the State of Bid Inviting Authority having valid Udyam Registration and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry / State of Bid inviting authority. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service and Buyer will decide eligibility for purchase preference based on documentary evidence submitted, while evaluating the bid. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15 % of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 15 percentage of total quantity. The buyers are advised to refer the OM No. F.1/4/2021-PPD dated 18.05.2023 OM_No.1_4_2021_PPD_dated_18.05.2023 for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2.12 Past Project Experience:

Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.

Note:

1. Service Providers are required to raise invoices online as per the contract terms on GeM portal. Timely invoice submission is mandatory for compliances, smooth payment processing, and will also contribute to improving their ratings.
2. The Excess settlement has been enabled for this contract. The service provider can claim additional charges, if applicable, in the invoice. Any additional charges must be supported with documentary evidence.

नोट: यह सिस्टम जनरेटेड फाइल है। कोई हस्ताक्षर की आवश्यकता नहीं है।

Note: This is system generated file. No signature is required.

अनुबंध | Contract



अनुबंध क्रमांक | Contract No: GEMC-511687705554065
अनुबंध तिथि | Contract Generated Date : 20-May-2025
बोली/आरए/पीबीपी संख्या | Bid/RA/PBP No.: [GEM/2025/B/6027218](#)

संगठन विवरण Organisation Details	खरीदार विवरण Buyer Details
प्रकार Type : State Government मंत्रालय Ministry : - विभाग Department : Health & Family Welfare Department Gujarat संगठन का नाम Organisation Name : N/A कार्यालय क्षेत्र Office Zone: Health Department District Panchayat Dang	पद Designation : Additional District Health Officer संपर्क नंबर Contact No. : 02631-220345- ईमेल आईडी Email ID : buycon458.hfwdg.gj@gembuyer.in जीएसटीआईएन GSTIN : 24SRTD02316G1DU पता Address : Ground floor, District Panchayat, Ahwa, The Dangs, GUJARAT-394710, India

वित्तीय स्वीकृति विवरण Financial Approval Detail	भुगतान प्राधिकरण विवरण Paying Authority Details
आईएफडी सहमति IFD Concurrence : No प्रशासनिक अनुमोदन का पदनाम Designation of Administrative Approval: ADHO वित्तीय अनुमोदन का पदनाम Designation of Financial Approval: ADHO	Role: PAO भुगतान का तरीका Payment Mode: Offline पद Designation : Accountant TB ईमेल आईडी Email ID : pao64.hfwdg.gj@gembuyer.in जीएसटीआईएन GSTIN : - पता Address: Opposite of District Hospital, Ahwa, District TB Center Dang, The Dangs, GUJARAT-394710, India

परेषिती विवरण Consignee Details		
क्र.सं. S.No	परेषिती नाम & पता Consignee Name & Address	सेवा विवरण Service Description
1	संपर्क Contact : 02631-220345- ईमेल आईडी Email ID : buycon458.hfwdg.gj@gembuyer.in जीएसटीआईएन GSTIN : 24SRTD02316G1DU पता Address : Ground floor, District Panchayat, Ahwa, The Dangs, GUJARAT-394710, India	Facility Management Services - LumpSum Based - HEALTH CENTER; HEALTH PRODUCT; Consumables to be provided by buyer

सेवा प्रदाता विवरण Service Provider Details
जेम विक्रेता आईडी GeM Seller ID : 0D0E200001130179 कंपनी का नाम Company Name : SHIV TRADING संपर्क नंबर Contact No. : 08866545280 ईमेल आईडी Email ID : shivtradingsrt@gmail.com पता Address : FIRST,1,VAIBHAV COMPLEX,NEAR VAIBHAV CINEMA, Surat, GUJARAT-394650, - एमएसएमई पंजीकरण संख्या MSME Registration number : - जीएसटीआईएन GSTIN: 24AISPV8250F1ZR (R) खरीदार द्वारा सत्यापित एमएसएमई स्थिति MSME Status as verified by buyer : Not Verified

*जिसके नाम के पक्ष में GST/TAX इनवॉइस पेश किया जाएगा | GST / Tax invoice to be raised in the name of - Buyer

सेवा विवरण Service Details	
सेवा प्रारंभ दिनांक (नवीनतम) Service Start Date (latest by): 23-May-2025	सेवा समाप्ति तिथि Service End Date : 13-Aug-2025
श्रेणी नाम Category Name : Facility Management Services - LumpSum Based	

बिलिंग चक्र Billing Cycle: monthly			
विवरण Description		To be set as 1	Total Bid Value(Lumpsum quote)
Type of Premises	HEALTH CENTER	1	9031900
Type of services required	HEALTH PRODUCT		
Cost for Consumables/ Materials	Consumables to be provided by buyer		
Service component	HEALTH PRODUCT		
कुल राशि (सूत्र) Total Amount (Formula) : (Total Bid Value(Lumpsum quote)*1)			
एडऑन के बिना कुल मूल्य Total Value without Addons(INR)			9031900
कुल एडऑन मूल्य Total Addon Value(INR)			0
एडऑन सहित कुल मूल्य Total Value Including Addons(INR)			9031900
अनुबंध की राशि Amount of Contract			
सभी शुल्क और करों सहित कुल अनुबंध मूल्य Total Contract Value Including All Duties and Taxes(INR)			9031900
एसएलए विवरण SLA Details			

एसएलए विवरण SLA Details
Service Level Agreement for Facility Management Services Lump Sum Basis All Facility Management Services related Contracts/ Agreement placed through GeM shall be governed by following set of Terms and Conditions: 1. General terms and conditions for Services ("GTC"); 2. Service Specific Terms and Conditions ("STC") of the Services contracts shall include the Service Level Agreement ("SLA") for the service;

3. BID / Reverse Auction specific Additional Terms and Conditions ("ATC") as specified by the Buyer.

The above terms and conditions are in reverse order of precedence i.e. ATC supersedes Service specific STC which supersede GTC, whenever there are any conflicting provisions. The above set of terms and conditions along with scope of work and SLA as enumerated in the document shall be construed to be part of the Contract between the Buyer and the Service Provider. The service will be provided in bid only mode.

1 Objectives and Goals

The objective of this Agreement is to ensure that all the commitments and obligations are in place to ensure consistent delivery of services to the Buyer by the Service Provider. The goals of this Agreement are to:

- Provide clear reference to service ownership, accountability, roles and responsibilities of both parties
- Present a clear, concise and measurable description of services offered to the Buyer
- Establish terms and conditions for all the involved stakeholders, it also includes the actions to be taken in case of failure to comply with conditions specified
- To ensure that both the parties understand the consequences in case of termination of services due to any of the stated reasons

The Agreement will act as a reference document that both the parties have understood the above-mentioned terms and conditions and have agreed to comply by the same. The Agreement can also be revised/ modified on mutual consent of the stakeholders.

2 Parties to the Agreement

The main stakeholders associated with this Agreement are below-

- Buyer:** The Buyer is responsible to provide clear instructions, approvals and timely payments for the services availed
- Service Provider:** The Service Provider is responsible to provide all the required services in timely manner. The Service Provider may also include seller, any authorized agents, assignees, successors and nominees as described in the Agreement

The responsibilities and obligations of the stakeholders have been outlined in this document. The document also encompasses service level/ deductions in case of non-adherence to the defined terms and conditions. It is assumed that all stakeholders have read and understood the same before signing the document.

3 Scope of Services

This service deals with hiring of facility management services which encompasses all activities related to keeping a complex operating with all its infrastructural and maintenance related requirements. This service includes multiple disciplines to ensure functionality, comfort, safety and efficiency of the built environment by integrating people, place, process and technology. It typically includes a wide range of function and support services such as housekeeping, security, property or building management, basic engineering services, mail and messenger services, records management, safety and other support duties.

Type of Model: This service offering is on Lump sum basis, for the contract duration, the Buyer can take the item-wise pricing of various components involved in this service, through Financial Upload document.

Types of Services: This service offering provides multiple services under a single contract for professional maintenance and upkeep of the property (commercial, residential, hospitality, healthcare, industrial, etc.). Buyer of this service will have the option to choose the type of service and service components as per their requirement, for which the following categories have been defined:

#	Services	Service Component
1	Housekeeping	· Cleaning & Sanitation
		· Front Desk Management
		· Mail Management/ Runner
		· Waste Management (other than healthcare facility)
		· Waste Management (Healthcare)
		· Laundry Services
		· Work Routine Services (Healthcare)
		· Work Routine Services (other than healthcare facility)
2	Security Services	· Regular work of Guest House/ Hostel (Hospitality) (such as porter services, lift man, etc.)
		· Physical Security
		· Parking Management
3	Horticulture Services	· CCTV Control & Operations
		· Visitor Management & Access Control
		· Gardening
4	Patient Support Services	· Landscape
		· Assisting the patient in getting into or out of the bed
		· Attend to the personal hygiene of patients
		· Preparing and carrying the patients for operations, laboratory, X-ray and other investigations
		· Carrying and transporting patients to various wards/ departments in the hospital
		· Assist in maintaining stocks of linen and non-medical supplies
		· Assist the nurses or doctors in diagnostic and treatment procedures
		· Assist in sterilization of instruments, appliances and dressings and dressing of postoperative wounds
		· Bedbug control
		· Disinfestation

#	Services	Service Component
		- General Pest Control - Rodent control - Termite Control (Spot treatment/ drilling treatment)
5	Pest Control Service	- Vector control (mosquitos/ insects) - Cockroach control - Fumigation - Pest proofing (Pest proofing is closure of holes and cracks that may potentially cause pest infestation) - Infection control (Surface sterilization)
6	O&M of Civil Work	- Carpentry - Masonry - Painting - Sewer/ Drainage
7	O&M Mechanical	- Plumbing - Water Supply - Pumps - Fire Fighting System - Lift
8	O&M of Electrical Work	- Electrical Supply of HT/LT - DG Sets - UPS - AC Chillers - HVAC - Transformers
Manpower Required: Service Provider shall provide manpower based on the Buyer's selection of manpower profile, quantity and skill level. The Buyer of this service will have the option to choose the type of manpower as per their requirement, for which the following categories have been defined:		
#	Type of Manpower Required	
1	Cleaner / Sweeper	
2	Office Attendant	
3	Receptionist	
4	Mail Attendant/ Runner	
5	Guest house attendant	
6	Porter	
7	Laundry wash boys	
8	Security Guard	
9	Gardener	
10	Ward Boys/Girls	
11	Plumber	
12	Electrician	
13	Fire Supervisor	
14	AC Plant Operator	
15	Help Desk Support Executive	
16	Others - Please Specify	

Consumables: The Service Provider shall provide consumables such as cleaning agents, equipment, etc. based on the Buyer's selection of cost to be borne by the Buyer/ Service Provider/ reimbursable by the Buyer. In case wherein consumables are to be provided by the Service Provider and the cost is to be included in the Contract cost, a list of suggestive consumables will be provided by the Buyer.

3.1 Service Details and Standards

- i. The Service Provider shall abide at all times by the all existing labor enactments and rules made there under, regulations, notifications and bye laws of the State or Central Government or local authority and any other labor law (including rules), regulations, bye laws that may be passed or notification that may be issued under any labor law in future either by the State or the Central Government or the local authority
- ii. The Service Provider shall make his own arrangements for the engagement of all staff and labor, local or other, and for their payment, housing, feeding and transport.
- iii. The Service Provider is responsible for co-ordination and management of delivery of services from AMC vendors/suppliers/contractors, therefore for ensuring safety compliance by them, FMC is required to monitor the delivery of service and report client in case of non-compliance of safety requirements immediately
- iv. The manpower deployed should maintain polite & courteous behavior towards the Buyer. "Misbehavior" which may include, but not limited to, consumption of alcohol during or prior to duty, denial of duty during service hours as defined by user, use of abusive language, theft, shall attract deductions as per provisions of the Contract.

3.2 Service Assumptions

- i. The Service Provider shall not sublet any part of the Contract. The Service Provider may act as an aggregator of manpower to be provided. However, it is the Service Provider who shall be responsible and liable to deliver the services as per the Contract.
- ii. The manpower provided by the Service Provider shall not be deemed employees of the Buyer hence the compliance of the applicable labor laws and acts and other relevant laws will be the sole responsibility of the Service Provider.
- iii. The Service Provider shall not deploy any manpower that is ailing from any contagious disease.
- iv. The Service Provider shall verify the character & antecedent of manpower to be deployed.
- v. The persons deployed during the course of their work shall perform integrity to the Buyer and shall not disclose/ share any qualified documents and information which they are not supposed to divulge to the Service Provider/ third parties.
- vi. The Service Provider shall indemnify the Buyer against all the losses, injuries and any kind of damage arrived due to its activities
- vii. The Buyer will in no way be responsible for violation of labor laws and /or infringement of any other law for the time being in force, either by the manpower provided or by the Service Provider.
- viii. The attendance of the employees will be entered in the register provided by the Service Provider and/or in the Aadhaar based Biometric attendance system at the Buyer's premises. The persons deployed should be polite, cordial and efficient while handling the assigned work and their actions should promote good will and enhance the image of the Corporation or office concerned. The Service Provider shall be responsible for any act of indiscipline on the part of the persons deployed.
- ix. The Service Provider shall ensure that all the relevant licenses / registrations / permissions which may be required for providing the services are valid during the entire period of the contract; failing so shall attract the appropriate deductions. The documents relevant in this regard shall be provided by the Service Provider to the Buyer on demand.
- x. The Service Provider shall be required to keep the Buyer updated about the change of address, change of the Management etc. from time to time.

4 Service Provider's Obligation

- i. The Service Provider shall ensure the level of service required is of the highest professional standard and shall ensure full compliance to the terms and conditions of the Contract.
- ii. The Service Provider shall attend to emergency works in time. No extra payment will be made for working on odd hours for emergency works.
- iii. The Service Provider will be required to submit list of the manpower being deployed with photo ID, address proof, police verification certificate and educational qualifications before deputing the workers. The Service Provider shall be solely responsible for the credentials/ acts of his staff /workers
- iv. The Service Provider shall provide at his own cost proper uniform and badges and photo identity cards to the manpower deployed.
- v. In an event that, for any reason, the manpower provided change their contact number during the tenure of the contract then service provider will immediately notify the buyer of the above change.
- vi. The Service Provider shall be responsible for ensuring compliance with the provisions related to Labour Law [Central/State] and specially Workmen Compensation Act, EPF Laws, ESIC Laws, Income tax laws and Minimum Wages Laws, Contract Labour (Regulations Abolition Act) and any other relevant acts as applicable at present or in future during the tenure of the Contract and as may be enforced from time to time. Onus of compliance of all the applicable Laws/Acts/Rules/Bye-Laws/Regulations/Standards/Guidelines/Notification/Recommended Practices, etc. shall rest with the Service Provider only and the Buyer will not be liable in any manner.
- vii. The Service Provider shall produce to the Buyer the details of payments of statutory benefits like bonus, leave, relief etc. from time to time to its personnel.
- viii. The Service Provider shall cover all its personnel under the relevant laws of EPF, Labor, ESIC etc. Proof of the same should be submitted by the Service Provider.
- ix. The Service Provider shall submit a copy of wages sheet showing monthly wages paid to its personnel.
- x. The Service Provider shall cover its personnel for personal accident and death whilst performing the duty and the Buyer shall own no liability and obligation in this regard.
- xi. The Service Provider shall also provide at its own cost all benefits statutory or otherwise to its deployed personnel and the Buyer shall not have any liability whatsoever on this account.
- xii. The Service Provider shall employ only manpower who has completed eighteen years of age and not above 65 years of age
- xiii. The Service Provider shall provide the documentary proof for the qualifications and experience of the manpower deployed by them. The bio-data, qualification and experience of the said manpower should be certified by the Service Provider.
- xiv. The Service Provider shall not deploy or shall discontinue deploying the person(s), if desired by the Buyer and must ensure prompt replacement of the personnel without any additional cost to the Buyer. The personnel being deployed shall ordinarily be continued and should not be changed without written intimation and consultation with the Buyer.
- xv. The Service Provider would be bound by the conditions with regard to police verification of the deployed staff and their medical fitness.
- xvi. Adequate supervision shall be provided to ensure correct performance of the services in accordance with the prevailing requirements agreed upon between the two parties.
- xvii. In an event that the Service Provider fails to deliver or fails to carry out tasks as per schedule due to absence of personnel or any other reasons, the Service Provider at his own cost shall make alternate arrangement by providing similar manpower for which agreement is entered into, without any extra charges. Failure to do so will evoke deductions and the Buyer shall have right to recover damages as per the provisions of the Contract.
- xviii. The Service Provider shall be personally responsible for any theft, misconduct and /or disobedience on the part of personnel so provided by him.
- xix. The working hours and days of the manpower will be as per the existing applicable rules of the respective Central/State Government organizations. However, they have to work on holidays, if necessary and required based on demand of work.
- xx. The Service Provider shall be fully responsible for the acts of their employees/ agents/ representatives / consultants/ team members and shall fully indemnify the Buyer for any kind of losses or damages caused by its employees/ agents/ representatives/ team members/ consultants. The Buyer shall not be responsible for any claim from any employees/ agents/ representatives /consultant / team member employed or engaged by the Service Provider. The Service Provider shall wholly and fully be responsible for any such claims.

5 Buyer's Obligations

- i. The location for reporting shall be provided by the Buyer to the Service Provider.
- ii. The Buyer must immediately report to the designated representative of the Service Provider for any problems, complaints, incidents or accidents that occur during the contract including any form of inappropriate behavior/ improper uniform by the personnel.
- iii. The Buyer shall notify the Service Provider of any dishonest, wrongful or negligent acts or omissions of its personnel or agents in connection with the services as soon as possible after the Buyer becomes aware of them.
- iv. The Buyer may calculate their requirement of resources based on 8 hours per shift. For example, to hire a security personnel for a month (i.e. thirty service days) to offer the services for 24 hours on a 3-shift basis, the required number of resources would be 90 personnel for the month.

6 Service Tracking

Tracking of services ensures quality of service delivery in time bound manner, effective service tracking helps in analyzing the Service Provider's performance as well as the Buyer's timely inputs for services and leads to immediate actions against the defaulters if any. Service tracking shall be mandatory for the both Buyer and Service Provider, non-tracking of the same may lead to a deductions

6.1 Logbook

- i. The Service Provider shall maintain registers and checklists for each activity and the work done by each of the personnel shall be recorded on a Job Card, duly signed by the Buyer's representative. The Service Provider shall also submit a duly signed comprehensive report every month, detailing the services performed during the month.
- ii. The Service Provider shall thereafter update the logbook on the GeM portal as per the logbook process flow.
- iii. Once the Service Provider updates the logbook online, the Buyer shall either accept or reject these entries within the prescribed time limit. The Buyer will also record the any service non delivery or non-performance issues, and subsequent deductions. Failure to take action on logbook entries updated by service provider shall be deemed as accepted.
- iv. The Service Provider can raise an issue against the rejection of any entry by the Buyer within prescribed timelines of such rejection with the designated representative of the Buyer.

6.2 Service Performance and Feedback

- i. The principal point of contact for the issues arising out of this Agreement will be the Service Provider or a designated representative who shall be any employee of the Service Provider in administrative and managerial capacity and in a position of authority to resolve issues. Nonetheless, the Service Provider shall be solely responsible for maintaining the quality and level of services provided.
- ii. The Service Provider shall maintain a complaint register at the premises for the complaints by the Buyer.

7 Deductions

In case of noncompliance of the standards of the services to be provided as per this agreement, the Buyer would be at liberty to levy such deductions and terminate the Contract as per the conditions detailed out below:

#	Nature of Default	Default Details	Deductions			Remarks
			1st instance	2 nd instance	3 rd instance	
1	Non deployment of manpower	Non-deployment of total manpower mentioned in the contract as per the date of joining	Up to 15 days, @1 % per day of the total value and beyond 15 days cancellation of contract with cancellation charges @ 10% of the order value	Up to 15 days, @2 % per day of the total value and beyond 15 days cancellation of contract with cancellation charges @ 10% of the order value	Cancellation of contract with cancellation charges @ 10% of the order value	-
2	Failure to address deficiencies/ complaints brought to notice by the Buyer	Deficiencies/ complaints not addressed promptly	Deduction of Rs. 500/- (Rupees Five Hundred Only)	Deduction of Rs. 800/- (Rupees Eight Hundred Only)	Deduction of Rs. 1000/- (Rupees One Thousand Only)	After 3 rd instance, the Buyer may continue to impose the same deductions as imposed for 3 rd instance.
3	If employee is found disclosing any confidential information/ document to the Service Provider/ any third parties		Cancellation of the contract with cancellation charges @ 10% of the order value along with recovery of losses caused (if any) and legal action against the Service Provider depending on the gravity of the act			
4	If the employee is found responsible for any theft, loss of material/ articles and damages		Immediate payment in actuals, equivalent to the value of the article theft/ lost/ damaged. Replacement of employee within 2 days	Immediate payment in actuals, equivalent to the value of the article theft/ lost/ damaged. Replacement of employee within 2 days/ cancellation of contract as decided by the Buyer depending on the gravity of the act.	Cancellation of the contract with cancellation charges @ 10% of the order value	
5	If the employee is found responsible for disobedience/ misconduct		Warning/ counselling of employee as decided by the Buyer depending on the gravity of the act	Warning/ counselling/ Immediate replacement of employee within 2 days as decided by the Buyer and Warning to Service Provider depending on the gravity of the act	Cancellation of the contract with cancellation charges @ 10% of the order value	

#	Nature of Default	Default Details	Deductions	Remarks
6	Delay in payments of take-home remuneration by the Service Provider and deposit of EPF and ESI (both employee and employer share)		Rs. 100 per day for each default, hold on all type of payments to Service Provider until the said amount is deposited to respective stakeholders and proof of same is submitted to Buyer	Cancellation of the contract with cancellation charges @ 10% of the order value
7	If the employee is absent or takes leave for more than 2 days without informing or taking prior approval.		Substitute within 2 days failing which, @ 1 % per day of the total value (excluding service tax etc.) of the absent resources up to 15 days. Beyond 15 days, cancellation of the contract with cancellation charges @ 10% of the order value	Cancellation of the contract with cancellation charges @ 10% of the order value
8	If the employee is found responsible for adopting illegal and foul methods or exercising any corrupt practice in collusion with any third party or officials at the workplace		Immediate replacement within 2 days/ cancellation of the contract with cancellation charges @ 10%, as decided by the Buyer depending on the gravity of the act.	Cancellation of the contract with cancellation charges @ 10% of the order value
- Deductions for a specific month / period shall be capped at 10% of bill generated for that month / period. - If any SLA is breached beyond 3 instances in any billing period, then same shall be treated as a breach of Contract and the Buyer will have full rights to terminate the contract after giving a notice of 30 days.				

8 Payment Terms

8.1 Payment Condition

- The payment shall be made as per the financial quotes submitted by the Service Provider and accepted by the Buyer.
- No advance payment shall be made to the Service Provider.
- The price quoted shall cover all aspects of service delivery.
- The Service Provider shall also deposit EPF and ESI of both employer and employee share within 15th day of the month of payment for the support staff engaged from their account and prefer the bill to the Buyer Department for reimbursement of employer share only.
- Employers share of EPF & ESI actually deposited to the respective authorities with proof of deposit of both employee and employer share by the end of the second week of the succeeding month. Employee share of EPF and ESI contribution shall be recovered from the gross remuneration & balance amount is to be released to the persons employed.
- The Service Providing Agency shall furnish statement of amount paid for the month to the persons deployed along with cheque number and date and Bank account from which the payment has been made. Service Providing agency is to furnish copy of bank statement in support of amount paid as and when required by the Buyer.
- The Service Provider shall be responsible for timely payment of take-home remuneration to the supporting staff and deposit of EPF and ESI (both employee and employer share), failing which a deduction will be deducted.
- The Service Provider shall submit before the Buyer, one copy of the return within 7 days from the date of filing of monthly / quarterly / half yearly / annual return if any before the EPF and ESI authorities.
- The payment to the Service Provider will be made on monthly and quarterly basis, depending upon the actual duration of the services rendered as per order.
- Any violation of contractual obligations by the Service Provider/employee shall attract deductions as mentioned against each obligation. The Service Provider confirms and agrees that penalty whenever becomes payable, the same shall be deducted by the user department from the payments due to the Service Provider.
- All applicable taxes and duties except GST, shall be payable by the Service Provider and the Buyer shall not entertain any claims whatsoever with respect to the same. The Service Provider shall pay the GST and the price quoted is inclusive.
- The Service Provider shall ensure payment regularly for the deployed manpower to their entitlements like monthly salaries/wages etc. and submit the documentary proof of the salary paid as per the terms and conditions of the contract. Bill for the subsequent month will be paid only after submission of certificate of disbursement of wages of previous month.
- In case of any changes in the minimum wages as per the Applicable Laws during the Contract period, Buyer shall pay the Service Provider the difference in wage from the amount mentioned in the contract on pro rata basis.
- The cost of the Contract shall be valid for initial contract period. No price escalation, other than minimum wages revision, shall be entertained by the Buyer during the period.

8.2 Payment Cycle

- Payment shall be made once the Service Provider submits the invoice for the same as per the prescribed process flow.
- The Buyer shall make the payment within prescribed timelines as per the payment process flow upon submission of invoice, logbook and service feedback.

8.3 Payment Process

- Payment shall be made only after submission of invoices, logbook, service feedback, non-submission of the same may lead to delay/ deduction in payment.
- All the deductionss/ fine/ interest (if applicable) will be settled before making the payments. Service Provider shall not have any objection on the same.
- Payment will be made through bank transfer only, in no circumstance cash/ cheque payment will be made.

9 Amendment of Contract

During service delivery period some conditions may occur when the Buyer and/ or Service Provider may require amending the Agreement, some of such conditions may be as followed-

i. *Amendment of the Contract after event of Force Majeure:* In case of occurrence of any exceptional event/ circumstance which has affected either party directly to perform the agreed services, the agreement can be amended. However, cause, evidence and nature of such effect shall be notified to the other party.

ii. *Amendment in statutory variations:* .

iii. *Variation of the Contract as per both parties' consent:* Variation of the Contract shall be done as per mutual consent of both parties; no party shall be made liable to pay/ get any compensation for agreement amendment. The variation in the contract can be through the following, however, the variation put together shall not reduce or exceed 25% of contract value:

- a. Increase or decrease in the manpower requirement or services to be provided
- b. Increase or decrease in duration of contract

10 Termination of Contract

The Agreement shall be come to an end either on completion of the Contract Period or shall be terminated for the following reasons:

i. *Mutual consent:* The contract may be terminated based on mutual consent in case the services are no longer required. Termination based on mutual consent will not attract any deductions or shall not be liable for any extra payments other than payment of invoices raised till the time of termination including notice period.

ii. *Breach of contractual obligations:* Any incidents considered as the breach of contract will result in immediate termination of services. The Buyer shall have the right to terminate the Contract effective immediately by giving written notice to the Service Provider if, the Service Provider breaches a material provision of this Contract where that breach is not capable of remedy; or if the Service Provider breaches any provision of this Contract and fails to remedy the breach within 14 days after receiving notice requiring it to do so.

iii. *Breach of SLAs:* The contract may also be terminated if i) the cumulative deductions rise to 10% of the contract value ii) repeated breach of any SLA beyond 3 instances as per the Buyer's discretion.

However, termination of this Contract shall not affect any accrued rights or remedies of either party.

अतिरिक्त आवश्यक डेटा/दस्तावेज़: खरीदार|Additional Required Data/Document(s) : Buyer

- 1. Details of the premise :[click here](#)
- 2. Scope of work :[click here](#)

ईपीबीजी विवरण | ePBG Detail

सलाहकार बैंक Advisory Bank :	State Bank of India
ईपीबीजी प्रतिशत (%) ePBG Percentage(%):	5.00
बोली लगाने वाले को बोली के नियमों और शर्तों के अनुसार लागू ईपीबीजी प्रस्तुत करना होगा The bidder shall furnish ePBG as applicable as per bid's terms and conditions	

नियम और शर्तें|Terms and Conditions

1. General Terms and Conditions-

- 1.1 This contract is governed by the [General Terms and Conditions](#), conditions stipulated to this Product/Service as provided in the Marketplace.
- 1.2 This Contract between the Seller and the Buyer, is for the supply of the Goods and/ or Services, detailed in the schedule above, in accordance with the General Terms and Conditions (GTC) unless otherwise superseded by Goods / Services specific Special Terms and Conditions (STC) and/ or BID/Reverse Auction Additional Terms and Conditions (ATC), as applicable
- 1.3 All GeM Sellers / Service Providers are mandated to ensure compliance with all the applicable laws / acts / rules including but not limited to all Labour Laws such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972 etc. Any non-compliance will be treated as breach of contract and Buyer may take suitable actions as per GeM Contract.

2. Buyer Added Bid Specific Terms and Conditions-

2.1 Generic:

OPTION CLAUSE: The buyer can increase or decrease the contract quantity or contract duration up to 25 percent at the time of issue of the contract. However, once the contract is issued, contract quantity or contract duration can only be increased up to 25 percent. Bidders are bound to accept the revised quantity or duration

2.2 Certificates:

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

2.3 Service & Support:

AVAILABILITY OF OFFICE OF SERVICE PROVIDER: An office of the Service Provider must be located in the state of Consignee. DOCUMENTARY EVIDENCE TO BE SUBMITTED.

2.4 Service & Support:

Dedicated /toll Free Telephone No. for Service Support : BIDDER/OEM must have Dedicated/toll Free Telephone No. for Service Support.

2.5 Service & Support:

Escalation Matrix For Service Support : Bidder/OEM must provide Escalation Matrix of Telephone Numbers for Service Support.

2.6 Purchase Preference (State):

Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs from the State of Bid Inviting Authority having valid Udyam Registration and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry / State of Bid inviting authority. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service and Buyer will decide eligibility for purchase preference based on documentary evidence submitted, while evaluating the bid. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 20 % of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 100 percentage of total quantity. The buyers are

advised to refer the OM No. F.1/4/2021-PPD dated 18.05.2023 OM_No.1_4_2021_PPD_dated_18.05.2023 for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2.7 Past Project Experience:

Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.

2.8 Buyer Added Bid Specific ATC:

Buyer uploaded ATC document [Click here to view the file.](#)

नोट: यह सिस्टम जनरेटेड फाइल है। कोई हस्ताक्षर की आवश्यकता नहीं है।

Note: This is system generated file. No signature is required.

अनुबंध | Contract



अनुबंध क्रमांक | Contract No: GEMC-511687717164767

अनुबंध तिथि | Generated Date : 16-Mar-2024

संगठन विवरण | Organisation Details

प्ररूप | Type : State Government
मंत्रालय | Ministry :
विभाग | Department : Panchayats and Rural Housing Department Gujarat
संगठन का नाम | Organisation Name : N/A
कार्यालय क्षेत्र | Office Zone: District Panchayat Tapi

खरीदार विवरण | Buyer Details

पद | Designation : Chief District Health Officer
संपर्क नंबर | Contact No. : 02626-221812-
ईमेल आईडी | Email ID : buycon221.prhdg.gj@gembuyer.in
जीएसटीआईएन | GSTIN : -
पता | Address : BLOCK NO - 9, 2ND FLOOR, JILLA Seva Sadan Campus,
District Panchayat, Panvadi, Vyara - Tapi,
SURAT, GUJARAT-394650, India

वित्तीय स्वीकृति विवरण | Financial Approval Detail

आईएफडी सहमति | IFD Concurrence : No
प्रशासनिक अनुमोदन का पदनाम |
Designation of Administrative Approval: CDHO TAPI
वित्तीय अनुमोदन का पदनाम |
Designation of Financial Approval : CDHO TAPI

भुगतान प्राधिकरण विवरण | Paying Authority Details

Role: BUYER
भुगतान का तरीका |
Payment Mode: Offline
पद | Designation : Chief District Health Officer
ईमेल आईडी | Email ID : buycon221.prhdg.gj@gembuyer.in
जीएसटीआईएन | GSTIN : -
पता | Address: BLOCK NO - 9, 2ND FLOOR, JILLA Seva Sadan Campus,
District Panchayat, Panvadi, Vyara - Tapi,
Surat, GUJARAT-394650, India

विक्रेता विवरण | Seller Details

जेम विक्रेता आईडी | GeM Seller ID : 0D0E200001130179
कंपनी का नाम | Company Name : SHIV TRADING
संपर्क नंबर | Contact No. : 08866545280
ईमेल आईडी | Email ID : shivtradingsrt@gmail.com
पता | Address : FIRST,1,VAIBHAV COMPLEX,NEAR VAIBHAV CINEMA,
Surat, GUJARAT-394650, -
एमएसएमई पंजीकरण संख्या | MSME Registration number : -
जीएसटीआईएन | GSTIN: 24AISPV8250F1ZR

*जिसके नाम के पक्ष में GST/TAX इनवॉइस पेश किया जाएगा | GST / Tax invoice to be raised in the name of - Consignee

वितरण निर्देश | Delivery Instructions : GOOD PRODUCT GOOD SERVICE

उत्पाद विवरण | Product Details

#	आइटम विवरण Item Description	आइटम विवरण Ordered Quantity	इकाई Unit	इकाई मूल्य (INR) Unit Price (INR)	कर विभाजन (INR) Tax Bifurcation (INR)	मूल्य (INR) में सभी शुल्क और कर सहित Price (Inclusive of all Duties and Taxes in INR)
1	उत्पाद का नाम Product Name : BioGene 451-500 L Ultra low temperature laboratory deep freezer ब्रांड Brand : BioGene ब्रांड प्रकार Brand Type : Registered Brand कैटलॉग की स्थिति Catalogue Status: Catalogue not verified by OEM कैसे बेचा जा रहा है Selling As : Reseller not verified by OEM श्रेणी का नाम और चतुर्थांश Category Name & Quadrant : Ultra low temperature laboratory deep freezer (Q3) मॉडल Model: BTI-ULDF-451 एचएसएन कोड HSN Code: HSN not specified by seller	7	pieces	50,000	NA	350,000
कुल ऑर्डर मूल्य Total Order Value (in INR)						350,000

परेषिती विवरण | Consignee Detail

क्र.सं. S.No	परेषिती Consignee	वस्तु Item	लॉट नंबर Lot No.	मात्रा Quantity	दिनांक के बाद डिलीवरी शुरू करना है Delivery Start After	वितरण पूरा कब तक करना है Delivery To Be Completed By
	पद Designation : Chief District Health Officer ईमेल आईडी Email ID : buycon221.prhdg.gj@gembuyer.in संपर्क Contact : 02626-221812-	BioGene 451-500 L Ultra				

1	जीएसटीआईएन GSTIN : - पता Address : BLOCK NO - 9, 2ND FLOOR, JILLA Seva Sadan Campus, District Panchayat, Panvadi, Vyara - Tapi, SURAT, GUJARAT-394650, India	low temperature laboratory deep freezer	-	7	16-Mar-2024	20-May-2024
Product Specification for BioGene 451-500 L Ultra low temperature laboratory deep freezer						
विनिर्देश Specification	उप-विनिर्देश Sub-Spec	मूल्य Value				
Standards	Conformity to Standards	CE (with 4 digit notified number)				
	Certification number and date	4532 (14 Dec 2021)				
	Conformity to standard conforms to standards IEC- 61010 for electrical safety latest amendment	Yes				
Performance Parameters	Purpose	Used for storage of various samples , sensitive stem cells, plasma , semen , virus, bone graft and other biological samples				
	Capacity in liters	451-500 L				
	Freezer body	Freezer should have galvanised steel body with tough powder coated exterior finish constructed on steel				
	Material of inside chamber	SS				
	Type of Cabinet	Vertical				
	Ground clearance in mm	100 mm				
	Should have heavy duty lockable castors and levelling for adjustments and installation	Yes				
	Refrigerants	CFC-free, HCFC-free non flammable refrigerants				
	Refrigeration system must be energy efficient with pull down time in hrs	5.2 hr				
	Operating Temperature with 1° C increment	minus 55°C to minus 86°C				
	Freezer must attain -80°C while operating at ambient temperature of 32°C	Yes				
	Number of holding racks	30				
	Control system	Fully programmable microprocessor controlled with membrane keypad and eye level control panel				
	Number of inner storage compartments with insulated doors and adjustable height	3				
	Freezer should have heated air vent and easily accessible front panel air filter	Yes				
	Digital temperature display	Yes				
	Should have battery back up for the display and security lock for the display	Yes				
	Alarms	Alarms for audible and visible alarm system for unwanted temperature rise, sudden power failure , system failure and battery low				
	Noise level in dB	60				
	Energy consumption rate (@KWh/day)	5				
	Stabilizer should be capable to run any voltage between 190V - 270 V	Yes				
	Double door with locking lids	Yes				
	Availability of decompression valve facility to lower air pressure inside freezer for easy door opening	Yes				
	Panels	Vacuum polyurethane foam panels				
	Number of compressor	2				
	Temperature uniformity	±3°C or less				
	Temperature stability of system	±3°C				
	Warranty of Stabilizer in Years	2				
	Warranty of Freezer (except compressor) in Years (from the date of installation)	3				
	Warranty of compressor in years	3				
	Vacuum insulation panel	Yes				
	Freezer must have washable condenser filter indicator which should keep fins free of dust to maintain peak cooling efficiency	Yes				
	One 5KVA servo stabilizer to be supplied with freezer	Yes				

Additional Parameters	CO ₂ cylinder should be supplied with freezer for backup	Yes
	Number of corrosion resistant racks	3
	Pairs of Cryogloves to be provided	1
	Number of Ice scraper to be provided	1
	Tempearture Chart recorder to be provided	No
	Availability of USB port to download event log and freezer setting	Yes
Reports	Manufacturer should have ISO certification	Yes
	ISO certification date and number	7837636 (12 Dec-2021)
	Copies of all certifications and reports to be provided to buyer on demand at time of supplies	Yes

टिप्पणी | Note:: Seller has given an undertaking that it has made arrangements for getting the stores from an authorized distributor / dealer / channel partner of the OEM of the offered product. At the time of delivery of goods, Seller will provide necessary chain documents (in the form of GST Invoice) to prove that the supplied goods are genuine and are being sourced from an authorized distributor / dealer / channel partner of the OEM. In case of any complaint about genuineness of the supplied products, Seller shall be responsible for providing genuine replacement supplies.

ईपीबीजी विवरण | ePBG Detail

NA

नियम और शर्तें | Terms and Conditions

1. Special terms and conditions- Version:1 effective from 11-11-2022

1.1

- Comprehensive warranty:** Comprehensive warranty shall include preventive maintenance including calibration as per technical/ service /operational manual of the manufacturer, service charges and spares. During the warranty period commencing from date of the successful completion of warranty period, Service personnel shall visit each consignee site as recommended in the manufacturer's technical/ service /operational manual, at least once in six months. warranty shall not be including the consumables. Further there will be 98% uptime warranty during warranty period on 24 (hrs) X 7 (days) X 365 (days) basis, with penalty, to extend warranty period by double the downtime period.
- Service centres:** Details of Service outlets in India to render services for equipment to be furnished to buyer/consignees with complete address,telephone numbers, e mails etc at time of making the supplies. It shall be the responsibility of seller to ensure that authorized service centres are available to cater to the areas where supplies are made within reasonable distance from where the service calls can be handled.Details of toll-free numbers for service call and online registration of service requests also to be provided buyer/consignee at the time of supplies.
- Source of supply:** It shall be responsibility of seller to provide Documents regarding source of equipments such as copy of Performa invoice or any other documents to establish that the products supplied are manufactured by OEM indicated and sourced from them.
- Packing and Marking:** Medical equipments being very delicate and sensitive packing for the goods should be strong and durable enough to withstand transit including transshipment (if any), rough handling, open storage etc. without any damage, deterioration etc. .The size, weights and volumes of the packing cases, remoteness of the final destination of the goods, availability or otherwise of transport and handling facilities at all points during transit up to final destination,. Quality of packing, the manner of marking within & outside the packages and provision of accompanying documentation shall take into consideration the type of medical equipments being supplied. The accessories shall be suitably labelled and packed. Each of the package shall be marked on three sides with indelible paint of proper quality: indicating contract number and date, brief description of goods including quantity, Packing list reference number, country of origin of goods and any other relevant details.
- Spare Parts:** Seller shall provide materials, information etc. pertaining to spare parts manufactured and supplied by the OEM. It shall be ensured that the required spares are available for purchase at least for 10 years from date of supplies. In case due to any reasons the production of the spare parts is discontinued sufficient advance notice should be given to the buyer/consignee before such discontinuation to provide adequate time to purchase the required spare parts etc. Further, OEM and their service centres/dealers shall carry sufficient inventories to assure ex-stock supply of consumables and spares for the equipments so that the same are available.
OEM or reseller shall always accord most favoured client status to the buyer/consignee and shall give the most competitive price for spares and consumables of its machines/equipments supplied.
- Installation, Training, Manuals:** Seller shall be responsible to carry out Installation & commissioning, Supervision and Demonstration of the goods. They shall provide required jigs and tools for assembly, minor civil works for the completion of the installation and Training of Consignee's representatives for operating and maintaining the equipment and supplying required number of operation & maintenance manual for the goods. In case the category parameters are specifying any requirements regarding the installations, training and manuals the same shall also be applicable.
- Electrical safety checking:** Sellers are required to make sure that they furnish the list of equipments for carrying out routine and preventive maintenance to buyer/consignee .They should make sure to periodically check the electrical safety aspects as per BIS Safety Standards or equivalent .In case they do not have required equipment for such testing should ensure that the equipments checked for electrical safety compliance through labs with facilities for such checking during every preventive maintenance call.
- Software:** All software updates should be provided free of cost during warranty period.
- Any other Terms and Conditions** which is not included or at variance with the conditions specified in STC/GTC, may be added by the buyer through Additional Terms and Conditions in the bid to ensure items are procured from authentic/validated source with appropriate and applicable quality. The above terms and conditions are in reverse order of precedence i.e. ATC shall supersede specific STC which shall supersede General Terms and Conditions ("GTC"), whenever there are any conflicting provisions.

2. General Terms and Conditions-

- This contract is governed by the [General Terms and Conditions](#), conditions stipulated to this Product/Service as provided in the Marketplace.
- This Contract between the Seller and the Buyer, is for the supply of the Goods and/ or Services, detailed in the schedule above, in accordance with the General Terms and Conditions (GTC) unless otherwise superseded by Goods / Services specific Special Terms and Conditions (STC) and/ or BID/Reverse Auction Additional Terms and Conditions (ATC), as applicable

नोट: यह सिस्टम जनरेटेड फाइल है। कोई हस्ताक्षर की आवश्यकता नहीं है। इस दस्तावेज़ का प्रिंट आउट भुगतान/लेनदेन उद्देश्य के लिए मान्य नहीं है।

Note: This is system generated file. No signature is required. Print out of this document is not valid for payment/ transaction purpose.

अनुबंध | Contract



अनुबंध क्रमांक | Contract No: GEMC-511687721097886

अनुबंध तिथि | Contract Generated Date : 18-Mar-2026

बोली/आरए/पीबीपी संख्या | Bid/RA/PBP No.: [GEM/2026/B/7083530](#)

खरीद का माध्यम | Procurement Mode: BID/RA

संगठन विवरण Organisation Details	खरीदार विवरण Buyer Details
प्ररूप Type : State Government	पद Designation : Assistant Director of Agriculture Training
मंत्रालय Ministry : -	संपर्क नंबर Contact No. : -
विभाग Department : Agriculture and Co-operation Department Gujarat	ईमेल आईडी Email ID : buycon89.da.gj@gembuyer.in
संगठन का नाम Organisation Name : Directorate of Agriculture	जीएसटीआईएन GSTIN : -
कार्यालय क्षेत्र Office Zone: Joint Director of Agriculture Extension Surat	पता Address : Office of Deputy Director of Agriculture (Training) Farmer Training Center, Navapur Road, Ahwa, Dist. Dang, The Dangs, 394710, The Dangs, GUJARAT-394710, India

वित्तीय स्वीकृति विवरण Financial Approval Detail	भुगतान प्राधिकरण विवरण Paying Authority Details
आईएफडी सहमति IFD Concurrence : No	Role: BUYER
प्रशासनिक अनुमोदन का पदनाम Designation of Administrative Approval: Deputy Director of Agriculture (Training) ,Ahwa-Dang	भुगतान का तरीका Payment Mode: Offline
वित्तीय अनुमोदन का पदनाम Designation of Financial Approval : Deputy Director of Agriculture (Training) ,Ahwa-Dang	पद Designation : Assistant Director of Agriculture Training
	ईमेल आईडी Email ID : buycon89.da.gj@gembuyer.in
	जीएसटीआईएन GSTIN : -
	पता Address: Office of Deputy Director of Agriculture (Training) Farmer Training Center, Navapur Road, Ahwa, Dist. Dang, The Dangs, 394710, The Dangs, GUJARAT-394710, India

परिषद् विवरण Consignee Details			
क्र.सं. S.No	परिषद् नाम & पता Consignee Name & Address	सेवा विवरण Service Description	मात्रा Quantity
1	संपर्क Contact : - ईमेल आईडी Email ID : buycon89.da.gj@gembuyer.in जीएसटीआईएन GSTIN : - पता Address : Office of Deputy Director of Agriculture (Training) Farmer Training Center, Navapur Road, Ahwa, Dist. Dang, The Dangs, 394710, The Dangs, GUJARAT-394710, India	Horticulture Service - Lumpsum based - Solar Dryer for Multipurpose Drying; Propagation of Horticultural Crops	Project/Lumpsum Based

सेवा प्रदाता विवरण Service Provider Details
जेम विक्रेता आईडी GeM Seller ID : 0D0E200001130179
कंपनी का नाम Company Name : SHIV TRADING
संपर्क नंबर Contact No. : 08866545280
ईमेल आईडी Email ID : shivtradingsrt@gmail.com
पता Address : FIRST,1,VAIBHAV COMPLEX,NEAR VAIBHAV CINEMA, Surat, GUJARAT-394650, -
एमएसएमई पंजीकरण संख्या MSME Registration number : -
जीएसटीआईएन GSTIN: 24AISPV8250F1ZR (R)
खरीदार द्वारा सत्यापित एमएसएमई स्थिति MSME Status as verified by buyer : Not Verified

*जिसके नाम के पक्ष में GST/TAX इनवॉइस पेश किया जाएगा | GST / Tax invoice to be raised in the name of - Buyer

सेवा विवरण Service Details	
सेवा प्रारंभ दिनांक (नवीनतम) Service Start Date (latest by): 25-Mar-2026	सेवा समाप्ति तिथि Service End Date : 27-Apr-2026
श्रेणी नाम Category Name : Horticulture Service - Lumpsum based	

बिलिंग चक्र Billing Cycle: quarterly			
विवरण Description		Quantity	Lumpsum Cost for providing Services as per Scope of Work
Scope of Service	Solar Dryer for Multipurpose Drying	Project/Lumpsum Based	494750
Service Inclusions	Propagation of Horticultural Crops		
Propagation Method to be used	Solar Dryer for Multipurpose Drying		
Estimated number of plants to be maintained/cultivated as per scope	1000		

of work	
कुल राशि (सूत्र) Total Amount (Formula) : (Lumpsum Cost for providing Services as per Scope of Work*1)	
ऐडऑन के बिना कुल मूल्य Total Value without Addons(INR)	494750
कुल एडऑन मूल्य Total Addon Value(INR)	0
ऐडऑन सहित कुल मूल्य Total Value Including Addons(INR)	494750
अनुबंध की राशि Amount of Contract	
सभी शुल्क और करों सहित कुल अनुबंध मूल्य Total Contract Value Including All Duties and Taxes(INR)	494750
एसएलए विवरण SLA Details	
Special Terms and Conditions for Horticulture Service - Lumpsum Based	
1. Agreement Overview	
This Agreement represents a Special Terms and Conditions (STC) and Service Level Agreement (SLA) between the Buyer and Horticulture Service Provider. The purpose of this agreement is to facilitate rendering of Horticulture Service – Lumpsum Based Model on the Buyer's premises or any other premises designated by Buyer. This Agreement outlines the scope of work, obligations of both buyer and service provider, special terms and conditions related to Service delivery and payment of Services for mutual understanding of the stakeholders. The Agreement remains valid till completion of scope of Services or end of Contractual duration (whichever is earlier) unless either superseded by a revised agreement mutually endorsed by the stakeholders or terminated by either of the parties thereof. The Services Contracts placed through GeM shall be governed by following set of Terms and Conditions: - General terms and conditions for Services; - Service Specific STC of the Services Contracts shall include the Service level agreement (SLA) for the Service; - BID / Reverse Auction specific ATC. The above terms and conditions are in reverse order of precedence i.e. ATC supersedes Service specific STC which supersede GTC, whenever there are any conflicting provisions. The above set of terms and conditions along with scope of work and Service level agreement as enumerated in the document shall be construed to be part of the Contract between Buyer and Service Provider.	
2. Objectives and Goals	
The objective of this agreement is to ensure that all the commitments and obligations are in place to ensure consistent delivery of Services to Buyer by Service Provider. The goals of this agreement are to: - Provide clear reference to Service ownership, accountability, roles and responsibilities of both parties. - Present a clear, concise and measurable description of Services offered to the Buyer. - Establish terms and conditions for all the involved stakeholders, it also includes the actions to be taken in case of failure to comply with conditions specified. - To ensure that both the parties understand the consequences in case of termination of Services due to any of the stated reasons. The agreement will act as a reference document that both the parties have understood the above-mentioned terms and conditions and have agreed to comply by the same. The agreement can also be revised/ modified on mutual consent of the stakeholders.	
3. Parties to Agreement	
The main stakeholders associated with this agreement are below- Buyer: Buyer is responsible to provide clear instructions, approvals and timely payments for the Services availed Service Provider: Service Provider is responsible to provide all the required Services in timely manner. Service Provider may also include Seller, any authorized agents, assignees, successors and nominees as described in the agreement. The responsibilities and obligations of the stakeholders have been outlined in this document. The document also encompasses Service level/ deductions in case of non-adherence to the defined terms and conditions. It is assumed that all stakeholders have read and understood the same before signing the document.	
4. Scope of Services	
The Horticulture Service is the art of cultivating and managing a garden or potted plant, or the science of growing various type of plants/trees and to keep property green and lovely by using different and most appropriate type of Services with the best suited consumables. The Horticulture Service -Lumpsum Based model of horticulture Service deals with end-to-end development and maintenance of the Garden/ Lawn/ Field/ Pots for the defined scope of work by Buyer on an outcome basis. Under Scope of Service, Buyer must select the required scope of the Service for the selected model for the Contract period. The various custom or add on parameters that can be added/selected by the Buyer to the Service's scope of work at the bid stage.	
5. Terms and Conditions	
5.1 Buyers Obligations	
- The Buyer shall assign a point of contact for the Service Provider, who shall manage and co-ordinate all the Service Provider related issues/requirements. - The Buyer shall define penalties, feedbacks, comprehensive SLA, etc. to ensure the timely and quality delivery of Service. - In case of any change in the Applicable Law with respect to taxes and duties, then the remuneration and reimbursable expenses payable to the Service Provider shall be increased or decreased accordingly by the Buyer under this Contract. - The Buyer shall provide water and power required for the Works free of cost at one point. However, the Service Provider shall arrange distribution of the same at its own cost and charges.	

5. Buyer should provide free access to all parts of designated area (Garden/Lawn/Field/Nursery/Park) for the purpose of development, maintenance, inspection, treatment or surveillance as per the scope of work.
6. In case, the Buyer has not included consumables in the Contract, then Buyer shall provide consumable materials as and when required for the work, such as good earth, manure, fertilizers, insecticides, pesticides, seasonal seeds, seedling and plants.
7. The Buyer shall monitor standard of Service with respect to delay in delivery, damage to property during delivery, use of unapproved technique and chemicals and manpower to deliver the Service.
8. The Buyer through its authorized representative, reserves the right of altering the specifications of works of adding to or omitting any items of work or of having portions of the same carried out in the premises by others and such alterations and variations shall not violate this Contract.
9. The Buyer shall also arrange necessary gate/ entry pass to Buyer's premise/ designated premise for the manpower.
10. The Buyer should provide space for storage of machinery, tools, consumables, chemicals and any other equipment to the Service Provider.
11. The Buyer shall make necessary arrangements for use of basic facilities like water pots/ machines, washrooms etc. for manpower working at Buyer's premise/ designated premise.
12. The Buyer must immediately report to the designated representative of the Service Provider/onsite supervisor in case of any problems, complaints, incidents during the Contract period including any form of inappropriate behavior/ improper uniform by staff.
13. **Price Variation Clause:**

"It is advisable to include Price Variation Clause in the long term Contracts to take care of the increase/decrease in prices of various ingredients which majorly affect the overall price of the Service. Buyers are therefore advised to include the Price Variation Clause (PVC) in the bid document through ATC for long term Contracts. The additional payment, if any, on account of PVC can be done offline till such time online functionality is developed on GeM."

5.2 Service Provider Obligations

1. Service Provider shall ensure the level of Service required is of the highest professional standard and shall deliver the Service within stipulated time frame as agreed in the Contract. The delay in execution of Service shall attract penalties.
2. The Service Provider must ensure that the paths, fountains and other hard landscape features or structures, and furniture in the Buyer's premises, including electrical fittings and lights etc. are not damaged in any manner while carrying out landscape operations.
3. Except supply of free water by the Buyer in the designated area (Garden/ Lawn/ Field/ Nursery/ Park), all other inputs like fertilizer, sapling, seeds and all tools and implements used for growing flowers and plantation or for cutting grass and removing weeds, are to be supplied by the Service Provider and disposing off the wastes are to be borne by the Service Provider.
4. The Service Provider must engage one full time supervisor who preferably should be an experienced horticulturist.
5. The Service Provider shall ensure that all maintenance works related to the deployed machinery and tools will be carried out in off duty hours to minimize productivity losses.
6. The Service Provider should issue identity badges (as per approved format) to all his staff being engaged to carry out the work including the supervisor.
7. The Service Provider will depute one person from its own establishment for monitoring of the work and verification of daily attendance of the workers deployed by the Service Provider at the premises of the Buyer. The said deputed person will report to the designated officer of the Buyer for further conformation on daily basis or as per Buyer requirement. Further, such deputed person will be available as and when required for any verification.
8. The Service Provider shall be responsible for proper maintenance of all registers and records, make regular and full payment of labor charges/ salaries and other payments as per labor laws under minimum wages act and payment of wages.
9. The Service Provider shall have all the necessary permits/ licenses/ clearances/ certificates under the CIBRC and other applicable laws for use of insecticides/pesticides as part of the Service.
10. The Service Provider shall cover its personnel for personal accident and death whilst performing the duty and the Buyer shall own no liability and obligation in this regard.
11. The Service Provider shall take comprehensive insurance cover, including third party unlimited liability, to insure against loss, damage, death or injury which may occur to any physical property or to any person which may arise out of the performance of the Contract or the machinery and equipment deployed by Service Provider. The Buyer shall not assume any liability in this regard.
12. The Service Provider will be responsible for the conduct and discipline of the manpower deployed by him at the Buyer's designated premises responsible for any breaches/violations committed by the persons.
13. During Sunday & other holidays, the Service Provider must deploy essential staff to ensure minimal maintenance, particularly for watering of pots and maintenance of nursery.
14. In case of exigency, Service Provider shall deploy the required number of staff beyond normal duty hours if directed so to carry out the works within the scope of agreement.
15. The Service Provider must ensure that unnecessary wastage of water does not occur at any time and must protect the irrigation fittings etc. from any damage due to mishandling or digging in the designated area (Garden/ Lawn/ Field/ Nursery/ Park). Any damage to existing irrigation system shall be made good by the Service Provider at his cost.
16. The Service Provider is obligated to use chemicals only certified by WHO, Central Insecticides Board and Bureau of Indian Standards (BIS)
17. The Service Provider shall be responsible for safe disposal of left Pesticides/ Fertilizers/ Other chemicals or other gardening materials or leftovers/other garbage produced in gardening, as per the norms of the user department/ local administration. Standard universal precautions to be followed while handling Pesticides/ Fertilizers/ Other chemicals used.
18. The Service Provider shall not appoint any Sub-Service Provider for the work assigned to him.
19. Service Provider shall be responsible for making good to the satisfaction of the Buyer any loss or any damage to all structures and properties within the park premises. If such loss or damage is due to fault and/or the negligence or wilful acts or omission of the Service Provider, his employees, agents, representatives or sub- Service Providers, he shall make good the loss as assessed by the Buyer. In such a case, the Service Provider will be liable to replace the item at his own cost or the Buyer shall have the right to recover the loss from the Service Provider's monthly bill. The decision of the Buyer in this matter will be final.

5.3 Other Terms & Conditions (If Applicable)

Development and maintenance works

1. Plant materials shall be well formed and shaped true to type, and free from disease, insects and defects such as knots, windburn, injuries, abrasion or disfigurement.
2. All plant materials shall be healthy, sound, and vigorous, free from plant disease, insect pests or their eggs, and shall have healthy, well-developed root systems.
3. All plants shall conform to the requirements specified in the plant list, except that plants larger than specified may be used if approved but use of such plants shall not increase the Contract price.
4. Care shall be taken that the plant sapling when planted is not buried deeper than in the nursery, or in the pot.
5. Planting should not be carried out in waterlogged soil.
6. Replace the plants mortalities in case of natural plant death and due to negligence but not be held responsible to replace any plant/ tree/ grass/ mortality against damage done by natural calamities such as earthquake, Fire, Flood, and storm.
7. Topsoil or good earth shall be a friable loam, typical of cultivated topsoil of the locality containing at least 2% of decayed organic matter (humus). It shall be taken from a well-drained arable site. It shall be free of subsoil, stones, earth clods, sticks, roots or other objectionable extraneous matter or debris. It shall contain no toxic material.
8. The Service Provider will prepare and maintain flower beds, seasonal and perennial both and grow all varieties of summer and winter season flowers in the respective months. The flowerbeds should be thoroughly dug and prepared at least 3 to 4 weeks before actual plantation. Actual schedule of plantation of winter and summer seasonal flowers will vary as per the specific directions of the Buyer.

9. Newly planted trees must be held firmly although not rigidly by staking to prevent a pocket forming around the stem and newly formed fibrous roots being broken by mechanical pulling as the tree rocks.
10. Tree pits shall be dug a minimum of three weeks prior to backfilling. The pit sizes shall be as specified further herein. It shall be replaced with soil mixture as specified further herein. While digging the pits, the top- soil up to a depth of 30 cm may be kept aside, if found good (depending upon site conditions) and mixed with the rest of the soil. If the soil is bad below, it shall be replaced with the soil mixture as specified further herein. The bottom of the pit shall be forked to break up the subsoil.
11. No tree pits shall be dug until final tree positions have been pegged out for approval.
12. Positions of shrubs (to be planted) should be marked out in accordance with the planting plan. When shrubs are set out, precautions should be taken to prevent roots drying. Planting holes (of sizes as specified further herein) should be excavated for longer shrubs. Polythene and other non-perishable containers should be removed, and any badly damaged roots carefully pruned.
13. All areas to be planted with shrubs shall be excavated, trenched to a depth of 600 mm, refilling it with finely mixed good garden soil and excavated earth (after breaking the clods and mixing with sludge in the proper ratio. Backfill soil should be firmed as filling proceeds, layer by layer, care being taken to avoid damaging the roots.
14. Watering is to be done according to weather and stage of growth of plant. The Service Provider should allow for the adequate watering of all newly planted trees and shrubs immediately after planting and he shall during the following growing seasons, keep the plant material well-watered. Care must be taken to avoid over watering, however.
15. The maintenance of lawn should include weeding, trimming and pruning of grass by mowing with grass cutting machines, top dressing, using of manure, fertilizers, spraying of insecticides, pesticides, fungicides, weedicides, sweeping and watering etc. and patch work by planting the doo grass where dead.
16. The maintenance of trees, shrubs and creepers should include: the maintenance of all trees, shrubs and creepers by their manuring, watering hoeing, pruning and trimming, replacement of old dead one by one and to ensure enough supply of air and water. Circular diaries around the tree trunk are to be prepared. The creepers across wall are to be provided support by rope and other trees and shrubs by bamboo sticks as required.
17. The maintenance of hedges should include: their watering, hoeing of channels, pruning and trimming and replacing old and dead plants by planting the new saplings/cuttings dead/uprooted plants etc.
18. The Service Provider will trim/cut out the Hedges every month. The required frequency will be determined by the Buyer based upon the seasonality and may vary as per Buyer's directions.
19. Upon completion of planting work under the Contract all trees should be trimmed/pruned, and all injuries repaired where necessary. The amount of trimming/pruning shall be limited to the minimum necessary to remove dead or injured twigs and branches and to compensate for the loss of roots.
20. The Service Provider will mow the grass at regular intervals, i.e. at least once every after 15 days (twice in a month) or as stipulated by the Buyer and should not be allowed to over grow under any circumstances. The cutting of grass is required to be mowed up to soil level (1" growth) from soil level.
21. Organic manure shall be used wherever possible to maximize nutrient recovery.
22. Periodic / frequent and regular checks to be carried out for pests and diseases and in the event of infestation, prompt spraying of appropriate pesticide/fungicide etc. should be done in accordance with the manufacturer's instructions or as per the direction.
23. Service Provider should adhere to periodicity of spraying chemicals e.g. insecticides, pesticides, herbicides etc.
24. Weeds shall be removed with their roots and dumped away from planted areas. In some seasons, more weeding will be necessary, and weeding should be continued until areas are weed free. Only selective weed killers approved by Buyer In charge/competent authority shall be applied if desirable.
25. Light garden sweeping, removal and disposal of garden refuse and cut grass to a dumping place approved by the Buyer In charge/competent authority. No grass/ refuse to be left over night in the garden area.
26. Booming and cleaning of entire horticulture area including surrounding area on daily basis is assumed in scope of work.
27. The Service Provider shall place potted plants in the rooms and areas, as may be necessary for beautification of the Buyer's Premises including ornamental plants in lobbies, corridors, office rooms, reception rooms, waiting halls etc., as designated by Buyer In charge/competent authority of the Buyer, for which Service Provider would be entrusted with maintenance of horticulture work
28. The Service Provider will whitewash/Terracotta's of all the trees up to the height of 4 feet and 2 feet respectively once in a month, or as per the directions of the Buyer.
29. During special occasions such as Independence Day, Republic Day and any other major national/state holiday, the Service Provider will be responsible for floral decoration of the office.
30. Existing vegetation that is mentioned to be retained or as per direction should be protected from damage and maintained in good and effective conditions.
31. Service Provider should adhere to the descriptions and development conditions/guidelines for different varieties of fruits, flower and vegetables crops as prescribed by The Indian Institute of Horticultural Research (a subsidiary of Indian Council of Agricultural Research), including growth duration, soil type, seasonality, yield potential, blooming or harvesting cycles etc., for planning and implementing of horticultural practices. ([Ref-https://www.iihr.res.in/varieties](https://www.iihr.res.in/varieties))

Waste Management

1. Collection, handling, segregation, transportation and disposal of waste may cause environmental degradation and nuisance. To prevent it, waste must be handled and disposed properly. As such, collection, handling, segregation, transportation and disposal of all waste shall be strictly managed by the Service Provider and all related costs shall be borne by him.
2. Training of staff should be undertaken by the Service Provider in order to increase awareness of waste management issues.

Safety, Security and Compliance

1. The Service Provider should deliver the Service within stipulated time frame as agreed in the Contract.
2. The supervisor and workers should be certified and should have valid license to perform such Service.
3. A mandatory, detailed contingency plan(s)/evacuation plan during the period chemical spraying and in the event of overdose of chemical spraying shall be provided by the Service Provider.
4. Inspection of quality by supervisors during the execution of Service by the staff should be regularized/ periodic.
5. The Service Provider shall employ only adult trained, efficient and responsible staff with good health and sound mind for providing required Services.
6. The manpower deployed for the Development and Maintenance of Horticultural Work should be enough, qualified and trained to carry out the Contracted scope of work and have the knowledge of safety procedures.
7. The Service Provider should ensure that his staff use proper safety measures while performing their duties to avoid any accidents
8. Smoking and chewing tobacco etc. is strictly prohibited during working hours. Any of the deployed staff for horticulture Services found smoking/chewing in the Buyer's premises shall be removed immediately and shall not be deployed again over the Contract duration.
9. The Service Provider shall be solely responsible for the redressal of grievances/ resolution of disputes relating to persons deployed. The Buyer shall, in no way be responsible for settlement of such issues whatsoever.
10. No deployed manpower shall be allowed to stay in the Buyer's premise unnecessarily after working hours without Buyer's permission.
11. The personnel deployed shall undergo medical examination at the expense of the Service Provider to ensure that they are free from any communicable diseases and furnish medical examination certificate as and when called for by the Buyer.
12. The staff provided by the Service Provider shall not be deemed employees of the Buyer hence the compliance of the applicable labor laws and acts, i.e. the Minimum Wages Act, Payment of Wages Act, PF, ESI Act, Payment of Bonus Act, Contract Labor [R&A] Act and other relevant laws will be the sole responsibility of the Service Provider and Buyer will in no way be responsible for any violation or liabilities in this regard
13. The Service Provider would be bound by the conditions about police verification of the deployed staff and their medical fitness. A verification report in respect of all the personnel of Service Provider from the concerned police station of concerned residential areas should be submitted and also list of employees with biodata of each employee posted to the Institute along with photo and thumb impression should be handed over to the designated officer of Buyer. Any changes should be informed immediately.

Defined Timelines

1. Service Provider shall adhere to the timelines in the Schedule of Work/Scope of Work provided by the Buyer in the Contract for carrying out the horticultural Service.
2. The daily normal working hours would be stipulated by Buyer and may vary as per the Buyer's directions and actual requirements.

Service Assumptions

1. The Service Provider shall not sublet any part of the Contract and shall be responsible and liable to deliver the Services as per the Contract.
2. For all intents and purposes, the Service Provider shall be the "Employer" within the meaning of different Rules and Acts in respect of manpower so deployed. The persons deployed by the Service Provider shall not have any claim whatsoever like employer and employee relationship against the Buyer Department.
3. Only authorized staff of the Service Provider will be allowed entry at the premises of the Buyer on production of identity badge.
4. The Garden/Lawn/Field/Nursery/Park premises are the property of the Buyer and Service Provider is only permitted to enter and manage the premises as long the Contract remains valid.
5. Guarding/maintaining the Service Provider's machinery at Buyer's premises shall be the responsibility of Service Provider.
6. Service Provider will not use his machinery (when deployed at Buyer premises) or Buyer's machinery for any personal use or for any other activity not related to the scope of work under the Contract.
7. The Service Provider will be responsible for providing fresh flowers, where necessary, to the office rooms, lobbies, corridors, reception halls etc. as well as for the various events and functions organized directly by the Buyer.
8. The cost of the Contract shall be valid for initial Contract period. No price escalation, other than minimum wages revision, shall be entertained by the Buyer during the period.
9. Any violation of Contractual obligations by the Service Provider shall attract penalties, before imposing a deduction, the Buyer will provide 3 days prior notice to the Service Provider to make its representation. The Service Provider confirms and agrees that deduction whenever becomes payable, shall be deducted by the Buyer from the payments due to the Service Provider.

6. Payment Terms and Conditions

6.1 Payment shall be made once the Service Provider submits the invoice online on GeM alongwith other relevant documents and after generation of Service Delivery Acceptance Certificate (SDAC) by consignee for the submitted invoice.

6.2 All deductions (if applicable) will be accounted/deducted during SDAC generation before making the payments. Payment will be made through bank transfer only and in no circumstance cash/ cheque payment will be made.

7. Deductions / LD

In case of non-compliance of the standards of the Services to be provided as per this agreement, the Buyer would be at liberty to levy such deduction and terminate the Contract as per the conditions detailed out below:

Breach of SLA is defined as performance lower than requisite performance in this Agreement. The following conditions shall specify breach of Contract and Buyer shall have the right to immediately terminate the Contract and can also lead to blacklisting of Service Provider

1. Cumulative penalties reach 10% of the Contract value
2. SubContracting or outsourcing of the Contract, in part or whole

Sr. No.	Description	Deduction for Breach			Remarks
		1 st Instance	2 nd Instance	3 rd Instance	
1.	Non-compliance of the Service Provider with respect to Scope of Work/Schedule of Work and Service Provider Obligations as per SLA	2% of monthly billing with cumulative deduction not exceeding 10% of the monthly bill	3% of monthly billing with cumulative deduction not exceeding 10% of the monthly bill	Contract may be cancelled in case of i) the cumulative deductions rise to 10% of the Contract value ii) repeated breach of any SLA beyond 3(three) instances as per Buyer discretion.	
2.	Non-performance of the Service Provider with respect to with respect to Services Standards and Outcomes	2% of monthly billing with cumulative deduction not exceeding 10% of the monthly bill Immediate payment of Damages equivalent to the value of the article damaged/lost/theft and replacement of the same	3% of monthly billing with cumulative deduction not exceeding 10% of the monthly bill Immediate payment of Damages equivalent to the value of the article damaged/lost/theft and replacement of the same.	Contract may be cancelled in case of i) the cumulative deductions rise to 10% of the Contract value ii) repeated breach of any SLA beyond 3(three) instances as per Buyer discretion.	
3.	Damage to Buyer's assets or equipment, caused by the Service Provider's staff	Immediate payment of Damages equivalent to the value of the article damaged/lost/theft. Replacement of damaged asset within 2 days	Immediate payment of Damages equivalent to the value of the article theft/ lost/ damaged. Replacement of employee within 2 days/ cancellation of Contract as decided by the Buyer depending on the gravity of the act.	Cancellation of the Contract with cancellation charges @ 10% of the order value	
Indiscipline/Breach of Code of					

4.	Conduct i.e. quarreling, abusing, etc. between the Service Provider's staff, causing disturbance in the premises, use of intoxicants (alcohol, drugs smoking or eating tobacco in the premises during working hours etc.)	Rs. 150/- Warning/ counselling of staff as decided by the Buyer depending on the gravity of the act	Rs. 300/- Immediate replacement of employee within 2 days as decided by the Buyer	Rs. 500/- Immediate replacement of employee within 2 days as decided by the Buyer	Deduction amount may vary at the Buyer's discretion depending on severity of default				
5.	Absence/ non functionality of any required equipment	Rs. 150/- per day Warning issued by Buyer	Rs. 300/- per day	Rs. 500/- per day	Deduction amount may vary at the Buyer's discretion depending on severity of default				
6.	In case of sub Contracting or outsourcing of the Contract, in part or whole.	Immediate replacement within 2 days/ cancellation of the Contract with cancellation charges @ 10%, as decided by the Buyer depending on the gravity of the act.	Cancellation of the Contract with cancellation charges @ 10% of the Contract value	Cancellation of the Contract with cancellation charges @ 10% of the Contract value					
8. Amendment to Contract During Service delivery period some conditions may occur when the Buyer and/ or Service Provider may require to amend the Contract, some of such conditions may be as followed- 8.1 Amendment of the Contract after event of Force Majeure: A Force Majeure (FM) means extraordinary events or circumstance beyond human control such as an event described as an act of God (like a natural calamity) or events such as a war, strike, riots, crimes (but not including negligence or wrongdoing, predictable/seasonal rain and any other events specifically excluded in the clause).In case of occurrence of such event which has affected either party directly to perform the agreed Services, the Contract can be amended. However, cause, evidence and nature of such effect shall be notified to the other party. 8.2 Amendment in statutory variations: All statutory variations leading to increase in the cost of the Contract will be debited to the Buyer accounts.									
9. Termination of Contract The Agreement shall be come to an end either on completion of the Contract Period or shall be terminated for the following reasons: 9.1 Mutual consent: The Contract may be terminated based on mutual consent in case the Services are no longer required. Termination based on mutual consent will not attract any deductions or shall not be liable for any extra payments other than payment of invoices raised till the time of termination including notice period. 9.2 Breach of Contractual obligations: The Buyer shall have the right to terminate the Contract effective immediately by giving written notice to the Service Provider if, the Service Provider breaches a material provision of this Contract where that breach is not capable of remedy; or if the Service Provider breaches any provision of this Contract and fails to remedy the breach within 14(fourteen) days after receiving notice requiring it to do so. 9.3 Breach of SLAs: The Contract may also be terminated by the Buyer if i) the cumulative deductions rise to 10% of the Contract value ii) repeated breach of any SLA beyond 3(three) instances as per Buyer discretion. However, termination of this Contract shall not affect any accrued rights or remedies of either party.									
10. Service Formula Total Cost = Lumpsum Cost *****End of Document*****									
अतिरिक्त आवश्यक डेटा/दस्तावेज़: खरीदार Additional Required Data/Document(s) : Buyer 1. Scope of work(custom requirements if any) : click here अतिरिक्त डेटा/दस्तावेज़ : विक्रेता Additional Data/Document(s) : Seller 1. Certificate (Requested in ATC) : click here 2. Additional Doc 1 (Requested in ATC) : click here 3. Additional Doc 2 (Requested in ATC) : click here ईपीबीजी विवेरण ePBG Detail <table><tr><td>सलाहकार बैंक Advisory Bank :</td><td>State Bank of India</td></tr><tr><td>ईपीबीजी प्रतिशत (%) ePBG Percentage(%):</td><td>5.00</td></tr></table> बोली लगाने वाले को बोली के नियमों और शर्तों के अनुसार लागू ईपीबीजी प्रस्तुत करना होगा The bidder shall furnish ePBG as applicable as per bid's terms and conditions						सलाहकार बैंक Advisory Bank :	State Bank of India	ईपीबीजी प्रतिशत (%) ePBG Percentage(%):	5.00
सलाहकार बैंक Advisory Bank :	State Bank of India								
ईपीबीजी प्रतिशत (%) ePBG Percentage(%):	5.00								
नियम और शर्तें Terms and Conditions 1. General Terms and Conditions-									

- 1.1 This contract is governed by the [General Terms and Conditions](#), conditions stipulated to this Product/Service as provided in the Marketplace.
- 1.2 This Contract between the Seller and the Buyer, is for the supply of the Goods and/ or Services, detailed in the schedule above, in accordance with the General Terms and Conditions (GTC) unless otherwise superseded by Goods / Services specific Special Terms and Conditions (STC) and/ or BID/Reverse Auction Additional Terms and Conditions (ATC), as applicable
- 1.3 All GeM Sellers / Service Providers are mandated to ensure compliance with all the applicable laws / acts / rules including but not limited to all Labour Laws such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972 etc. Any non-compliance will be treated as breach of contract and Buyer may take suitable actions as per GeM Contract.

2. Buyer Added Bid Specific Terms and Conditions-

2.1 Generic

OPTION CLAUSE: The buyer can increase or decrease the contract quantity or contract duration up to 25 percent at the time of issue of the contract. However, once the contract is issued, contract quantity or contract duration can only be increased up to 25 percent. Bidders are bound to accept the revised quantity or duration

2.2 Generic

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

2.3 Forms of EMD and PBG:

Bidders can also submit the EMD with Account Payee Demand Draft in favour of

Deputy Director of Agriculture (Training)

payable at

Ahwa Dang

Bidder has to upload scanned copy / proof of the DD along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date / Bid Opening date.

2.4 Forms of EMD and PBG:

Bidders can also submit the EMD with Fixed Deposit Receipt made out or pledged in the name of A/C

Deputy Director of Agriculture (Training)-Ahwa Dist-Dang

. The bank should certify on it that the deposit can be withdrawn only on the demand or with the sanction of the pledgee. For release of EMD, the FDR will be released in the favour of the bidder by the Buyer after making endorsement on the back of the FDR duly signed and stamped along with covering letter. Bidder has to upload scanned copy/ proof of the FDR along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date/ Bid Opening date

2.5 Certificates:

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

2.6 Buyer Added Bid Specific ATC:

Buyer uploaded ATC document [Click here to view the file](#).

2.7 Purchase Preference (State):

Bid reserved for MSE from the State of Bid Inviting Authority: Procurement under this bid is reserved for purchase from Micro and Small Enterprises from the State of Bid Inviting Authority having valid Udyam Registration and whose credentials are validated online through Udyam Registration portal. If the bidder wants to avail themselves of the reservation benefit, the bidder must be the manufacturer / OEM of the offered product on GeM. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible to participate in this bid. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility based on documentary evidence submitted, while evaluating the bid. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2.8 Purchase Preference (State):

Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs from the State of Bid Inviting Authority having valid Udyam Registration and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry / State of Bid inviting authority. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service and Buyer will decide eligibility for purchase preference based on documentary evidence submitted, while evaluating the bid. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1 + 15 % of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 15 percentage of total quantity. The buyers are advised to refer the OM No. F.1/4/2021-PPD dated 18.05.2023 OM_No.1_4_2021_PPD_dated_18.05.2023 for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2.9 Past Project Experience:

Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.

Note:

1. Service Providers are required to raise invoices online as per the contract terms on GeM portal. Timely invoice submission is mandatory for compliances, smooth payment processing, and will also contribute to improving their ratings.
2. The Excess settlement has been enabled for this contract. The service provider can claim additional charges, if applicable, in the invoice. Any additional charges must be supported with documentary evidence.

नोट: यह सिस्टम जनरेटेड फाइल है। कोई हस्ताक्षर की आवश्यकता नहीं है।

Note: This is system generated file. No signature is required.

अनुबंध | Contract



अनुबंध क्रमांक | Contract No: GEMC-511687730484683

अनुबंध तिथि | Generated Date : 09-Jul-2025

बोली/आरए/पीबीपी संख्या | Bid/RA/PBP No.: [GEM/2025/B/5929539](#)

संगठन विवरण Organisation Details	खरीदार विवरण Buyer Details
प्ररूप Type : State Government	पद Designation : DENTAL SURGEN
मंत्रालय Ministry : -	संपर्क नंबर Contact No. : 02628-223181-
विभाग Department : Health & Family Welfare Department Gujarat	ईमेल आईडी Email ID : buycon196.hfwdg.gj@gembuyer.in
संगठन का नाम Organisation Name : N/A	जीएसटीआईएन GSTIN : -
कार्यालय क्षेत्र Office Zone: CHC NIZAR	पता Address : REFERRAL HOSPITAL & COMMUNITY HEALTH CENTRE, Kukarmunda TA-Kukarmunda DIST-TAPI PIN CODE NO-394380, Surat, GUJARAT-394380, India

वित्तीय स्वीकृति विवरण Financial Approval Detail	भुगतान प्राधिकरण विवरण Paying Authority Details
आईएफडी सहमति IFD Concurrence : No	Role: PAO
प्रशासनिक अनुमोदन का पदनाम Designation of Administrative Approval: chc kukarmunda	भुगतान का तरीका Payment Mode: Offline
वित्तीय अनुमोदन का पदनाम Designation of Financial Approval : chc kukarmunda	पद Designation : Account Cum DEO
	ईमेल आईडी Email ID : pao151.hfwdg.gj@gembuyer.in
	जीएसटीआईएन GSTIN : -
	पता Address : REFERRAL HOSPITAL & COMMUNITY HEALTH CENTRE, Kukarmunda TA-Kukarmunda DIST-TAPI PIN CODE NO-394380, Surat, GUJARAT-394380, India

विक्रेता विवरण Seller Details
जेम विक्रेता आईडी GeM Seller ID : 0D0E200001130179
कंपनी का नाम Company Name : SHIV TRADING
संपर्क नंबर Contact No. : 08866545280
ईमेल आईडी Email ID : shivtradingsrt@gmail.com
पता Address : FIRST,1,VAIBHAV COMPLEX,NEAR VAIBHAV CINEMA, Surat, GUJARAT-394650, -
एमएसएमई पंजीकरण संख्या MSME Registration number : -
जीएसटीआईएन GSTIN: 24AISPV8250F1ZR (R)

*जिसके नाम के पक्ष में GST/TAX इनवॉइस पेश किया जाएगा | GST / Tax invoice to be raised in the name of - Buyer

वितरण निर्देश | Delivery Instructions : NA

उत्पाद विवरण Product Details						
#	आइटम विवरण Item Description	आइटम विवरण Ordered Quantity	इकाई Unit	इकाई मूल्य (INR) Unit Price (INR)	कर विभाजन (INR) Tax Bifurcation (INR)	मूल्य (INR में सभी शुल्क और कर सहित) Price (Inclusive of all Duties and Taxes in INR)
1	उत्पाद का नाम Product Name : AVI Healthcare Infant Radiant Warmer ब्रांड Brand : AVI Healthcare ब्रांड प्रकार Brand Type : Registered Brand कैटलॉग की स्थिति Catalogue Status: OEM verified catalogue कैसे बेचा जा रहा है Selling As : OEM verified Reseller श्रेणी का नाम और चतुर्थांश Category Name & Quadrant : Infant Warmer (V2) (Q2) मॉडल Model: IW6000A Infant Warmer एवएसएन कोड HSN Code: HSN not specified by seller	2	pieces	79,550	NA	159,100
कुल ऑर्डर मूल्य Total Order Value (in INR)						159,100

परोक्षिती विवरण Consignee Detail						
क्र.सं. S.No	परोक्षिती Consignee	वस्तु Item	लॉट नंबर Lot No.	मात्रा Quantity	दिनांक के बाद डिलीवरी शुरू करना है Delivery Start After	वितरण पूरा कब तक करना है Delivery To Be Completed By
	पद Designation : - ईमेल आईडी Email ID : buycon196.hfwdg.gj@gembuyer.in					

1	संपर्क Contact : 02628-223181- जीएसटीआईएन GSTIN : - पता Address : REFERRAL HOSPITAL & COMMUNITY HEALTH CENTRE, Kukarmunda TA-Kukarmunda DIST-TAPI PIN CODE NO-394380, Surat, GUJARAT-394380, India	AVI Healthcare Infant Radiant Warmer	-	2	09-Jul-2025	24-Jul-2025
Product Specification for AVI Healthcare Infant Radiant Warmer						
विनिर्देश Specification	उप-विनिर्देश Sub-Spec	मूल्य Value				
GENERAL	Product Description	Infant Radiant Warmer				
	Purpose	Infant Radiant Warmer is a body warming device are used to maintain the body temperature of newborn infants.				
PRODUCT INFORMATION	Facility to display set and observed skin temperature in degree C and heater power output separately	Yes				
	User friendly touch panel control	Yes				
	Type of heater	Ceramic / High Alloy Steel / Quartz infrared / Calrod heater				
	Audiovisual alarm facility	Overheating beyond set temperature range,Spurt in Heater output i.e. more than 60% heater output for 10 minutes system should raise alarm and cutoff heater,Power failure,Heater failure,Patien temperature less/Greater than required/set temperature,Probe failure,Temperature Probe disconnect				
	Warmer head should be rotatable in different direction, so as to allow taking X-ray	Yes				
	Observation light Luminance	≥ 1000 Lux				
	Colour temperature	3700K to 5100K				
	Setable Temperature	32 to 38 Degree C				
	Temperature resolution	≤ 0.1 Degree C				
	Temperature accuracy	≤ 0.2 Degree C				
	Facility to lock the keyboard to avoid unwanted user modification of the set parameters	Yes				
	Should have a Feather Touch operation with large digital display and comprehensive alarms, Control Panel should be liquid proof and allow easy and hygienic disinfection	Yes				
	Manual Mode can adjust Heater Output 10 -100 %, with 10% increment	Yes				
	In Manual Mode an auditory and visual alarm shall be given at least every 15 minutes	Yes				
	Bed height from Floor (in cm)	80 to 100				
	Height Adjustable feature	Motorized				
	Bed Distance from the heat source (in cm)	80 to 90				
	Lockable castor wheels	Yes				
	Power ON Indication	Yes				
	Provision for X-Ray cassette holder	Yes				
	Markings on the bassinet and X-Ray cassette holder to enable proper positioning of the baby while doing the X-Ray	Yes				
	Number of tubing ports on the side walls (For cable management)	2 to 4				
	Height of the side walls over the mattress (in mm)	≥ 110				
	Bay bed should be crevice free for ease of cleaning, infection control	Yes				
	Mattress used should be of biocompatible material	Yes				
	Transparent collapsible side walls easily detachable for cleaning	Yes				
	Skin temperature probe with biocompatible baby contact material	Yes				
	Mobility, portability on castors	Yes				
	2/4 of the castors should have brakes	Yes				
	Castor size	≥ 4 inch				
	Tilt-able bed (10 to 12 Deg) Lockable in position at any	Yes				

	angle	
Settings	Settings with facility to clearly display the selected mode	Manual mode and Servo mode
	Provision for Set temperature range (in servo mode)	32 to 38 Degree C
	User's interface	Manual and Servo controlled temperature regulation
	Display	LCD/ LED
	Software and/or standard of communication(where ever required)	Inbuilt software; Interruption and restoration of the power supply does not change the preset values
	Device shall not overbalance when placed in any transport position of normal use on a 10° inclined plane from the horizontal plane	Yes
	Transformers of devcie shall be protected against overheating in the event of short circuit or overload of any output winding	Yes
	Temperature on the baby mattress when the warmer is operating under steady temperature condition	Not exceed 43 Degree C
	Temperature differences on the mattress	Not exceed 2 Degree C
PHYSICAL CHARACTERISTICS	Overall Weight of equipment	≥ 50 Kgs
	Mattress Dimension Length	60 Cms or more
	Mattress Dimension Width	40Cms or more
	Auditory alarm shall be audible with minimum distance of 6 feet	Yes
	Should maintain desired set temperature and uniform heat distribution in baby cradle	Yes
ACCESSORIES	Number of Skin temperature probe (Reusable)	10
	Number of Skin temperature probe (Disposable)	Not Provided
	Number of IV pole	1
	Number of Storage drawer	2
	Number of Accessory tray (Minimum weight bearing capacity of 5Kg or more)	1
	Number of X- ray tray	1
	Number of Mattress	1
	Thermal reflector to fix the skin probe to be supplied with each equipment unit	>= 50 units
ELECTRICAL REQUIREMENT	Power Requirements	220 to 240V, 50 Hz AC, ± 10% of input
CERTIFICATIONS	Compliance to Medical Device Rules (MDR) 2017 as amended till date	Yes
	Availability of valid Medical Device license for the product issued from the competent authority defined under Drugs and Cosmetic Act 1940 and Rules made there under as amended till date	Yes
	Valid Medical Device License Number	MFG/MD/2024/000067
	Certification for manufacturing unit	ISO:13485 (Latest)
	Availability of Test Report for each supplied batch/product as per Medical Device Rule (MDR) 2017 as amended till date	Yes
	Submission of all necessary certifications, licenses and test reports to the buyer at the time of bid submission or along with supplies as per buyer requirement	Yes
	Electrical Safety Compliance Standard	IEC 60601-1-2 or Equivalent BIS
WARRANTY	Warranty (Option of comprehensive warranty is available through bidding only, which if opted will supersede normal warranty in the catalogue)	3 year
ADDITIONAL REQUIREMENTS	Additional Requirement	NA
ईपीबीजी विवरण ePBG Detail		

सलाहकार बैंक Advisory Bank :	NA
ईपीबीजी प्रतिशत (%) ePBG Percentage(%):	NA
नियम और शर्तें Terms and Conditions	
1. Special terms and conditions- Version:1 effective from 01-08-2024	
1.1	1. All Provisions of Drugs and Cosmetics Act, 1940 and Rules (including Medical Device Rule 2017) made there under as amended till date will always be applicable. This will include all notifications issued by Central Drugs Standard Control Organization (CDSCO), Ministry of Health & Family Welfare (MoHFW) and Department of Pharmaceuticals (DOP), Ministry of Chemicals & Fertilizers time to time in this regard. 2. The sellers are registered on GeM based on self declaration of valid Medical Device License, product certification, test reports etc. However, buyers must check and validate the details at their end for all applicable licenses and certifications e.g., validity and authenticity/genuineness of Medical Device license, product certification, manufacturer certification/licenses, test reports etc. 3. In case of authorized resellers/distributors, it will be the legal & regulatory liability of the manufacturer to ensure that their resellers/distributors are operating in compliance with all relevant laws and regulations and are properly licensed to sell the manufacturer's products, including verifying the validity and authenticity of Medical Device license held by them. 4. The price offered by the seller/bidder shall not, in any case exceed the DPCO/NPPA controlled price or price fixed by State Government, if any. The seller must reduce the prices if there is any reduction in DPCO/NPPA ceiling price or price fixed by State Government, if any. 5. Any other Terms and Conditions which is not included or at variance with the conditions specified in STC/GTC, may be added by the buyer through Additional Terms and Conditions (ATC) in the bid to ensure items are procured from authentic/validated source with appropriate and applicable quality. The above terms and conditions are in reverse order of precedence i.e. ATC shall supersede specific STC which shall supersede General Terms and Conditions (GTC), whenever there are any conflicting provisions. 6. Comprehensive warranty: Comprehensive warranty shall include preventive maintenance including calibration as per technical/ service /operational manual of the manufacturer, service charges and spares. During the warranty period commencing from date of the successful completion of warranty period, Service personnel shall visit each consignee site as recommended in the manufacturer's technical/ service /operational manual, at least once in six months. warranty shall not be including the consumables. Further there will be 98% uptime warranty during warranty period on 24 (hrs) X 7 (days) X 365 (days) basis, with penalty, to extend warranty period by double the downtime period. 7. Service centres: Details of Service outlets in India to render services for equipment to be furnished to buyer/consignees with complete address, telephone numbers, e mails etc at time of making the supplies. It shall be the responsibility of seller to ensure that authorized service centres are available to cater to the areas where supplies are made within reasonable distance from where the service calls can be handled. Details of toll-free numbers for service call and online registration of service requests also to be provided buyer/consignee at the time of supplies. 8. Source of supply: It shall be responsibility of seller to provide Documents regarding source of equipments such as copy of Performa invoice or any other documents to establish that the products supplied are manufactured by OEM indicated and sourced from them. 9. Packing and Marking: Medical equipments being very delicate and sensitive packing for the goods should be strong and durable enough to withstand transit including transshipment (if any), rough handling, open storage etc. without any damage, deterioration etc. .The size, weights and volumes of the packing cases, remoteness of the final destination of the goods, availability or otherwise of transport and handling facilities at all points during transit up to final destination,. Quality of packing, the manner of marking within & outside the packages and provision of accompanying documentation shall take into consideration the type of medical equipments being supplied. The accessories shall be suitably labelled and packed. Each of the package shall be marked on three sides with indelible paint of proper quality: indicating contract number and date, brief description of goods including quantity, Packing list reference number, country of origin of goods and any other relevant details. 10. Spare Parts: Seller shall provide materials, information etc. pertaining to spare parts manufactured and supplied by the OEM. It shall be ensured that the required spares are available for purchase at least for 10 years from date of supplies. In case due to any reasons the production of the spare parts is discontinued sufficient advance notice should be given to the buyer/consignee before such discontinuation to provide adequate time to purchase the required spare parts etc. Further, OEM and their service centres/dealers shall carry sufficient inventories to assure ex-stock supply of consumables and spares for the equipments so that the same are available. OEM or reseller shall always accord most favoured client status to the buyer/consignee and shall give the most competitive price for spares and consumables of its machines/equipments supplied. 11. Installation, Training, Manuals: Seller shall be responsible to carry out Installation & commissioning, Supervision and Demonstration of the goods. They shall provide required jigs and tools for assembly, minor civil works for the completion of the installation and Training of Consignee's representatives for operating and maintaining the equipment and supplying required number of operation & maintenance manual for the goods. In case the category parameters are specifying any requirements regarding the installations, training and manuals the same shall also be applicable. 12. Electrical safety checking: Sellers are required to make sure that they furnish the list of equipments for carrying out routine and preventive maintenance to buyer/consignee .They should make sure to periodically check the electrical safety aspects as per BIS Safety Standards or equivalent .In case they do not have required equipment for such testing should ensure that the equipments checked for electrical safety compliance through labs with facilities for such checking during every preventive maintenance call. 13. Software: All software updates should be provided free of cost during warranty period.
2. General Terms and Conditions-	
2.1 This contract is governed by the General Terms and Conditions, conditions stipulated to this Product/Service as provided in the Marketplace. 2.2 This Contract between the Seller and the Buyer, is for the supply of the Goods and/ or Services, detailed in the schedule above, in accordance with the General Terms and Conditions (GTC) unless otherwise superseded by Goods / Services specific Special Terms and Conditions (STC) and/ or BID/Reverse Auction Additional Terms and Conditions (ATC), as applicable 2.3 All GeM Sellers / Service Providers are mandated to ensure compliance with all the applicable laws / acts / rules including but not limited to all Labour Laws such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972 etc. Any non-compliance will be treated as breach of contract and Buyer may take suitable actions as per GeM Contract.	
3. Buyer Added Bid Specific Terms and Conditions-	
3.1	<i>Generic</i> OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 % of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be (Increased quantity ÷ Original quantity) × Original delivery period (in days), subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.
3.2	<i>Generic</i> Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this

effect with bid.

3.3 Turnover:

Bidder Turn Over Criteria: The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

3.4 Turnover:

OEM Turn Over Criteria: The minimum average annual financial turnover of the OEM of the offered product during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the OEM is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria. In case of bunch bids, the OEM of CATEGORY RELATED TO primary product having highest bid value should meet this criterion.

3.5 Service & Support:

Dedicated /toll Free Telephone No. for Service Support : BIDDER/OEM must have Dedicated/toll Free Telephone No. for Service Support.

3.6 Service & Support:

Escalation Matrix For Service Support : Bidder/OEM must provide Escalation Matrix of Telephone Numbers for Service Support.

3.7 Certificates:

ISO 9001: The bidder or the OEM of the offered products must have ISO 9001 certification.

3.8 Certificates:

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

3.9 Past Project Experience:

Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.

3.10 Past Project Experience:

The Bidder / OEM (themselves or through reseller(s)), should have executed project for supply and installation / commissioning of same or similar Category Products during preceding 3 financial years (i.e. current year and three previous financial years) as on opening of bid, as per following criteria:

- (i) Single order of at least 35% of estimated bid value; or
- (ii) Two orders of at least 20% each of estimated bid value; or
- (iii) Three orders of at least 15% each of estimated bid value.

Satisfactory Performance certificate issued by respective Buyer Organization for the above Orders should be uploaded with bid. In case of bunch bids, the Category related to primary product having highest bid value should meet this criterion

3.11 Buyer Added Bid Specific ATC:

Buyer uploaded ATC document [Click here to view the file](#).

नोट: यह सिस्टम जनरेटेड फाइल है। कोई हस्ताक्षर की आवश्यकता नहीं है। इस दस्तावेज़ का प्रिंट आउट भुगतान/लेनदेन उद्देश्य के लिए मान्य नहीं है।

Note: This is system generated file. No signature is required. Print out of this document is not valid for payment/ transaction purpose.

अनुबंध | Contract



अनुबंध क्रमांक | Contract No: GEMC-511687737189181
 अनुबंध तिथि | Contract Generated Date : 27-Mar-2026
 बोली/आरए/पीबीपी संख्या | Bid/RA/PBP No.: [GEM/2026/B/7212853](#)
 खरीद का माध्यम | Procurement Mode: BID/RA

संगठन विवरण Organisation Details प्ररूप Type : State Government मंत्रालय Ministry : - विभाग Department : Health & Family Welfare Department Gujarat संगठन का नाम Organisation Name : N/A कार्यालय क्षेत्र Office Zone: Community Health Center Shamgahan		खरीदार विवरण Buyer Details पद Designation : Dental Surgeon संपर्क नंबर Contact No. : 999-9999990- ईमेल आईडी Email ID : chcshamgahan13@gmail.com जीएसटीआईएन GSTIN : - पता Address : "Community Health Center Shamgahan, Near Shivaji Temple, Shamgahan, Ta.Ahwa Dist.Dang- 394730", THE DANGS, GUJARAT-394730, India																																											
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सेवा प्रदाता विवरण Service Provider Details जेम विक्रेता आईडी GeM Seller ID : 0D0E200001130179 कंपनी का नाम Company Name : SHIV TRADING संपर्क नंबर Contact No. : 08866545280 ईमेल आईडी Email ID : shivtradingsrt@gmail.com पता Address : FIRST,1,VAIBHAV COMPLEX,NEAR VAIBHAV CINEMA, Surat, GUJARAT-394650, - एमएसएमई पंजीकरण संख्या MSME Registration number : - जीएसटीआईएन GSTIN: 24AISPV8250F1ZR (R) खरीदार द्वारा सत्यापित एमएसएमई स्थिति MSME Status as verified by buyer : Not Verified																																													
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Lump Sum Basis

All Facility Management Services related Contracts/ Agreement placed through GeM shall be governed by following set of Terms and Conditions:

1. General terms and conditions for Services ("GTC");
2. Service Specific Terms and Conditions ("STC") of the Services contracts shall include the Service Level Agreement ("SLA") for the service;
3. BID / Reverse Auction specific Additional Terms and Conditions ("ATC") as specified by the Buyer.

The above terms and conditions are in reverse order of precedence i.e. ATC supersedes Service specific STC which supersede GTC, whenever there are any conflicting provisions. The above set of terms and conditions along with scope of work and SLA as enumerated in the document shall be construed to be part of the Contract between the Buyer and the Service Provider. The service will be provided in bid only mode.

1 Objectives and Goals

The objective of this Agreement is to ensure that all the commitments and obligations are in place to ensure consistent delivery of services to the Buyer by the Service Provider. The goals of this Agreement are to:

- i. Provide clear reference to service ownership, accountability, roles and responsibilities of both parties
- ii. Present a clear, concise and measurable description of services offered to the Buyer
- iii. Establish terms and conditions for all the involved stakeholders, it also includes the actions to be taken in case of failure to comply with conditions specified
- iv. To ensure that both the parties understand the consequences in case of termination of services due to any of the stated reasons

The Agreement will act as a reference document that both the parties have understood the above-mentioned terms and conditions and have agreed to comply by the same. The Agreement can also be revised/ modified on mutual consent of the stakeholders.

2 Parties to the Agreement

The main stakeholders associated with this Agreement are below-

- i. **Buyer:** The Buyer is responsible to provide clear instructions, approvals and timely payments for the services availed
- ii. **Service Provider:** The Service Provider is responsible to provide all the required services in timely manner. The Service Provider may also include seller, any authorized agents, assignees, successors and nominees as described in the Agreement

The responsibilities and obligations of the stakeholders have been outlined in this document. The document also encompasses service level/ deductions in case of non-adherence to the defined terms and conditions. It is assumed that all stakeholders have read and understood the same before signing the document.

3 Scope of Services

This service deals with hiring of facility management services which encompasses all activities related to keeping a complex operating with all its infrastructural and maintenance related requirements. This service includes multiple disciplines to ensure functionality, comfort, safety and efficiency of the built environment by integrating people, place, process and technology. It typically includes a wide range of function and support services such as housekeeping, security, property or building management, basic engineering services, mail and messenger services, records management, safety and other support duties.

Type of Model: This service offering is on Lump sum basis, for the contract duration, the Buyer can take the item-wise pricing of various components involved in this service, through Financial Upload document.

Types of Services: This service offering provides multiple services under a single contract for professional maintenance and upkeep of the property (commercial, residential, hospitality, healthcare, industrial, etc.). Buyer of this service will have the option to choose the type of service and service components as per their requirement, for which the following categories have been defined:

#	Services	Service Component
1	Housekeeping	· Cleaning & Sanitation
		· Front Desk Management
		· Mail Management/ Runner
		· Waste Management (other than healthcare facility)
		· Waste Management (Healthcare)
		· Laundry Services
		· Work Routine Services (Healthcare)
		· Work Routine Services (other than healthcare facility)
		· Regular work of Guest House/ Hostel (Hospitality) (such as porter services, lift man, etc.)
		· Physical Security
2	Security Services	· Parking Management
		· CCTV Control & Operations
		· Visitor Management & Access Control
3	Horticulture Services	· Gardening
		· Landscape
4	Patient Support Services	· Assisting the patient in getting into or out of the bed
		· Attend to the personal hygiene of patients
		· Preparing and carrying the patients for operations, laboratory, X-ray and other investigations
		· Carrying and transporting patients to various wards/ departments in the hospital
		· Assist in maintaining stocks of linen and non-medical supplies
		· Assist the nurses or doctors in diagnostic and treatment procedures

#	Services	Service Component
		Assist in sterilization of instruments, appliances and dressings and dressing of postoperative wounds
		- Bedbug control - Disinfestation - General Pest Control - Rodent control - Termite Control (Spot treatment/ drilling treatment)
5	Pest Control Service	- Vector control (mosquitos/ insects) - Cockroach control - Fumigation - Pest proofing (Pest proofing is closure of holes and cracks that may potentially cause pest infestation) - Infection control (Surface sterilization)
		- Plumbing - Water Supply
6	O&M Mechanical	- Pumps - Fire Fighting System - Lift - Electrical Supply of HT/LT - DG Sets
7	O&M of Electrical Work	- UPS - AC Chillers - HVAC - Transformers
Manpower Required: Service Provider shall provide manpower based on the Buyer's selection of manpower profile, quantity and skill level. The Buyer of this service will have the option to choose the type of manpower as per their requirement, for which the following categories have been defined:		
#	Type of Manpower Required	
1	Cleaner / Sweeper	
2	Office Attendant	
3	Receptionist	
4	Mail Attendant/ Runner	
5	Guest house attendant	
6	Porter	
7	Laundry wash boys	
8	Security Guard	
9	Gardener	
10	Ward Boys/Girls	
11	Plumber	
12	Electrician	
13	Fire Supervisor	
14	AC Plant Operator	
15	Help Desk Support Executive	
16	Others - Please Specify	

Consumables: The Service Provider shall provide consumables such as cleaning agents, equipment, etc. based on the Buyer's selection of cost to be borne by the Buyer/ Service Provider/ reimbursable by the Buyer. In case wherein consumables are to be provided by the Service Provider and the cost is to be included in the Contract cost, a list of suggestive consumables will be provided by the Buyer.

3.1 Service Details and Standards

- i. The Service Provider shall abide at all times by the all existing labor enactments and rules made there under, regulations, notifications and bye laws of the State or Central Government or local authority and any other labor law (including rules), regulations, bye laws that may be passed or notification that may be issued under any labor law in future either by the State or the Central Government or the local authority
- ii. The Service Provider shall make his own arrangements for the engagement of all staff and labor, local or other, and for their payment, housing, feeding and transport.
- iii. The Service Provider is responsible for co-ordination and management of delivery of services from AMC vendors/suppliers/contractors, therefore for ensuring safety compliance by them, FMC is required to monitor the delivery of service and report client in case of non-compliance of safety requirements immediately
- iv. The manpower deployed should maintain polite & courteous behavior towards the Buyer. "Misbehavior" which may include, but not limited to, consumption of alcohol during or prior to duty, denial of duty during service hours as defined by user, use of abusive language, theft, shall attract deductions as per provisions of the Contract.

3.2 Service Assumptions

- i. The Service Provider shall not sublet any part of the Contract. The Service Provider may act as an aggregator of manpower to be provided. However, it is the Service Provider who shall be responsible and liable to deliver the services as per the Contract.
- ii. The manpower provided by the Service Provider shall not be deemed employees of the Buyer hence the compliance of the applicable labor laws and acts and other relevant laws will be the sole responsibility of the Service Provider.
- iii. The Service Provider shall not deploy any manpower that is ailing from any contagious disease.
- iv. The Service Provider shall verify the character & antecedent of manpower to be deployed.
- v. The persons deployed during the course of their work shall perform integrity to the Buyer and shall not disclose/ share any qualified documents and information which they are not supposed to divulge to the Service Provider/ third parties.
- vi. The Service Provider shall indemnify the Buyer against all the losses, injuries and any kind of damage arrived due to its activities
- vii. The Buyer will in no way be responsible for violation of labor laws and /or infringement of any other law for the time being in force, either by the manpower provided or by the Service Provider.
- viii. The attendance of the employees will be entered in the register provided by the Service Provider and/or in the Aadhaar based Biometric attendance system at the Buyer's premises. The persons deployed should be polite, cordial and efficient while handling the assigned work and their actions should promote good will and enhance the image of the Corporation or office concerned. The Service Provider shall be responsible for any act of indiscipline on the part of the persons deployed.
- ix. The Service Provider shall ensure that all the relevant licenses / registrations / permissions which may be required for providing the services are valid during the entire period of the contract; failing so shall attract the appropriate deductions. The documents relevant in this regard shall be provided by the Service Provider to the Buyer on demand.
- x. The Service Provider shall be required to keep the Buyer updated about the change of address, change of the Management etc. from time to time.

4 Service Provider's Obligation

- i. The Service Provider shall ensure the level of service required is of the highest professional standard and shall ensure full compliance to the terms and conditions of the Contract.
- ii. The Service Provider shall attend to emergency works in time. No extra payment will be made for working on odd hours for emergency works.
- iii. The Service Provider will be required to submit list of the manpower being deployed with photo ID, address proof, police verification certificate and educational qualifications before deputing the workers. The Service Provider shall be solely responsible for the credentials/ acts of his staff /workers
- iv. The Service Provider shall provide at his own cost proper uniform and badges and photo identity cards to the manpower deployed.
- v. In an event that, for any reason, the manpower provided change their contact number during the tenure of the contract then service provider will immediately notify the buyer of the above change.
- vi. The Service Provider shall be responsible for ensuring compliance with the provisions related to Labour Law [Central/State] and specially Workmen Compensation Act, EPF Laws, ESIC Laws, Income tax laws and Minimum Wages Laws, Contract Labour (Regulations Abolition Act) and any other relevant acts as applicable at present or in future during the tenure of the Contract and as may be enforced from time to time. Onus of compliance of all the applicable Laws/Acts/Rules/Bye-Laws/Regulations/Standards/Guidelines/Notification/Recommended Practices, etc. shall rest with the Service Provider only and the Buyer will not be liable in any manner.
- vii. The Service Provider shall produce to the Buyer the details of payments of statutory benefits like bonus, leave, relief etc. from time to time to its personnel.
- viii. The Service Provider shall cover all its personnel under the relevant laws of EPF, Labor, ESIC etc. Proof of the same should be submitted by the Service Provider.
- ix. The Service Provider shall submit a copy of wages sheet showing monthly wages paid to its personnel.
- x. The Service Provider shall cover its personnel for personal accident and death whilst performing the duty and the Buyer shall own no liability and obligation in this regard.
- xi. The Service Provider shall also provide at its own cost all benefits statutory or otherwise to its deployed personnel and the Buyer shall not have any liability whatsoever on this account.
- xii. The Service Provider shall employ only manpower who has completed eighteen years of age and not above 65 years of age
- xiii. The Service Provider shall provide the documentary proof for the qualifications and experience of the manpower deployed by them. The bio-data, qualification and experience of the said manpower should be certified by the Service Provider.
- xiv. The Service Provider shall not deploy or shall discontinue deploying the person(s), if desired by the Buyer and must ensure prompt replacement of the personnel without any additional cost to the Buyer. The personnel being deployed shall ordinarily be continued and should not be changed without written intimation and consultation with the Buyer.
- xv. The Service Provider would be bound by the conditions with regard to police verification of the deployed staff and their medical fitness.
- xvi. Adequate supervision shall be provided to ensure correct performance of the services in accordance with the prevailing requirements agreed upon between the two parties.
- xvii. In an event that the Service Provider fails to deliver or fails to carry out tasks as per schedule due to absence of personnel or any other reasons, the Service Provider at his own cost shall make alternate arrangement by providing similar manpower for which agreement is entered into, without any extra charges. Failure to do so will evoke deductions and the Buyer shall have right to recover damages as per the provisions of the Contract.
- xviii. The Service Provider shall be personally responsible for any theft, misconduct and /or disobedience on the part of personnel so provided by him.
- xix. The working hours and days of the manpower will be as per the existing applicable rules of the respective Central/State Government organizations. However, they have to work on holidays, if necessary and required based on demand of work.
- xx. The Service Provider shall be fully responsible for the acts of their employees/ agents/ representatives / consultants/ team members and shall fully indemnify the Buyer for any kind of losses or damages caused by its employees/ agents/ representatives/ team members/ consultants. The Buyer shall not be responsible for any claim from any employees/ agents/ representatives /consultant / team member employed or engaged by the Service Provider. The Service Provider shall wholly and fully be responsible for any such claims.

5 Buyer's Obligations

- i. The location for reporting shall be provided by the Buyer to the Service Provider.

- ii. The Buyer must immediately report to the designated representative of the Service Provider for any problems, complaints, incidents or accidents that occur during the contract including any form of inappropriate behavior/ improper uniform by the personnel.
- iii. The Buyer shall notify the Service Provider of any dishonest, wrongful or negligent acts or omissions of its personnel or agents in connection with the services as soon as possible after the Buyer becomes aware of them.
- iv. The Buyer may calculate their requirement of resources based on 8 hours per shift. For example, to hire a security personnel for a month (i.e. thirty service days) to offer the services for 24 hours on a 3-shift basis, the required number of resources would be 90 personnel for the month.

6 Service Tracking

Tracking of services ensures quality of service delivery in time bound manner, effective service tracking helps in analyzing the Service Provider's performance as well as the Buyer's timely inputs for services and leads to immediate actions against the defaulters if any. Service tracking shall be mandatory for the both Buyer and Service Provider, non-tracking of the same may lead to a deductions

6.1 Logbook

- i. The Service Provider shall maintain registers and checklists for each activity and the work done by each of the personnel shall be recorded on a Job Card, duly signed by the Buyer's representative. The Service Provider shall also submit a duly signed comprehensive report every month, detailing the services performed during the month.
- ii. The Service Provider shall thereafter update the logbook on the GeM portal as per the logbook process flow.
- iii. Once the Service Provider updates the logbook online, the Buyer shall either accept or reject these entries within the prescribed time limit. The Buyer will also record the any service non delivery or non-performance issues, and subsequent deductions. Failure to take action on logbook entries updated by service provider shall be deemed as accepted.
- iv. The Service Provider can raise an issue against the rejection of any entry by the Buyer within prescribed timelines of such rejection with the designated representative of the Buyer.

6.2 Service Performance and Feedback

- i. The principal point of contact for the issues arising out of this Agreement will be the Service Provider or a designated representative who shall be any employee of the Service Provider in administrative and managerial capacity and in a position of authority to resolve issues. Nonetheless, the Service Provider shall be solely responsible for maintaining the quality and level of services provided.
- ii. The Service Provider shall maintain a complaint register at the premises for the complaints by the Buyer.

7 Deductions

In case of noncompliance of the standards of the services to be provided as per this agreement, the Buyer would be at liberty to levy such deductions and terminate the Contract as per the conditions detailed out below:

#	Nature of Default	Default Details	Deductions			Remarks
			1st instance	2 nd instance	3 rd instance	
1	Non deployment of manpower	Non-deployment of total manpower mentioned in the contract as per the date of joining	Up to 15 days, @1 % per day of the total value and beyond 15 days cancellation of contract with cancellation charges @ 10% of the order value	Up to 15 days, @2 % per day of the total value and beyond 15 days cancellation of contract with cancellation charges @ 10% of the order value	Cancellation of contract with cancellation charges @ 10% of the order value	-
2	Failure to address deficiencies/ complaints brought to notice by the Buyer	Deficiencies/ complaints not addressed promptly	Deduction of Rs. 500/- (Rupees Five Hundred Only)	Deduction of Rs. 800/- (Rupees Eight Hundred Only)	Deduction of Rs. 1000/- (Rupees One Thousand Only)	After 3 rd instance, the Buyer may continue to impose the same deductions as imposed for 3 rd instance.
3	If employee is found disclosing any confidential information/ document to the Service Provider/ any third parties		Cancellation of the contract with cancellation charges @ 10% of the order value along with recovery of losses caused (if any) and legal action against the Service Provider depending on the gravity of the act			
4	If the employee is found responsible for any theft, loss of material/ articles and damages		Immediate payment in actuals, equivalent to the value of the article theft/ lost/ damaged. Replacement of employee within 2 days	Immediate payment in actuals, equivalent to the value of the article theft/ lost/ damaged. Replacement of employee within 2 days/ cancellation of contract as decided by the Buyer depending on the gravity of the act.	Cancellation of the contract with cancellation charges @ 10% of the order value	
5	If the employee is found responsible for disobedience/ misconduct		Warning/ counselling of employee as decided by the Buyer depending on the gravity of the act	Warning/ counselling/ Immediate replacement of employee within 2 days as decided by the Buyer and Warning to Service Provider depending on the gravity of the act	Cancellation of the contract with cancellation charges @ 10% of the order value	
			Rs. 200 per day for each			

S. No.	Nature of Default	Default Details	Deductions			Remarks
			1 st instance	2 nd instance	3 rd instance	
6	Delay in payments of take-home remuneration by the Service Provider and deposit of EPF and ESI (both employee and employer share)		Rs. 100 per day for each default, warning to Service Provider to deposit the said amount within 7 working days	default, hold on all type of payments to Service Provider till the said amount is deposited to respective stakeholders and proof of same is submitted to Buyer	Cancellation of the contract with cancellation charges @ 10% of the order value	
7	If the employee is absent or takes leave for more than 2 days without informing or taking prior approval.		Substitute within 2 days failing which, @ 1 % per day of the total value (excluding service tax etc.) of the absent resources up to 15 days. Beyond 15 days, cancellation of the contract with cancellation charges @ 10% of the order value	Substitute within 2 days failing which, @ 3 % per day of the total value (excluding service tax etc.) of the absent resources up to 15 days. Beyond 15 days, cancellation of the contract with cancellation charges @ 10% of the order value	Cancellation of the contract with cancellation charges @ 10% of the order value	
8	If the employee is found responsible for adopting illegal and foul methods or exercising any corrupt practice in collusion with any third party or officials at the workplace		Immediate replacement within 2 days/ cancellation of the contract with cancellation charges @ 10%, as decided by the Buyer depending on the gravity of the act.	Cancellation of the contract with cancellation charges @ 10% of the order value	-	
- Deductions for a specific month / period shall be capped at 10% of bill generated for that month / period. - If any SLA is breached beyond 3 instances in any billing period, then same shall be treated as a breach of Contract and the Buyer will have full rights to terminate the contract after giving a notice of 30 days.						

8 Payment Terms

8.1 Payment Condition

- The payment shall be made as per the financial quotes submitted by the Service Provider and accepted by the Buyer.
- No advance payment shall be made to the Service Provider.
- The price quoted shall cover all aspects of service delivery.
- The Service Provider shall also deposit EPF and ESI of both employer and employee share within 15th day of the month of payment for the support staff engaged from their account and prefer the bill to the Buyer Department for reimbursement of employer share only.
- Employers share of EPF & ESI actually deposited to the respective authorities with proof of deposit of both employee and employer share by the end of the second week of the succeeding month. Employee share of EPF and ESI contribution shall be recovered from the gross remuneration & balance amount is to be released to the persons employed.
- The Service Providing Agency shall furnish statement of amount paid for the month to the persons deployed along with cheque number and date and Bank account from which the payment has been made. Service Providing agency is to furnish copy of bank statement in support of amount paid as and when required by the Buyer.
- The Service Provider shall be responsible for timely payment of take-home remuneration to the supporting staff and deposit of EPF and ESI (both employee and employer share), failing which a deduction will be deducted.
- The Service Provider shall submit before the Buyer, one copy of the return within 7 days from the date of filing of monthly / quarterly / half yearly / annual return if any before the EPF and ESI authorities.
- The payment to the Service Provider will be made on monthly and quarterly basis, depending upon the actual duration of the services rendered as per order.
- Any violation of contractual obligations by the Service Provider/employee shall attract deductions as mentioned against each obligation. The Service Provider confirms and agrees that penalty whenever becomes payable, the same shall be deducted by the user department from the payments due to the Service Provider.
- All applicable taxes and duties except GST, shall be payable by the Service Provider and the Buyer shall not entertain any claims whatsoever with respect to the same. The Service Provider shall pay the GST and the price quoted is inclusive.
- The Service Provider shall ensure payment regularly for the deployed manpower to their entitlements like monthly salaries/wages etc. and submit the documentary proof of the salary paid as per the terms and conditions of the contract. Bill for the subsequent month will be paid only after submission of certificate of disbursement of wages of previous month.
- In case of any changes in the minimum wages as per the Applicable Laws during the Contract period, Buyer shall pay the Service Provider the difference in wage from the amount mentioned in the contract on pro rata basis.
- The cost of the Contract shall be valid for initial contract period. No price escalation, other than minimum wages revision, shall be entertained by the Buyer during the period.

8.2 Payment Cycle

- Payment shall be made once the Service Provider submits the invoice for the same as per the prescribed process flow.
- The Buyer shall make the payment within prescribed timelines as per the payment process flow upon submission of invoice, logbook and service feedback.

8.3 Payment Process

- Payment shall be made only after submission of invoices, logbook, service feedback, non-submission of the same may lead to delay/ deduction in payment.
- All the deductions/ fine/ interest (if applicable) will be settled before making the payments. Service Provider shall not have any objection on the same.
- Payment will be made through bank transfer only, in no circumstance cash/ cheque payment will be made.

9 Amendment of Contract

During service delivery period some conditions may occur when the Buyer and/ or Service Provider may require amending the Agreement, some of such conditions may be as followed-

- Amendment of the Contract after event of Force Majeure:* In case of occurrence of any exceptional event/ circumstance which has affected either party directly to perform the agreed services, the agreement can be amended. However, cause, evidence and nature of such effect shall be notified to the other party.

ii. Amendment in statutory variations: .

iii. Variation of the Contract as per both parties' consent: Variation of the Contract shall be done as per mutual consent of both parties; no party shall be made liable to pay/ get any compensation for agreement amendment. The variation in the contract can be through the following, however, the variation put together shall not reduce or exceed 25% of contract value:

- a. Increase or decrease in the manpower requirement or services to be provided
- b. Increase or decrease in duration of contract

10 Termination of Contract

The Agreement shall be come to an end either on completion of the Contract Period or shall be terminated for the following reasons:

i. Mutual consent: The contract may be terminated based on mutual consent in case the services are no longer required. Termination based on mutual consent will not attract any deductions or shall not be liable for any extra payments other than payment of invoices raised till the time of termination including notice period.

ii. Breach of contractual obligations: Any incidents considered as the breach of contract will result in immediate termination of services. The Buyer shall have the right to terminate the Contract effective immediately by giving written notice to the Service Provider if, the Service Provider breaches a material provision of this Contract where that breach is not capable of remedy; or if the Service Provider breaches any provision of this Contract and fails to remedy the breach within 14 days after receiving notice requiring it to do so.

iii. Breach of SLAs: The contract may also be terminated if i) the cumulative deductions rise to 10% of the contract value ii) repeated breach of any SLA beyond 3 instances as per the Buyer's discretion. However, termination of this Contract shall not affect any accrued rights or remedies of either party.

शुद्धिपत्र | Corrigendum

1. तक बढ़ाया गया | Extended Upto : 2026-02-24 15:00:00

अतिरिक्त आवश्यक डेटा/दस्तावेज़: खरीदार | Additional Required Data/Document(s) : Buyer

- 1. Geographic Presence in states : Gujarat
- 2. Total experience in providing facility management services to government departments, public sector companies, and government autonomous organizations: : 3
- 3. Details of the premise : [click here](#)
- 4. Scope of work : [click here](#)

अतिरिक्त डेटा/दस्तावेज़ : विक्रेता | Additional Data/Document(s) : Seller

- 1. Certificate (Requested in ATC) : [click here](#)
- 2. Additional Doc 1 (Requested in ATC) : [click here](#)
- 3. Additional Doc 2 (Requested in ATC) : [click here](#)

ईपीबीजी विवरण | ePBG Detail

सलाहकार बैंक Advisory Bank :	State Bank of India
ईपीबीजी प्रतिशत (%) ePBG Percentage(%):	5.00
बोली लगाने वाले को बोली के नियमों और शर्तों के अनुसार लागू ईपीबीजी प्रस्तुत करना होगा The bidder shall furnish ePBG as applicable as per bid's terms and conditions	

नियम और शर्तें | Terms and Conditions

1. General Terms and Conditions-

- 1.1 This contract is governed by the [General Terms and Conditions](#), conditions stipulated to this Product/Service as provided in the Marketplace.
- 1.2 This Contract between the Seller and the Buyer, is for the supply of the Goods and/ or Services, detailed in the schedule above, in accordance with the General Terms and Conditions (GTC) unless otherwise superseded by Goods / Services specific Special Terms and Conditions (STC) and/ or BID/Reverse Auction Additional Terms and Conditions (ATC), as applicable
- 1.3 All GeM Sellers / Service Providers are mandated to ensure compliance with all the applicable laws / acts / rules including but not limited to all Labour Laws such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972 etc. Any non-compliance will be treated as breach of contract and Buyer may take suitable actions as per GeM Contract.

2. Buyer Added Bid Specific Terms and Conditions-

2.1 Generic

OPTION CLAUSE: The buyer can increase or decrease the contract quantity or contract duration up to 25 percent at the time of issue of the contract. However, once the contract is issued, contract quantity or contract duration can only be increased up to 25 percent. Bidders are bound to accept the revised quantity or duration

2.2 Generic

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

2.3 Forms of EMD and PBG:

Bidders can also submit the EMD with Account Payee Demand Draft in favour of

Superintendent Community Health Center Shamgahan
payable at
Shamgahan
.

Bidder has to upload scanned copy / proof of the DD along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date / Bid Opening date.

2.4 Forms of EMD and PBG:

Bidders can also submit the EMD with Fixed Deposit Receipt made out or pledged in the name of A/C

Superintendent Community Health Center Shamgahan Dist-Dang

. The bank should certify on it that the deposit can be withdrawn only on the demand or with the sanction of the pledgee. For release of EMD, the FDR will be released in the favour of the bidder by

the Buyer after making endorsement on the back of the FDR duly signed and stamped along with covering letter. Bidder has to upload scanned copy/ proof of the FDR along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date/ Bid Opening date

2.5 Certificates:

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

2.6 Buyer Added Bid Specific ATC:

Buyer uploaded ATC document [Click here to view the file .](#)

2.7 Service & Support:

AVAILABILITY OF OFFICE OF SERVICE PROVIDER: An office of the Service Provider must be located in the state of Consignee. DOCUMENTARY EVIDENCE TO BE SUBMITTED.

2.8 Service & Support:

Dedicated /toll Free Telephone No. for Service Support : BIDDER/OEM must have Dedicated/toll Free Telephone No. for Service Support.

2.9 Service & Support:

Escalation Matrix For Service Support : Bidder/OEM must provide Escalation Matrix of Telephone Numbers for Service Support.

2.10 Purchase Preference (State):

Bid reserved for MSE from the State of Bid Inviting Authority: Procurement under this bid is reserved for purchase from Micro and Small Enterprises from the State of Bid Inviting Authority having valid Udyam Registration and whose credentials are validated online through Udyam Registration portal. If the bidder wants to avail themselves of the reservation benefit, the bidder must be the manufacturer / OEM of the offered product on GeM. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible to participate in this bid. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility based on documentary evidence submitted, while evaluating the bid. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2.11 Purchase Preference (State):

Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs from the State of Bid Inviting Authority having valid Udyam Registration and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry / State of Bid inviting authority. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service and Buyer will decide eligibility for purchase preference based on documentary evidence submitted, while evaluating the bid. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15 % of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 15 percentage of total quantity. The buyers are advised to refer the OM No. F.1/4/2021-PPD dated 18.05.2023 OM_No.1_4_2021_PPD_dated_18.05.2023 for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2.12 Past Project Experience:

Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.

Note:

1. Service Providers are required to raise invoices online as per the contract terms on GeM portal. Timely invoice submission is mandatory for compliances, smooth payment processing, and will also contribute to improving their ratings.
2. The Excess settlement has been enabled for this contract. The service provider can claim additional charges, if applicable, in the invoice. Any additional charges must be supported with documentary evidence.

नोट: यह सिस्टम जनरेटेड फाइल है। कोई हस्ताक्षर की आवश्यकता नहीं है।

Note: This is system generated file. No signature is required.

अनुबंध | Contract



अनुबंध क्रमांक | Contract No: GEMC-511687742539177

अनुबंध तिथि | Generated Date : 25-Jun-2025

बोली/आरए/पीबीपी संख्या | Bid/RA/PBP No.: [GEM/2025/B/5847118](#)

संगठन विवरण | Organisation Details

प्ररूप | Type : State Government
मंत्रालय | Ministry : -
विभाग | Department : Health & Family Welfare Department Gujarat
संगठन का नाम | Organisation Name : N/A
कार्यालय क्षेत्र | Office Zone: SUBDISTRICT HOSPITAL SONGADH

खरीदार विवरण | Buyer Details

पद | Designation : JR PHARMACIST
संपर्क नंबर | Contact No. : 79902-75834-
ईमेल आईडी | Email ID : buycon349.hfwdg.gj@gembuyer.in
जीएसटीआईएन | GSTIN : -
SDH OFFICE NAME SUB-DISTRICT HOSPITAL SONGADH PIN CODE 394670 TALUKO SONGADH DIST TAPI OFFICE
पता | Address : LAMDLIN 02624 222060, 223060 EMAIL ID chcsongadh.health.tapi1@gmail.com, Surat, GUJARAT-394670, India

वित्तीय स्वीकृति विवरण | Financial Approval Detail

आईएफडी सहमति | IFD Concurrence : No
प्रशासनिक अनुमोदन का पदनाम | Designation of Administrative Approval: Superintendent sub District Hospital Songadh
वित्तीय अनुमोदन का पदनाम | Designation of Financial Approval : Superintendent sub District Hospital Songadh

भुगतान प्राधिकरण विवरण | Paying Authority Details

Role: PAO
भुगतान का तरीका | Payment Mode: Internet Banking
पद | Designation : ACCO
ईमेल आईडी | Email ID : pao254.hfwdg.gj@gembuyer.in
जीएसटीआईएन | GSTIN : -
SDH OFFICE NAME SUB-DISTRICT HOSPITAL SONGADH PIN CODE 394670 TALUKO SONGADH DIST TAPI OFFICE
पता | Address: LAMDLIN 02624 222060, 223060 EMAIL ID chcsongadh.health.tapi1@gmail.com, Surat, GUJARAT-394670, India

विक्रेता विवरण | Seller Details

जेम विक्रेता आईडी | GeM Seller ID : 0D0E200001130179
कंपनी का नाम | Company Name : SHIV TRADING
संपर्क नंबर | Contact No. : 08866545280
ईमेल आईडी | Email ID : shivtradingsrt@gmail.com
पता | Address : FIRST,1,VAIBHAV COMPLEX,NEAR VAIBHAV CINEMA, Surat, GUJARAT-394650, -
एमएसएमई पंजीकरण संख्या | MSME Registration number : -
जीएसटीआईएन | GSTIN: 24AISP8250F1ZR (R)

*जिसके नाम के पक्ष में GST/TAX इनवॉइस पेश किया जाएगा | GST / Tax invoice to be raised in the name of - Consignee

वितरण निर्देश | Delivery Instructions : NA

उत्पाद विवरण | Product Details

#	आइटम विवरण Item Description	आइटम विवरण Ordered Quantity	इकाई Unit	इकाई मूल्य (INR) Unit Price (INR)	कर विभाजन (INR) Tax Bifurcation (INR)	मूल्य (INR में सभी शुल्क और कर सहित) Price (Inclusive of all Duties and Taxes in INR)
1	उत्पाद का नाम Product Name : niscomed CTG Machine ब्रांड Brand : niscomed ब्रांड प्रकार Brand Type : Registered Brand कैटलॉग की स्थिति Catalogue Status: OEM verified catalogue कैसे बेचा जा रहा है Selling As : Reseller not verified by OEM श्रेणी का नाम और चतुर्थांश Category Name & Quadrant : CTG Machine (V2) (Q2) मॉडल Model: FLIGHT-800 एचएसएन कोड HSN Code: HSN not specified by seller	2	pieces	299,250	NA	598,500
कुल ऑर्डर मूल्य Total Order Value (in INR)						598,500

परेषिती विवरण | Consignee Detail

क्र.सं. S.No	परेषिती Consignee	वस्तु Item	लॉट नंबर Lot No.	मात्रा Quantity	दिनांक के बाद डिलीवरी शुरू करना है Delivery Start After	वितरण पूरा कब तक करना है Delivery To Be Completed By

1	पद Designation : - ईमेल आईडी Email ID : buycon349.hfwdg.gj@gembuyer.in संपर्क Contact : 79902-75834- जीएसटीआईएन GSTIN : - पता Address : SDH OFFICE NAME SUB-DISTRICT HOSPITAL SONGADH PIN CODE 394670 TALUKO SONGADH DIST TAPI OFFICE LAMDLINE 02624 222060, 223060 EMAIL ID chcsongadh.health.tapi1@gmail.com, Surat, GUJARAT-394670, India	niscomed CTG Machine	-	2	25-Jun-2025	10-Jul-2025
Product Specification for niscomed CTG Machine						
विनिर्देश Specification		उप-विनिर्देश Sub-Spec		मूल्य Value		
GENERAL	Product Description		CTG Machine			
	Purpose		A CTG (Cardiotocography) machine monitors a baby's heart rate and the mother's contractions to assess fetal well-being during pregnancy and labor.			
PRODUCT INFORMATION	With advanced digital signal processing		Yes			
	Toco and Maternally sensed fetal movements are to be detected both manually and automatically		Yes			
	Facility of twin monitoring		Yes			
	Display of FHR upto twins, FHR1, FHR2 and Toco		Yes			
	Heart rate offset mode to visually distinguish between the heartrates of twins with ability to offset the secondary FHR by atleast 20bpm		No			
	Capable to simultaneously provide integrated fetal heart rate (FHR) and Uterine activity		Yes			
	Blinking correspondence to each beat		Yes			
	In-built / Separate Acoustic Stimulator with a separate marker on the graph for acoustic stimulators		No			
	Ultrasound transducer for measuring fetal heart rate with autocorrelation		Yes			
	Pulse Doppler transducer frequency (MHz)		≤1.5 MHz			
	Pulse Doppler with number of elements/crystal design for better sensitivity		13 to 15			
	Waterproof Transducer		Yes			
	Fetal Heart Rate measurements Range (BPM)		30 to 240 bpm			
	FHR measurement tolerance (BPM)		+/-1 bpm			
	Intensity of ultrasound transducer (mW/Sq Cm)		≤10			
	User adjustable audio visual alaram for fetal heart rate (FHR)		Yes			
	High alarm range (bpm)		160 to 180 bpm			
	Low alarm range (bpm)		90 to 120 bpm			
	Auto timer for NST tracing		No			
	External Toco transducer unit, sealed waterproof and designed with guard ring to reduce maternal respiration artifact		Yes			
	Strain gauge sensor element for measuring uterine tone contraction		Yes			
	Toco Transducer measurement range, (Units)		0 to 100			
	Resolution for transducer measurement, (Units)		+/-1			
	Recorder for Fetal Heart Rate and Uterine contractions		Yes			
	Computerized trace interpretation should be provided for antepartum monitoring of high risk pregnancies		No			
	Digital display or waveform of Tabular/Graphical data of thepatient containing the details viz Patient Name, ID, date and timefor minium of 24 hours		No			
	Suitable trolley with castor wheels, cover and locking facilitywith provision for parking the transducer etc		No			
	Colour screen monitor type TFT/LCD/LED		Yes			
	Flat panel display, tiltable and foldable		No			
	Touch screen display		Yes			
	Display monitor size (inch)		9.1 - 10			
	Built-in Printer to print patient data & Test Results		Yes			
	Type of printer		High resolution Thermal printer			

USER INTERFACE	Selectable Print speed for real time traces (cm/minute)	1 cm/minute
	Print media	Z folded Thermo sensitive paper
	Automatic Paper Feeding	No
	Patient data storage and trend graph for 48 to 72 hrs with fastprinting facility of stored data	Yes
	Fast print speed for printing stored data (cm/minute)	Yes
	FHR Chart printing	Yes
	Toco Chart printing	Yes
	Memory for storage of records	Yes
	Machine should be compatible with connection for central monitoring	Wired
ELECTRICAL REQUIREMENTS	Power supply	220-240 V, 50/60 Hz, AC Single phase
	In-built rechargeable battery	Yes
	Battery back up (hrs)	≥2 hours
	Auto power off when machine is not in use	No
LIST OF ACCESSORIES	Number of FHR (Fetal Heart Rate) probe	1
	Number of TOCO probe	1
	Number of Event Marker	1
	Number of Fetal Simulator	NA
	Number of Probe belt	1
	Number of Ultrasound gel	10
	Number of Power Cable	1
	Compatible size of z folded thermal sensitive continuous paper in packets of 150 sheets each (Number of Packets)	NA
CERTIFICATIONS	Compliance to Medical Device Rules (MDR) 2017 as amended till date	Yes
	Availability of valid Medical Device license for the product issued from the competent authority defined under Drugs and Cosmetic Act 1940 and Rules made there under as amended till date	Yes
	Valid Medical Device License Number	NA
	Certification for manufacturing unit	ISO:13485 (Latest)
	Availability of Test Report for each supplied batch/product as per Medical Device Rule (MDR) 2017 as amended till date	Yes
	Conformity for electrical safety standard	IEC-60601-1-1 or equivalent BIS
	Submission of all necessary certifications, licenses and test reports to the buyer at the time of bid submission or along with supplies as per buyer requirement	Yes
WARRANTY	Warranty in Years (Option of comprehensive warranty is available through bidding only, which if opted will supersede normal warranty in the catalogue)	5 year
ADDITIONAL REQUIREMENTS	Additional Requirements	NA
ईपीबीजी विवरण ePBG Detail		
सलाहकार बैंक Advisory Bank :		NA
ईपीबीजी प्रतिशत (%) ePBG Percentage(%):		NA
नियम और शर्तें Terms and Conditions		
1. Special terms and conditions- Version:1 effective from 14-06-2024		
1.1	1. All Provisions of Drugs and Cosmetics Act, 1940 and Rules (including Medical Device Rule 2017) made there under as amended till date will always be applicable. This will include all notifications issued by Central Drugs Standard Control Organization (CDSCO), Ministry of Health & Family Welfare (MoHFW) and Department of Pharmaceuticals (DOP), Ministry of Chemicals & Fertilizers time to time in this regard. 2. The sellers are registered on GeM based on the self declaration of valid Medical Device License, product certification, test reports etc. However, buyers must check and validate the details at their end for all applicable licenses and certifications e.g., validity and authenticity/genuineness of Medical Device license, product certification, manufacturer certification/licenses, test reports etc. 3. In case of authorized resellers/distributors, it will be the legal & regulatory liability of the manufacturer to ensure that their resellers/distributors are operating in compliance with all relevant laws and regulations and are properly licensed to sell the manufacturer's products, including verifying the validity and authenticity of	

Medical Device license held by them.

4. The price offered by the seller/bidder shall not, in any case exceed the DPCO/NPPA controlled price or price fixed by State Government, if any. The seller must reduce the prices if there is any reduction in DPCO/NPPA ceiling price or price fixed by State Government, if any.
5. Any other Terms and Conditions which is not included or at variance with the conditions specified in STC/GTC, may be added by the buyer through Additional Terms and Conditions (ATC) in the bid to ensure items are procured from authentic/validated source with appropriate and applicable quality. The above terms and conditions are in reverse order of precedence i.e. ATC shall supersede specific STC which shall supersede General Terms and Conditions (GTC), whenever there are any conflicting provisions.
6. Comprehensive warranty: Comprehensive warranty shall include preventive maintenance including calibration as per technical/ service /operational manual of the manufacturer, service charges and spares. During the warranty period commencing from date of the successful completion of warranty period, Service personnel shall visit each consignee site as recommended in the manufacturer's technical/ service /operational manual, at least once in six months. warranty shall not be including the consumables. Further there will be 98% uptime warranty during warranty period on 24 (hrs) X 7 (days) X 365 (days) basis, with penalty, to extend warranty period by double the downtime period.
7. Service centres: Details of Service outlets in India to render services for equipment to be furnished to buyer/consignees with complete address, telephone numbers, e mails etc at time of making the supplies. It shall be the responsibility of seller to ensure that authorized service centres are available to cater to the areas where supplies are made within reasonable distance from where the service calls can be handled. Details of toll-free numbers for service call and online registration of service requests also to be provided buyer/consignee at the time of supplies.
8. Source of supply: It shall be responsibility of seller to provide Documents regarding source of equipments such as copy of Performa invoice or any other documents to establish that the products supplied are manufactured by OEM indicated and sourced from them.
9. Packing and Marking: Medical equipments being very delicate and sensitive packing for the goods should be strong and durable enough to withstand transit including transshipment (if any), rough handling, open storage etc. without any damage, deterioration etc. .The size, weights and volumes of the packing cases, remoteness of the final destination of the goods, availability or otherwise of transport and handling facilities at all points during transit up to final destination,. Quality of packing, the manner of marking within & outside the packages and provision of accompanying documentation shall take into consideration the type of medical equipments being supplied. The accessories shall be suitably labelled and packed. Each of the package shall be marked on three sides with indelible paint of proper quality: indicating contract number and date, brief description of goods including quantity, Packing list reference number, country of origin of goods and any other relevant details.
10. Spare Parts: Seller shall provide materials, information etc. pertaining to spare parts manufactured and supplied by the OEM. It shall be ensured that the required spares are available for purchase at least for 10 years from date of supplies. In case due to any reasons the production of the spare parts is discontinued sufficient advance notice should be given to the buyer/consignee before such discontinuation to provide adequate time to purchase the required spare parts etc. Further, OEM and their service centres/dealers shall carry sufficient inventories to assure ex-stock supply of consumables and spares for the equipments so that the same are available. OEM or reseller shall always accord most favoured client status to the buyer/consignee and shall give the most competitive price for spares and consumables of its machines/equipments supplied.
11. Installation, Training, Manuals: Seller shall be responsible to carry out Installation & commissioning, Supervision and Demonstration of the goods. They shall provide required jigs and tools for assembly, minor civil works for the completion of the installation and Training of Consignee's representatives for operating and maintaining the equipment and supplying required number of operation & maintenance manual for the goods. In case the category parameters are specifying any requirements regarding the installations, training and manuals the same shall also be applicable.
12. Electrical safety checking: Sellers are required to make sure that they furnish the list of equipments for carrying out routine and preventive maintenance to buyer/consignee .They should make sure to periodically check the electrical safety aspects as per BIS Safety Standards or equivalent .In case they do not have required equipment for such testing should ensure that the equipments checked for electrical safety compliance through labs with facilities for such checking during every preventive maintenance call.
13. Software: All software updates should be provided free of cost during warranty period.

2. General Terms and Conditions-

- 2.1 This contract is governed by the [General Terms and Conditions](#), conditions stipulated to this Product/Service as provided in the Marketplace.
- 2.2 This Contract between the Seller and the Buyer, is for the supply of the Goods and/ or Services, detailed in the schedule above, in accordance with the General Terms and Conditions (GTC) unless otherwise superseded by Goods / Services specific Special Terms and Conditions (STC) and/ or BID/Reverse Auction Additional Terms and Conditions (ATC), as applicable
- 2.3 All GeM Sellers / Service Providers are mandated to ensure compliance with all the applicable laws / acts / rules including but not limited to all Labour Laws such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972 etc. Any non-compliance will be treated as breach of contract and Buyer may take suitable actions as per GeM Contract.

3. Buyer Added Bid Specific Terms and Conditions-

3.1 Generic.

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity by up to 25% of the contracted quantity during the currency of the contract at the contracted rates. Bidders are bound to accept the orders accordingly.

3.2 Generic

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

3.3 Turnover:

Bidder Turn Over Criteria: The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

3.4 Turnover:

OEM Turn Over Criteria: The minimum average annual financial turnover of the OEM of the offered product during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the OEM is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria. In case of bunch bids, the OEM of CATEGORY RELATED TO primary product having highest bid value should meet this criterion.

3.5 Service & Support:

Dedicated /toll Free Telephone No. for Service Support : BIDDER/OEM must have Dedicated/toll Free Telephone No. for Service Support.

3.6 Service & Support:

Escalation Matrix For Service Support : Bidder/OEM must provide Escalation Matrix of Telephone Numbers for Service Support.

3.7 Certificates:

ISO 9001: The bidder or the OEM of the offered products must have ISO 9001 certification.

3.8 Certificates:

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

3.9 Past Project Experience:

Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.

3.10 Past Project Experience:

The Bidder / OEM (themselves or through reseller(s)), should have executed project for supply and installation / commissioning of same or similar Category Products during preceding 3 financial years (i.e. current year and three previous financial years) as on opening of bid, as per following criteria:

- (i) Single order of at least 35% of estimated bid value; or
- (ii) Two orders of at least 20% each of estimated bid value; or
- (iii) Three orders of at least 15% each of estimated bid value.

Satisfactory Performance certificate issued by respective Buyer Organization for the above Orders should be uploaded with bid. In case of bunch bids, the Category related to primary product having highest bid value should meet this criterion

3.11 Buyer Added Bid Specific ATC:

Buyer uploaded ATC document [Click here to view the file](#).

नोट: यह सिस्टम जनरेटेड फाइल है। कोई हस्ताक्षर की आवश्यकता नहीं है। इस दस्तावेज़ का प्रिंट आउट भुगतान/लेनदेन उद्देश्य के लिए मान्य नहीं है।

Note: This is system generated file. No signature is required. Print out of this document is not valid for payment/ transaction purpose.

अनुबंध | Contract



अनुबंध क्रमांक | Contract No: GEMC-511687746307036

अनुबंध तिथि | Generated Date : 26-Mar-2026

बोली/आरए/पीबीपी संख्या | Bid/RA/PBP No.: [GEM/2026/B/7169787](#)

खरीद का माध्यम | Procurement Mode: BID/RA

संगठन विवरण Organisation Details		खरीदार विवरण Buyer Details				
प्ररूप Type :	State Government	पद Designation :	PHARMACY			
मंत्रालय Ministry :	-	संपर्क नंबर Contact No. :	02633-242044-0000			
विभाग Department :	Health & Family Welfare Department Gujarat	ईमेल आईडी Email ID :	sdhdharampur.health.valsad@gmail.com			
संगठन का नाम Organisation Name :	N/A	जीएसटीआईएन GSTIN :	-			
कार्यालय क्षेत्र Office Zone:	STATE HOSPITAL DHARAMPUR VALSAD	पता Address :	Garden Road State Hospital,Dharampur Dist Valsad, Valsad, GUJARAT-396050, India			
वित्तीय स्वीकृति विवरण Financial Approval Detail		भुगतान प्राधिकरण विवरण Paying Authority Details				
आईएफडी सहमति IFD Concurrence :	No	Role:	PAO			
प्रशासनिक अनुमोदन का पदनाम	SUPERITENDENT	भुगतान का तरीका	Offline			
Designation of Administrative Approval:		Payment Mode:				
वित्तीय अनुमोदन का पदनाम	ACCOUNTANT	पद Designation :	ADMINSTATION			
Designation of Financial Approval :		ईमेल आईडी Email ID :	ms-health-dhsdh@gujarat.gov.in			
		जीएसटीआईएन GSTIN :	-			
		पता Address:	Garden Road State Hospital,Dharampur Dist Valsad, Valsad, GUJARAT-396050, India			
			Payments shall be made to the seller within 45 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10-days time as provided in clause 12 of GeM GTC)			
विक्रेता विवरण Seller Details						
जेम विक्रेता आईडी GeM Seller ID :	0D0E200001130179					
कंपनी का नाम Company Name :	SHIV TRADING					
संपर्क नंबर Contact No. :	08866545280					
ईमेल आईडी Email ID :	shivtradingsrt@gmail.com					
पता Address :	FIRST,1,VAIBHAV COMPLEX,NEAR VAIBHAV CINEMA, Surat, GUJARAT-394650, -					
एमएसएमई पंजीकरण संख्या MSME Registration number :	-					
जीएसटीआईएन GSTIN:	24AISP8250F1ZR (R)					
खरीदार द्वारा मूल्यांकित एमआईआई स्थिति MII Status as evaluated by buyer :	Verified					
खरीदार द्वारा सत्यापित एमएसएमई स्थिति MSME Status as verified by buyer :	Not Verified					
*जिसके नाम के पक्ष में GST/TAX इनवॉइस पेश किया जाएगा GST / Tax invoice to be raised in the name of - Consignee						
वितरण निर्देश Delivery Instructions : NA						
उत्पाद विवरण Product Details						
#	आइटम विवरण Item Description	आइटम विवरण Ordered Quantity	इकाई Unit	इकाई मूल्य (INR) Unit Price (INR)	कर विभाजन (INR) Tax Bifurcation (INR)	मूल्य (INR में सभी शुल्क और कर सहित) Price (Inclusive of all Duties and Taxes in INR)
1	उत्पाद का नाम Product Name : UNITED Patient Bed (Semi Fowler) ब्रांड Brand : UNITED ब्रांड प्रकार Brand Type : Registered Brand कैटलॉग की स्थिति Catalogue Status: OEM verified catalogue कैसे बेचा जा रहा है Selling As : OEM verified Reseller श्रेणी का नाम और चतुर्थांश Category Name & Quadrant : Patient Bed (Semi Fowler) (Q2) मॉडल Model: USI-1051 एचएसएन कोड HSN Code: HSN not specified by seller उद्गम देश Country Of Origin: India	50	pieces	19,800	NA	990,000
कुल ऑर्डर मूल्य Total Order Value (in INR)						990,000
परेषिती विवरण Consignee Detail						
					दिनांक के बाद	वितरण पूरा कब तक करना है

क्र.सं. S.No	प्रेषित Consignee	वस्तु Item	लॉट नंबर Lot No.	मात्रा Quantity	डिलीवरी शुरू करना है Delivery Start After	Delivery To Be Completed By
1	पद Designation : - ईमेल आईडी Email ID : sdhdharampur.health.valsad@gmail.com संपर्क Contact : 02633-242044-0000 जीएसटीआईएन GSTIN : - पता Address : Garden Road State Hospital,Dharampur Dist Valsad, Valsad, GUJARAT-396050, India	UNITED Patient Bed (Semi Fowler)	-	50	26-Mar-2026	10-Apr-2026
Product Specification for UNITED Patient Bed (Semi Fowler)						
विनिर्देश Specification	उप-विनिर्देश Sub-Spec	मूल्य Value				
GENERAL FEATURES	Product Name	Patient Bed (Semi Fowler)				
	Purpose	For Diagnosis and therapy of in/out-patients in the medical centers and hospitals				
PRODUCT INFORMATION	Number of bed platform sections	2				
	Availability of Backrest section	Yes				
	Mattress platform shall be perforated	Yes				
	Screw mechanism	Welded with ERW MS tube (18 G) in M.S. cover made from (16 G) ERW tube				
	Backrest through one screw systems with thrust bearings individually manouvred by handle for semi fowler bed	Yes				
	Back rest	Minimum 45 % of the frame length				
	Bottom end of the H legs are provided with PVC shoes	Yes (in case of bed without castors)				
	Bed has head & foot panels detachable by hand without need of any tool	Yes				
	Saline rod provision	Four locations on the bed platform to hold stainless steel Telescopic Saline rod				
	Number of hooks in Telescopic I V Pole	2				
	Provision for mounting of syringe pump	Outer covering tube with a knob to mount syringe pump				
	All corners shall be rounded off so that there shall be no sharp corners and holes should be burr free	Yes				
	Coating for metal parts	M.S. tubular parts, linkages, flats are to be In-house, pretreated / shot blasted and Epoxy powder coated with coating thickness 50 to 100 microns				
	Material of Handle	Mild Steel				
	Facility of braking and locking mechanism provided in castor roller	NA (if no castors provided)				
	Availability of Noiseless, non rusting swivel castor wheel/ roller with for easy Mobility & Steering	NA (if no castors provided)				
	Diameter of castors	NA (if no castors provided)				
	Urine Bag Holder	Yes				
	Moulded Chart Holder	Yes				
	Provision of collapsible Railing	No				
MATERIAL AND DIMENSIONS PARAMETERS	Overall Length of bed with 5% tolerance (mm)	2050 to 2100 mm				
	Overall width of bed with 5% tolerance (mm)	900 to 950 mm				
	Size of Buffer (mm)	75 mm				
	Bed Platform frame size with 5% tolerance(mm)	2070 mm L x 910 mm W				
	Mattress Platform size with 5% tolerance (mm)	1970 mm L x 790 mm W				
	Buffer to Handle Length with 5% tolerance (mm)	2275 mm				
	Fixed Height (Minimum)	600 mm				
	Material and size of section	1.2 mm (18 G) CRCA M.S perforated sheet top				
	Overall length of Back Rest (mm)	750 to 800 mm				
	Overall width of back rest (mm)	750 to 800 mm				
	Raised Backrest Angle (Degree)	65 degree				
	Bed frame tube size	60 mm x 30 mm x 1.6 mm (16 G) Thick ERW tube				
		ERW tubes diameter 31.75 mm x 1.2 mm (18 G) thick and				

	Dimensions for Fitting of frame	diameter 22.22 mm x 1.2 mm (18 G) thick and MS sheet having thickness 3.0 mm (11 G)
	Diameter of Four corner rubber buffers (mm)	75 mm
	Material of head and foot panels	MS tubular
	Diameter of MS tubular (mm)	30 to 50 mm
	Diameter of SS tube (mm)	30 to 50 mm
	Patient Working Load (Kg)	150 Kg
	Safe Working Load (Kg)	200 Kg
	Material of collapsing railing	NA (in case railing not provided)
	Type of collapsing railing	NA (in case railing not provided)
MATTRESS	Provision of mattress	Yes
	Number of sections in mattress	2
	Thickness of PU foam of mattress in inch	4
	Density of PU foam of mattress in Kg/m3	32
	Material of mattress cover of mattress	Water Resistant cover
CERTIFICATIONS	Compliance to Medical Device Rules (MDR) 2017 as amended till date	Yes
	Availability of valid Medical Device license/Registration for the product issued from the competent authority defined under Drugs and Cosmetic Act 1940 and Rules made there under as amended till date	Yes
	Valid Medical Device License/Registration Number	MFG/MD/2025/000086
	Certification for manufacturing unit	ISO:13485 (Latest)
	Availability of Test Report for each supplied batch/product as per Medical Device Rule (MDR) 2017 as amended till date	Yes
	Submission of all necessary certifications, licenses and test reports to the buyer at the time of bid submission or along with supplies as per buyer requirement	Yes
WARRANTY	Warranty includes bed and mattress in years (Option of comprehensive warranty is available through bidding only, which if opted will supersede normal warranty in the catalogue)	1 year

ईपीबीजी विवरण | ePBG Detail

सलाहकार बैंक Advisory Bank :	State Bank of India
ईपीबीजी प्रतिशत (%) ePBG Percentage(%):	5.00
बोली लगाने वाले को बोली के नियमों और शर्तों के अनुसार लागू ईपीबीजी प्रस्तुत करना होगा The bidder shall furnish ePBG as applicable as per bid's terms and conditions	

नियम और शर्तें | Terms and Conditions

1. Special terms and conditions- Version:1 effective from 02-01-2025

- 1.1
 1. All Provisions of Drugs and Cosmetics Act, 1940 and Rules (including Medical Device Rule 2017) made there under as amended till date will always be applicable. This will include all notifications issued by Central Drugs Standard Control Organization (CDSCO), Ministry of Health & Family Welfare (MoHFW) and Department of Pharmaceuticals (DOP), Ministry of Chemicals & Fertilizers time to time in this regard, if applicable.
 2. The sellers are registered on GeM based on self-declaration of valid Medical device License (if applicable) , product certification, test reports etc. However, buyers must check and validate the details at their end for all applicable licenses and certifications e.g., validity and authenticity/genuineness of drug license, product certification, manufacturer certification/licenses, test reports etc, as applicable.
 3. In case of authorized resellers/distributors, it will be the legal & regulatory liability of the manufacturer to ensure that their resellers/distributors are operating in compliance with all relevant laws and regulations and are properly licensed to sell the manufacturer's products, including verifying the validity and authenticity of drug license held by them.
 4. The price offered by the seller/bidder shall not, in any case exceed the DPCO/NPPA controlled price or price fixed by State Government, if any. The seller must reduce the prices if there is any reduction in DPCO/NPPA ceiling price or price fixed by State Government, if any.
 5. Any other Terms and Conditions which is not included or at variance with the conditions specified in STC/GTC, may be added by the buyer through Additional Terms and Conditions (ATC) in the bid to ensure items are procured from authentic/validated source with appropriate and applicable quality. The above terms and conditions are in reverse order of precedence i.e. ATC shall supersede specific STC which shall supersede General Terms and Conditions (GTC), whenever there are any conflicting provisions.

2. General Terms and Conditions-

- 2.1 This contract is governed by the [General Terms and Conditions](#), conditions stipulated to this Product/Service as provided in the Marketplace.
- 2.2 This Contract between the Seller and the Buyer, is for the supply of the Goods and/ or Services, detailed in the schedule above, in accordance with the General Terms and Conditions (GTC) unless otherwise superseded by Goods / Services specific Special Terms and Conditions (STC) and/ or BID/Reverse Auction Additional Terms and Conditions (ATC), as applicable

2.3 All GeM Sellers / Service Providers are mandated to ensure compliance with all the applicable laws / acts / rules including but not limited to all Labour Laws such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972 etc. Any non-compliance will be treated as breach of contract and Buyer may take suitable actions as per GeM Contract.

3. Buyer Added Bid Specific Terms and Conditions-

3.1 Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

3.2 Generic

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

3.3 Turnover:

Bidder Turn Over Criteria: The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

3.4 Turnover:

OEM Turn Over Criteria: The minimum average annual financial turnover of the OEM of the offered product during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the OEM is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria. In case of bunch bids, the OEM of CATEGORY RELATED TO primary product having highest bid value should meet this criterion.

3.5 Service & Support:

Availability of Service Centres: Bidder/OEM must have a Functional Service Centre in the State of each Consignee's Location in case of carry-in warranty. (Not applicable in case of goods having on-site warranty). If service center is not already there at the time of bidding, successful bidder / OEM shall have to establish one within 30 days of award of contract. Payment shall be released only after submission of documentary evidence of having Functional Service Centre.

3.6 Service & Support:

Dedicated /toll Free Telephone No. for Service Support : BIDDER/OEM must have Dedicated/toll Free Telephone No. for Service Support.

3.7 Service & Support:

Escalation Matrix For Service Support : Bidder/OEM must provide Escalation Matrix of Telephone Numbers for Service Support.

3.8 Certificates:

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

3.9 Certificates:

ISO 9001: The bidder or the OEM of the offered products must have ISO 9001 certification.

3.10 Past Project Experience:

Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.

3.11 Forms of EMD and PBG:

Bidders can also submit the EMD with Account Payee Demand Draft in favour of

SUPERINTENDENT SHREE STATE HOSPITAL

payable at
DHARAMPUR

Bidder has to upload scanned copy / proof of the DD along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date / Bid Opening date.

3.12 Forms of EMD and PBG:

Successful Bidder can submit the Performance Security in the form of Account Payee Demand Draft also (besides PBG which is allowed as per GeM GTC). DD should be made in favour of

SUPERINTENDENT SHREE STATE HOSPITAL

payable at
DHARAMPUR

. After award of contract, Successful Bidder can upload scanned copy of the DD in place of PBG and has to ensure delivery of hard copy to the original DD to the Buyer within 15 days of award of contract.

3.13 Buyer Added Bid Specific ATC:

Buyer uploaded ATC document [Click here to view the file](#) .

Note: Sellers are required to raise invoices online as per the contract terms on GeM portal. Timely invoice submission is mandatory for compliances, smooth payment processing, and will also contribute to improving their ratings.

नोट: यह सिस्टम जनरेटेड फाइल है। कोई हस्ताक्षर की आवश्यकता नहीं है। इस दस्तावेज़ का प्रिंट आउट भुगतान/लेनदेन उद्देश्य के लिए मान्य नहीं है।

Note: This is system generated file. No signature is required. Print out of this document is not valid for payment/ transaction purpose.

अनुबंध | Contract



अनुबंध क्रमांक | Contract No: GEMC-511687750460278

अनुबंध तिथि | Contract Generated Date : 18-Mar-2026

बोली/आरए/पीबीपी संख्या | Bid/RA/PBP No.: [GEM/2026/B/7083701](#)

खरीद का माध्यम | Procurement Mode: BID/RA

संगठन विवरण Organisation Details	खरीदार विवरण Buyer Details
प्ररूप Type : State Government	पद Designation : Assistant Director of Agriculture Training
मंत्रालय Ministry : -	संपर्क नंबर Contact No. : -
विभाग Department : Agriculture and Co-operation Department Gujarat	ईमेल आईडी Email ID : buycon89.da.gj@gembuyer.in
संगठन का नाम Organisation Name : Directorate of Agriculture	जीएसटीआईएन GSTIN : -
कार्यालय क्षेत्र Office Zone: Joint Director of Agriculture Extension Surat	पता Address : Office of Deputy Director of Agriculture (Training) Farmer Training Center, Navapur Road, Ahwa, Dist. Dang, The Dangs, 394710, The Dangs, GUJARAT-394710, India

वित्तीय स्वीकृति विवरण Financial Approval Detail	भुगतान प्राधिकरण विवरण Paying Authority Details
आईएफडी सहमति IFD Concurrence : No	Role: BUYER
प्रशासनिक अनुमोदन का पदनाम Designation of Administrative Approval: Deputy Director of Agriculture (Training) ,Ahwa-Dang	भुगतान का तरीका Payment Mode: Offline
वित्तीय अनुमोदन का पदनाम Designation of Financial Approval : Deputy Director of Agriculture (Training) ,Ahwa-Dang	पद Designation : Assistant Director of Agriculture Training
	ईमेल आईडी Email ID : buycon89.da.gj@gembuyer.in
	जीएसटीआईएन GSTIN : -
	पता Address: Office of Deputy Director of Agriculture (Training) Farmer Training Center, Navapur Road, Ahwa, Dist. Dang, The Dangs, 394710, The Dangs, GUJARAT-394710, India

परिचिती विवरण Consignee Details	सेवा विवरण Service Description	मात्रा Quantity
क्र.सं. S.No	परिचिती नाम & पता Consignee Name & Address	
1	संपर्क Contact : - ईमेल आईडी Email ID : buycon89.da.gj@gembuyer.in जीएसटीआईएन GSTIN : - पता Address : Office of Deputy Director of Agriculture (Training) Farmer Training Center, Navapur Road, Ahwa, Dist. Dang, The Dangs, 394710, The Dangs, GUJARAT-394710, India	Horticulture Service - Lumpsum based - Solar Dryer for Multipurpose Drying; Propagation of Horticultural Crops Project/Lumpsum Based

सेवा प्रदाता विवरण Service Provider Details
जेम विक्रेता आईडी GeM Seller ID : 0D0E200001130179
कंपनी का नाम Company Name : SHIV TRADING
संपर्क नंबर Contact No. : 08866545280
ईमेल आईडी Email ID : shivtradingsrt@gmail.com
पता Address : FIRST,1,VAIBHAV COMPLEX,NEAR VAIBHAV CINEMA, Surat, GUJARAT-394650, -
एमएसएमई पंजीकरण संख्या MSME Registration number : -
जीएसटीआईएन GSTIN: 24AISPV8250F1ZR (R)
खरीदार द्वारा सत्यापित एमएसएमई स्थिति MSME Status as verified by buyer : Not Verified

*जिसके नाम के पक्ष में GST/TAX इनवॉइस पेश किया जाएगा | GST / Tax invoice to be raised in the name of - Buyer

सेवा विवरण Service Details
सेवा प्रारंभ दिनांक (नवीनतम) Service Start Date (latest by): 25-Mar-2026
सेवा समाप्ति तिथि Service End Date : 27-Apr-2026
श्रेणी नाम Category Name : Horticulture Service - Lumpsum based

बिलिंग चक्र Billing Cycle: quarterly			
विवरण Description		Quantity	Lumpsum Cost for providing Services as per Scope of Work
Scope of Service	Solar Dryer for Multipurpose Drying	Project/Lumpsum Based	309000
Service Inclusions	Propagation of Horticultural Crops		
Propagation Method to be used	Solar Dryer for Multipurpose Drying		
Estimated number of plants to be maintained/cultivated as per scope	1000		

of work	
कुल राशि (सूत्र) Total Amount (Formula) : (Lumpsum Cost for providing Services as per Scope of Work*1)	
ऐडऑन के बिना कुल मूल्य Total Value without Addons(INR)	309000
कुल एडऑन मूल्य Total Addon Value(INR)	0
ऐडऑन सहित कुल मूल्य Total Value Including Addons(INR)	309000
अनुबंध की राशि Amount of Contract	
सभी शुल्क और करों सहित कुल अनुबंध मूल्य Total Contract Value Including All Duties and Taxes(INR)	309000
एसएलए विवरण SLA Details	
<u>Special Terms and Conditions</u> <u>for</u> <u>Horticulture Service - Lumpsum Based</u>	
1. Agreement Overview This Agreement represents a Special Terms and Conditions (STC) and Service Level Agreement (SLA) between the Buyer and Horticulture Service Provider. The purpose of this agreement is to facilitate rendering of Horticulture Service – Lumpsum Based Model on the Buyer's premises or any other premises designated by Buyer. This Agreement outlines the scope of work, obligations of both buyer and service provider, special terms and conditions related to Service delivery and payment of Services for mutual understanding of the stakeholders. The Agreement remains valid till completion of scope of Services or end of Contractual duration (whichever is earlier) unless either superseded by a revised agreement mutually endorsed by the stakeholders or terminated by either of the parties thereof. The Services Contracts placed through GeM shall be governed by following set of Terms and Conditions: - General terms and conditions for Services; - Service Specific STC of the Services Contracts shall include the Service level agreement (SLA) for the Service; - BID / Reverse Auction specific ATC. The above terms and conditions are in reverse order of precedence i.e. ATC supersedes Service specific STC which supersede GTC, whenever there are any conflicting provisions. The above set of terms and conditions along with scope of work and Service level agreement as enumerated in the document shall be construed to be part of the Contract between Buyer and Service Provider.	
2. Objectives and Goals The objective of this agreement is to ensure that all the commitments and obligations are in place to ensure consistent delivery of Services to Buyer by Service Provider. The goals of this agreement are to: - Provide clear reference to Service ownership, accountability, roles and responsibilities of both parties. - Present a clear, concise and measurable description of Services offered to the Buyer. - Establish terms and conditions for all the involved stakeholders, it also includes the actions to be taken in case of failure to comply with conditions specified. - To ensure that both the parties understand the consequences in case of termination of Services due to any of the stated reasons. The agreement will act as a reference document that both the parties have understood the above-mentioned terms and conditions and have agreed to comply by the same. The agreement can also be revised/ modified on mutual consent of the stakeholders.	
3. Parties to Agreement The main stakeholders associated with this agreement are below- Buyer: Buyer is responsible to provide clear instructions, approvals and timely payments for the Services availed Service Provider: Service Provider is responsible to provide all the required Services in timely manner. Service Provider may also include Seller, any authorized agents, assignees, successors and nominees as described in the agreement. The responsibilities and obligations of the stakeholders have been outlined in this document. The document also encompasses Service level/ deductions in case of non-adherence to the defined terms and conditions. It is assumed that all stakeholders have read and understood the same before signing the document.	
4. Scope of Services The Horticulture Service is the art of cultivating and managing a garden or potted plant, or the science of growing various type of plants/trees and to keep property green and lovely by using different and most appropriate type of Services with the best suited consumables. The Horticulture Service -Lumpsum Based model of horticulture Service deals with end-to-end development and maintenance of the Garden/ Lawn/ Field/ Pots for the defined scope of work by Buyer on an outcome basis. Under Scope of Service, Buyer must select the required scope of the Service for the selected model for the Contract period. The various custom or add on parameters that can be added/selected by the Buyer to the Service's scope of work at the bid stage.	
5. Terms and Conditions 5.1 Buyers Obligations - The Buyer shall assign a point of contact for the Service Provider, who shall manage and co-ordinate all the Service Provider related issues/requirements. - The Buyer shall define penalties, feedbacks, comprehensive SLA, etc. to ensure the timely and quality delivery of Service. - In case of any change in the Applicable Law with respect to taxes and duties, then the remuneration and reimbursable expenses payable to the Service Provider shall be increased or decreased accordingly by the Buyer under this Contract. - The Buyer shall provide water and power required for the Works free of cost at one point. However, the Service Provider shall arrange distribution of the same at its own cost and charges.	

5. Buyer should provide free access to all parts of designated area (Garden/Lawn/Field/Nursery/Park) for the purpose of development, maintenance, inspection, treatment or surveillance as per the scope of work.
6. In case, the Buyer has not included consumables in the Contract, then Buyer shall provide consumable materials as and when required for the work, such as good earth, manure, fertilizers, insecticides, pesticides, seasonal seeds, seedling and plants.
7. The Buyer shall monitor standard of Service with respect to delay in delivery, damage to property during delivery, use of unapproved technique and chemicals and manpower to deliver the Service.
8. The Buyer through its authorized representative, reserves the right of altering the specifications of works of adding to or omitting any items of work or of having portions of the same carried out in the premises by others and such alterations and variations shall not violate this Contract.
9. The Buyer shall also arrange necessary gate/ entry pass to Buyer's premise/ designated premise for the manpower.
10. The Buyer should provide space for storage of machinery, tools, consumables, chemicals and any other equipment to the Service Provider.
11. The Buyer shall make necessary arrangements for use of basic facilities like water pots/ machines, washrooms etc. for manpower working at Buyer's premise/ designated premise.
12. The Buyer must immediately report to the designated representative of the Service Provider/onsite supervisor in case of any problems, complaints, incidents during the Contract period including any form of inappropriate behavior/ improper uniform by staff.
13. **Price Variation Clause:**

"It is advisable to include Price Variation Clause in the long term Contracts to take care of the increase/decrease in prices of various ingredients which majorly affect the overall price of the Service. Buyers are therefore advised to include the Price Variation Clause (PVC) in the bid document through ATC for long term Contracts. The additional payment, if any, on account of PVC can be done offline till such time online functionality is developed on GeM."

5.2 Service Provider Obligations

1. Service Provider shall ensure the level of Service required is of the highest professional standard and shall deliver the Service within stipulated time frame as agreed in the Contract. The delay in execution of Service shall attract penalties.
2. The Service Provider must ensure that the paths, fountains and other hard landscape features or structures, and furniture in the Buyer's premises, including electrical fittings and lights etc. are not damaged in any manner while carrying out landscape operations.
3. Except supply of free water by the Buyer in the designated area (Garden/ Lawn/ Field/ Nursery/ Park), all other inputs like fertilizer, sapling, seeds and all tools and implements used for growing flowers and plantation or for cutting grass and removing weeds, are to be supplied by the Service Provider and disposing off the wastes are to be borne by the Service Provider.
4. The Service Provider must engage one full time supervisor who preferably should be an experienced horticulturist.
5. The Service Provider shall ensure that all maintenance works related to the deployed machinery and tools will be carried out in off duty hours to minimize productivity losses.
6. The Service Provider should issue identity badges (as per approved format) to all his staff being engaged to carry out the work including the supervisor.
7. The Service Provider will depute one person from its own establishment for monitoring of the work and verification of daily attendance of the workers deployed by the Service Provider at the premises of the Buyer. The said deputed person will report to the designated officer of the Buyer for further conformation on daily basis or as per Buyer requirement. Further, such deputed person will be available as and when required for any verification.
8. The Service Provider shall be responsible for proper maintenance of all registers and records, make regular and full payment of labor charges/ salaries and other payments as per labor laws under minimum wages act and payment of wages.
9. The Service Provider shall have all the necessary permits/ licenses/ clearances/ certificates under the CIBRC and other applicable laws for use of insecticides/pesticides as part of the Service.
10. The Service Provider shall cover its personnel for personal accident and death whilst performing the duty and the Buyer shall own no liability and obligation in this regard.
11. The Service Provider shall take comprehensive insurance cover, including third party unlimited liability, to insure against loss, damage, death or injury which may occur to any physical property or to any person which may arise out of the performance of the Contract or the machinery and equipment deployed by Service Provider. The Buyer shall not assume any liability in this regard.
12. The Service Provider will be responsible for the conduct and discipline of the manpower deployed by him at the Buyer's designated premises responsible for any breaches/violations committed by the persons.
13. During Sunday & other holidays, the Service Provider must deploy essential staff to ensure minimal maintenance, particularly for watering of pots and maintenance of nursery.
14. In case of exigency, Service Provider shall deploy the required number of staff beyond normal duty hours if directed so to carry out the works within the scope of agreement.
15. The Service Provider must ensure that unnecessary wastage of water does not occur at any time and must protect the irrigation fittings etc. from any damage due to mishandling or digging in the designated area (Garden/ Lawn/ Field/ Nursery/ Park). Any damage to existing irrigation system shall be made good by the Service Provider at his cost.
16. The Service Provider is obligated to use chemicals only certified by WHO, Central Insecticides Board and Bureau of Indian Standards (BIS)
17. The Service Provider shall be responsible for safe disposal of left Pesticides/ Fertilizers/ Other chemicals or other gardening materials or leftovers/other garbage produced in gardening, as per the norms of the user department/ local administration. Standard universal precautions to be followed while handling Pesticides/ Fertilizers/ Other chemicals used.
18. The Service Provider shall not appoint any Sub-Service Provider for the work assigned to him.
19. Service Provider shall be responsible for making good to the satisfaction of the Buyer any loss or any damage to all structures and properties within the park premises. If such loss or damage is due to fault and/or the negligence or wilful acts or omission of the Service Provider, his employees, agents, representatives or sub- Service Providers, he shall make good the loss as assessed by the Buyer. In such a case, the Service Provider will be liable to replace the item at his own cost or the Buyer shall have the right to recover the loss from the Service Provider's monthly bill. The decision of the Buyer in this matter will be final.

5.3 Other Terms & Conditions (If Applicable)

Development and maintenance works

1. Plant materials shall be well formed and shaped true to type, and free from disease, insects and defects such as knots, windburn, injuries, abrasion or disfigurement.
2. All plant materials shall be healthy, sound, and vigorous, free from plant disease, insect pests or their eggs, and shall have healthy, well-developed root systems.
3. All plants shall conform to the requirements specified in the plant list, except that plants larger than specified may be used if approved but use of such plants shall not increase the Contract price.
4. Care shall be taken that the plant sapling when planted is not buried deeper than in the nursery, or in the pot.
5. Planting should not be carried out in waterlogged soil.
6. Replace the plants mortalities in case of natural plant death and due to negligence but not be held responsible to replace any plant/ tree/ grass/ mortality against damage done by natural calamities such as earthquake, Fire, Flood, and storm.
7. Topsoil or good earth shall be a friable loam, typical of cultivated topsoil of the locality containing at least 2% of decayed organic matter (humus). It shall be taken from a well-drained arable site. It shall be free of subsoil, stones, earth clods, sticks, roots or other objectionable extraneous matter or debris. It shall contain no toxic material.
8. The Service Provider will prepare and maintain flower beds, seasonal and perennial both and grow all varieties of summer and winter season flowers in the respective months. The flowerbeds should be thoroughly dug and prepared at least 3 to 4 weeks before actual plantation. Actual schedule of plantation of winter and summer seasonal flowers will vary as per the specific directions of the Buyer.

9. Newly planted trees must be held firmly although not rigidly by staking to prevent a pocket forming around the stem and newly formed fibrous roots being broken by mechanical pulling as the tree rocks.
10. Tree pits shall be dug a minimum of three weeks prior to backfilling. The pit sizes shall be as specified further herein. It shall be replaced with soil mixture as specified further herein. While digging the pits, the top- soil up to a depth of 30 cm may be kept aside, if found good (depending upon site conditions) and mixed with the rest of the soil. If the soil is bad below, it shall be replaced with the soil mixture as specified further herein. The bottom of the pit shall be forked to break up the subsoil.
11. No tree pits shall be dug until final tree positions have been pegged out for approval.
12. Positions of shrubs (to be planted) should be marked out in accordance with the planting plan. When shrubs are set out, precautions should be taken to prevent roots drying. Planting holes (of sizes as specified further herein) should be excavated for longer shrubs. Polythene and other non-perishable containers should be removed, and any badly damaged roots carefully pruned.
13. All areas to be planted with shrubs shall be excavated, trenched to a depth of 600 mm, refilling it with finely mixed good garden soil and excavated earth (after breaking the clods and mixing with sludge in the proper ratio. Backfill soil should be firmed as filling proceeds, layer by layer, care being taken to avoid damaging the roots.
14. Watering is to be done according to weather and stage of growth of plant. The Service Provider should allow for the adequate watering of all newly planted trees and shrubs immediately after planting and he shall during the following growing seasons, keep the plant material well-watered. Care must be taken to avoid over watering, however.
15. The maintenance of lawn should include weeding, trimming and pruning of grass by mowing with grass cutting machines, top dressing, using of manure, fertilizers, spraying of insecticides, pesticides, fungicides, weedicides, sweeping and watering etc. and patch work by planting the doh grass where dead.
16. The maintenance of trees, shrubs and creepers should include: the maintenance of all trees, shrubs and creepers by their manuring, watering hoeing, pruning and trimming, replacement of old dead one by one and to ensure enough supply of air and water. Circular diaries around the tree trunk are to be prepared. The creepers across wall are to be provided support by rope and other trees and shrubs by bamboo sticks as required.
17. The maintenance of hedges should include: their watering, hoeing of channels, pruning and trimming and replacing old and dead plants by planting the new saplings/cuttings dead/uprooted plants etc.
18. The Service Provider will trim/cut out the Hedges every month. The required frequency will be determined by the Buyer based upon the seasonality and may vary as per Buyer's directions.
19. Upon completion of planting work under the Contract all trees should be trimmed/pruned, and all injuries repaired where necessary. The amount of trimming/pruning shall be limited to the minimum necessary to remove dead or injured twigs and branches and to compensate for the loss of roots.
20. The Service Provider will mow the grass at regular intervals, i.e. at least once every after 15 days (twice in a month) or as stipulated by the Buyer and should not be allowed to over grow under any circumstances. The cutting of grass is required to be mowed up to soil level (1" growth) from soil level.
21. Organic manure shall be used wherever possible to maximize nutrient recovery.
22. Periodic / frequent and regular checks to be carried out for pests and diseases and in the event of infestation, prompt spraying of appropriate pesticide/fungicide etc. should be done in accordance with the manufacturer's instructions or as per the direction.
23. Service Provider should adhere to periodicity of spraying chemicals e.g. insecticides, pesticides, herbicides etc.
24. Weeds shall be removed with their roots and dumped away from planted areas. In some seasons, more weeding will be necessary, and weeding should be continued until areas are weed free. Only selective weed killers approved by Buyer In charge/competent authority shall be applied if desirable.
25. Light garden sweeping, removal and disposal of garden refuse and cut grass to a dumping place approved by the Buyer In charge/competent authority. No grass/ refuse to be left over night in the garden area.
26. Booming and cleaning of entire horticulture area including surrounding area on daily basis is assumed in scope of work.
27. The Service Provider shall place potted plants in the rooms and areas, as may be necessary for beautification of the Buyer's Premises including ornamental plants in lobbies, corridors, office rooms, reception rooms, waiting halls etc., as designated by Buyer In charge/competent authority of the Buyer, for which Service Provider would be entrusted with maintenance of horticulture work
28. The Service Provider will whitewash/Terracotta's of all the trees up to the height of 4 feet and 2 feet respectively once in a month, or as per the directions of the Buyer.
29. During special occasions such as Independence Day, Republic Day and any other major national/state holiday, the Service Provider will be responsible for floral decoration of the office.
30. Existing vegetation that is mentioned to be retained or as per direction should be protected from damage and maintained in good and effective conditions.
31. Service Provider should adhere to the descriptions and development conditions/guidelines for different varieties of fruits, flower and vegetables crops as prescribed by The Indian Institute of Horticultural Research (a subsidiary of Indian Council of Agricultural Research), including growth duration, soil type, seasonality, yield potential, blooming or harvesting cycles etc., for planning and implementing of horticultural practices. ([Ref-https://www.iihr.res.in/varieties](https://www.iihr.res.in/varieties))

Waste Management

1. Collection, handling, segregation, transportation and disposal of waste may cause environmental degradation and nuisance. To prevent it, waste must be handled and disposed properly. As such, collection, handling, segregation, transportation and disposal of all waste shall be strictly managed by the Service Provider and all related costs shall be borne by him.
2. Training of staff should be undertaken by the Service Provider in order to increase awareness of waste management issues.

Safety, Security and Compliance

1. The Service Provider should deliver the Service within stipulated time frame as agreed in the Contract.
2. The supervisor and workers should be certified and should have valid license to perform such Service.
3. A mandatory, detailed contingency plan(s)/evacuation plan during the period chemical spraying and in the event of overdose of chemical spraying shall be provided by the Service Provider.
4. Inspection of quality by supervisors during the execution of Service by the staff should be regularized/ periodic.
5. The Service Provider shall employ only adult trained, efficient and responsible staff with good health and sound mind for providing required Services.
6. The manpower deployed for the Development and Maintenance of Horticultural Work should be enough, qualified and trained to carry out the Contracted scope of work and have the knowledge of safety procedures.
7. The Service Provider should ensure that his staff use proper safety measures while performing their duties to avoid any accidents
8. Smoking and chewing tobacco etc. is strictly prohibited during working hours. Any of the deployed staff for horticulture Services found smoking/chewing in the Buyer's premises shall be removed immediately and shall not be deployed again over the Contract duration.
9. The Service Provider shall be solely responsible for the redressal of grievances/ resolution of disputes relating to persons deployed. The Buyer shall, in no way be responsible for settlement of such issues whatsoever.
10. No deployed manpower shall be allowed to stay in the Buyer's premise unnecessarily after working hours without Buyer's permission.
11. The personnel deployed shall undergo medical examination at the expense of the Service Provider to ensure that they are free from any communicable diseases and furnish medical examination certificate as and when called for by the Buyer.
12. The staff provided by the Service Provider shall not be deemed employees of the Buyer hence the compliance of the applicable labor laws and acts, i.e. the Minimum Wages Act, Payment of Wages Act, PF, ESI Act, Payment of Bonus Act, Contract Labor [R&A] Act and other relevant laws will be the sole responsibility of the Service Provider and Buyer will in no way be responsible for any violation or liabilities in this regard
13. The Service Provider would be bound by the conditions about police verification of the deployed staff and their medical fitness. A verification report in respect of all the personnel of Service Provider from the concerned police station of concerned residential areas should be submitted and also list of employees with biodata of each employee posted to the Institute along with photo and thumb impression should be handed over to the designated officer of Buyer. Any changes should be informed immediately.

Defined Timelines

1. Service Provider shall adhere to the timelines in the Schedule of Work/Scope of Work provided by the Buyer in the Contract for carrying out the horticultural Service.
2. The daily normal working hours would be stipulated by Buyer and may vary as per the Buyer's directions and actual requirements.

Service Assumptions

1. The Service Provider shall not sublet any part of the Contract and shall be responsible and liable to deliver the Services as per the Contract.
2. For all intents and purposes, the Service Provider shall be the "Employer" within the meaning of different Rules and Acts in respect of manpower so deployed. The persons deployed by the Service Provider shall not have any claim whatsoever like employer and employee relationship against the Buyer Department.
3. Only authorized staff of the Service Provider will be allowed entry at the premises of the Buyer on production of identity badge.
4. The Garden/Lawn/Field/Nursery/Park premises are the property of the Buyer and Service Provider is only permitted to enter and manage the premises as long the Contract remains valid.
5. Guarding/maintaining the Service Provider's machinery at Buyer's premises shall be the responsibility of Service Provider.
6. Service Provider will not use his machinery (when deployed at Buyer premises) or Buyer's machinery for any personal use or for any other activity not related to the scope of work under the Contract.
7. The Service Provider will be responsible for providing fresh flowers, where necessary, to the office rooms, lobbies, corridors, reception halls etc. as well as for the various events and functions organized directly by the Buyer.
8. The cost of the Contract shall be valid for initial Contract period. No price escalation, other than minimum wages revision, shall be entertained by the Buyer during the period.
9. Any violation of Contractual obligations by the Service Provider shall attract penalties, before imposing a deduction, the Buyer will provide 3 days prior notice to the Service Provider to make its representation. The Service Provider confirms and agrees that deduction whenever becomes payable, shall be deducted by the Buyer from the payments due to the Service Provider.

6. Payment Terms and Conditions

6.1 Payment shall be made once the Service Provider submits the invoice online on GeM alongwith other relevant documents and after generation of Service Delivery Acceptance Certificate (SDAC) by consignee for the submitted invoice.

6.2 All deductions (if applicable) will be accounted/deducted during SDAC generation before making the payments. Payment will be made through bank transfer only and in no circumstance cash/ cheque payment will be made.

7. Deductions / LD

In case of non-compliance of the standards of the Services to be provided as per this agreement, the Buyer would be at liberty to levy such deduction and terminate the Contract as per the conditions detailed out below:

Breach of SLA is defined as performance lower than requisite performance in this Agreement. The following conditions shall specify breach of Contract and Buyer shall have the right to immediately terminate the Contract and can also lead to blacklisting of Service Provider

1. Cumulative penalties reach 10% of the Contract value
2. SubContracting or outsourcing of the Contract, in part or whole

Sr. No.	Description	Deduction for Breach			Remarks
		1 st Instance	2 nd Instance	3 rd Instance	
1.	Non-compliance of the Service Provider with respect to Scope of Work/Schedule of Work and Service Provider Obligations as per SLA	2% of monthly billing with cumulative deduction not exceeding 10% of the monthly bill	3% of monthly billing with cumulative deduction not exceeding 10% of the monthly bill	Contract may be cancelled in case of i) the cumulative deductions rise to 10% of the Contract value ii) repeated breach of any SLA beyond 3(three) instances as per Buyer discretion.	
2.	Non-performance of the Service Provider with respect to with respect to Services Standards and Outcomes	2% of monthly billing with cumulative deduction not exceeding 10% of the monthly bill Immediate payment of Damages equivalent to the value of the article damaged/lost/theft and replacement of the same	3% of monthly billing with cumulative deduction not exceeding 10% of the monthly bill Immediate payment of Damages equivalent to the value of the article damaged/lost/theft and replacement of the same.	Contract may be cancelled in case of i) the cumulative deductions rise to 10% of the Contract value ii) repeated breach of any SLA beyond 3(three) instances as per Buyer discretion.	
3.	Damage to Buyer's assets or equipment, caused by the Service Provider's staff	Immediate payment of Damages equivalent to the value of the article damaged/lost/theft. Replacement of damaged asset within 2 days	Immediate payment of Damages equivalent to the value of the article theft/ lost/ damaged. Replacement of employee within 2 days/ cancellation of Contract as decided by the Buyer depending on the gravity of the act.	Cancellation of the Contract with cancellation charges @ 10% of the order value	
Indiscipline/Breach of Code of					

4.	Conduct i.e. quarreling, abusing, etc. between the Service Provider's staff, causing disturbance in the premises, use of intoxicants (alcohol, drugs smoking or eating tobacco in the premises during working hours etc.)	Rs. 150/- Warning/ counselling of staff as decided by the Buyer depending on the gravity of the act	Rs. 300/- Immediate replacement of employee within 2 days as decided by the Buyer	Rs. 500/- Immediate replacement of employee within 2 days as decided by the Buyer	Deduction amount may vary at the Buyer's discretion depending on severity of default				
5.	Absence/ non functionality of any required equipment	Rs. 150/- per day Warning issued by Buyer	Rs. 300/- per day	Rs. 500/- per day	Deduction amount may vary at the Buyer's discretion depending on severity of default				
6.	In case of sub Contracting or outsourcing of the Contract, in part or whole.	Immediate replacement within 2 days/ cancellation of the Contract with cancellation charges @ 10%, as decided by the Buyer depending on the gravity of the act.	Cancellation of the Contract with cancellation charges @ 10% of the Contract value	Cancellation of the Contract with cancellation charges @ 10% of the Contract value					
8. Amendment to Contract During Service delivery period some conditions may occur when the Buyer and/ or Service Provider may require to amend the Contract, some of such conditions may be as followed- 8.1 Amendment of the Contract after event of Force Majeure: A Force Majeure (FM) means extraordinary events or circumstance beyond human control such as an event described as an act of God (like a natural calamity) or events such as a war, strike, riots, crimes (but not including negligence or wrongdoing, predictable/seasonal rain and any other events specifically excluded in the clause).In case of occurrence of such event which has affected either party directly to perform the agreed Services, the Contract can be amended. However, cause, evidence and nature of such effect shall be notified to the other party. 8.2 Amendment in statutory variations: All statutory variations leading to increase in the cost of the Contract will be debited to the Buyer accounts.									
9. Termination of Contract The Agreement shall be come to an end either on completion of the Contract Period or shall be terminated for the following reasons: 9.1 Mutual consent: The Contract may be terminated based on mutual consent in case the Services are no longer required. Termination based on mutual consent will not attract any deductions or shall not be liable for any extra payments other than payment of invoices raised till the time of termination including notice period. 9.2 Breach of Contractual obligations: The Buyer shall have the right to terminate the Contract effective immediately by giving written notice to the Service Provider if, the Service Provider breaches a material provision of this Contract where that breach is not capable of remedy; or if the Service Provider breaches any provision of this Contract and fails to remedy the breach within 14(fourteen) days after receiving notice requiring it to do so. 9.3 Breach of SLAs: The Contract may also be terminated by the Buyer if i) the cumulative deductions rise to 10% of the Contract value ii) repeated breach of any SLA beyond 3(three) instances as per Buyer discretion. However, termination of this Contract shall not affect any accrued rights or remedies of either party.									
10. Service Formula Total Cost = Lumpsum Cost *****End of Document*****									
अतिरिक्त आवश्यक डेटा/दस्तावेज़: खरीदार Additional Required Data/Document(s) : Buyer 1. Scope of work(custom requirements if any) : click here अतिरिक्त डेटा/दस्तावेज़ : विक्रेता Additional Data/Document(s) : Seller 1. Certificate (Requested in ATC) : click here 2. Additional Doc 1 (Requested in ATC) : click here 3. Additional Doc 2 (Requested in ATC) : click here ईपीबीजी विवरण ePBG Detail <table><tr><td>सलाहकार बैंक Advisory Bank :</td><td>State Bank of India</td></tr><tr><td>ईपीबीजी प्रतिशत (%) ePBG Percentage(%):</td><td>5.00</td></tr></table> बोली लगाने वाले को बोली के नियमों और शर्तों के अनुसार लागू ईपीबीजी प्रस्तुत करना होगा The bidder shall furnish ePBG as applicable as per bid's terms and conditions						सलाहकार बैंक Advisory Bank :	State Bank of India	ईपीबीजी प्रतिशत (%) ePBG Percentage(%):	5.00
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नियम और शर्तें Terms and Conditions 1. General Terms and Conditions-									

- 1.1 This contract is governed by the [General Terms and Conditions](#), conditions stipulated to this Product/Service as provided in the Marketplace.
- 1.2 This Contract between the Seller and the Buyer, is for the supply of the Goods and/ or Services, detailed in the schedule above, in accordance with the General Terms and Conditions (GTC) unless otherwise superseded by Goods / Services specific Special Terms and Conditions (STC) and/ or BID/Reverse Auction Additional Terms and Conditions (ATC), as applicable
- 1.3 All GeM Sellers / Service Providers are mandated to ensure compliance with all the applicable laws / acts / rules including but not limited to all Labour Laws such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972 etc. Any non-compliance will be treated as breach of contract and Buyer may take suitable actions as per GeM Contract.

2. Buyer Added Bid Specific Terms and Conditions-

2.1 Generic

OPTION CLAUSE: The buyer can increase or decrease the contract quantity or contract duration up to 25 percent at the time of issue of the contract. However, once the contract is issued, contract quantity or contract duration can only be increased up to 25 percent. Bidders are bound to accept the revised quantity or duration

2.2 Forms of EMD and PBG:

Bidders can also submit the EMD with Account Payee Demand Draft in favour of

Deputy Director of Agriculture (Training)

payable at

Ahwa Dist-Dang

Bidder has to upload scanned copy / proof of the DD along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date / Bid Opening date.

2.3 Forms of EMD and PBG:

Bidders can also submit the EMD with Fixed Deposit Receipt made out or pledged in the name of A/C

Deputy Director of Agriculture (Training)- Ahwa Dist-Dang

The bank should certify on it that the deposit can be withdrawn only on the demand or with the sanction of the pledgee. For release of EMD, the FDR will be released in the favour of the bidder by the Buyer after making endorsement on the back of the FDR duly signed and stamped along with covering letter. Bidder has to upload scanned copy/ proof of the FDR along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date/ Bid Opening date

2.4 Generic

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

2.5 Certificates:

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

2.6 Buyer Added Bid Specific ATC:

Buyer uploaded ATC document [Click here to view the file](#).

2.7 Service & Support:

AVAILABILITY OF OFFICE OF SERVICE PROVIDER: An office of the Service Provider must be located in the state of Consignee. DOCUMENTARY EVIDENCE TO BE SUBMITTED.

2.8 Service & Support:

Dedicated /toll Free Telephone No. for Service Support : BIDDER/OEM must have Dedicated/toll Free Telephone No. for Service Support.

2.9 Service & Support:

Escalation Matrix For Service Support : Bidder/OEM must provide Escalation Matrix of Telephone Numbers for Service Support.

2.10 Purchase Preference (State):

Bid reserved for MSE from the State of Bid Inviting Authority: Procurement under this bid is reserved for purchase from Micro and Small Enterprises from the State of Bid Inviting Authority having valid Udyam Registration and whose credentials are validated online through Udyam Registration portal. If the bidder wants to avail themselves of the reservation benefit, the bidder must be the manufacturer / OEM of the offered product on GeM. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible to participate in this bid. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility based on documentary evidence submitted, while evaluating the bid. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2.11 Purchase Preference (State):

Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs from the State of Bid Inviting Authority having valid Udyam Registration and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry / State of Bid inviting authority. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service and Buyer will decide eligibility for purchase preference based on documentary evidence submitted, while evaluating the bid. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15 % of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 15 percentage of total quantity. The buyers are advised to refer the OM No. F.1/4/2021-PPD dated 18.05.2023 OM_No.1_4_2021_PPD_dated_18.05.2023 for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2.12 Past Project Experience:

Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.

Note:

1. Service Providers are required to raise invoices online as per the contract terms on GeM portal. Timely invoice submission is mandatory for compliances, smooth payment processing, and will also contribute to improving their ratings.

अनुबंध | Contract



अनुबंध क्रमांक | Contract No: GEMC-511687751346438
अनुबंध तिथि | Contract Generated Date : 25-Mar-2025
बोली/आरए/पीबीपी संख्या | Bid/RA/PBP No.: [GEM/2025/B/6011321](#)

संगठन विवरण Organisation Details प्ररूप Type : State Government मंत्रालय Ministry : - विभाग Department : Education Department Gujarat संगठन का नाम Organisation Name : District Primary Education Project कार्यालय क्षेत्र Office Zone: VYARA		खरीदार विवरण Buyer Details पद Designation : Dy District Primary Education Officer संपर्क नंबर Contact No. : 02626-222057- ईमेल आईडी Email ID : dydpeo-ed-tapi@gujarat.gov.in जीएसटीआईएन GSTIN : - पता Address : DISTRICT PRIMARY EDUCATION OFFICE, GROUND FLOOR, JILLA SEVA SADAN, BLOCK NO.-11, PANVADI, VYARA-394650 DIST.-TAPI., Surat, GUJARAT-394650, India																																											
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सेवा प्रदाता विवरण Service Provider Details जेम विक्रेता आईडी GeM Seller ID : 0D0E200001130179 कंपनी का नाम Company Name : SHIV TRADING संपर्क नंबर Contact No. : 08866545280 ईमेल आईडी Email ID : shivtradingsrt@gmail.com पता Address : FIRST,1,VAIBHAV COMPLEX,NEAR VAIBHAV CINEMA, Surat, GUJARAT-394650, - एमएसएमई पंजीकरण संख्या MSME Registration number : - जीएसटीआईएन GSTIN: 24AISPV8250F1ZR (R) खरीदार द्वारा सत्यापित एमएसएमई स्थिति MSME Status as verified by buyer : Not Verified																																													
*जिसके नाम के पक्ष में GST/TAX इनवॉइस पेश किया जाएगा GST / Tax invoice to be raised in the name of - Buyer																																													
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बिलिंग चक्र Billing Cycle: weekly <table border="1"> <thead> <tr> <th colspan="2">विवरण Description</th> <th>To be set as 1</th> <th>Total Bid Value(Lumpsum quote)</th> </tr> </thead> <tbody> <tr> <td>Type of Premises</td> <td>School</td> <td rowspan="4">11</td> <td rowspan="4">4942135</td> </tr> <tr> <td>Type of services required</td> <td>Solar Panel with Inverter Batteries</td> </tr> <tr> <td>Cost for Consumables/ Materials</td> <td>Consumables to be provided by service provider (inclusive in contract cost)</td> </tr> <tr> <td>Service component</td> <td>Solar Panel with Inverter Batteries</td> </tr> <tr> <td colspan="4"> कुल राशि (रु.) Total Amount (Formula) : (Total Bid Value(Lumpsum quote)*1) </td> </tr> <tr> <td colspan="3"> ऐडऑन के बिना कुल मूल्य Total Value without Addons(INR) </td> <td>4942135</td> </tr> <tr> <td colspan="3"> कुल ऐडऑन मूल्य Total Addon Value(INR) </td> <td>0</td> </tr> <tr> <td colspan="3"> ऐडऑन सहित कुल मूल्य Total Value Including Addons(INR) </td> <td>4942135</td> </tr> <tr> <td colspan="4"> अनुबंध की राशि Amount of Contract </td> </tr> <tr> <td colspan="3"> सभी शुल्क और करों सहित कुल अनुबंध मूल्य Total Contract Value Including All Duties and Taxes(INR) </td> <td>4942135</td> </tr> <tr> <td colspan="4"> एसएलए विवरण SLA Details Service Level Agreement for Facility Management Services Lump Sum Basis </td> </tr> </tbody></table>				विवरण Description		To be set as 1	Total Bid Value(Lumpsum quote)	Type of Premises	School	11	4942135	Type of services required	Solar Panel with Inverter Batteries	Cost for Consumables/ Materials	Consumables to be provided by service provider (inclusive in contract cost)	Service component	Solar Panel with Inverter Batteries	कुल राशि (रु.) Total Amount (Formula) : (Total Bid Value(Lumpsum quote)*1)				ऐडऑन के बिना कुल मूल्य Total Value without Addons(INR)			4942135	कुल ऐडऑन मूल्य Total Addon Value(INR)			0	ऐडऑन सहित कुल मूल्य Total Value Including Addons(INR)			4942135	अनुबंध की राशि Amount of Contract				सभी शुल्क और करों सहित कुल अनुबंध मूल्य Total Contract Value Including All Duties and Taxes(INR)			4942135	एसएलए विवरण SLA Details Service Level Agreement for Facility Management Services Lump Sum Basis			
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ऐडऑन सहित कुल मूल्य Total Value Including Addons(INR)			4942135																																										
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सभी शुल्क और करों सहित कुल अनुबंध मूल्य Total Contract Value Including All Duties and Taxes(INR)			4942135																																										
एसएलए विवरण SLA Details Service Level Agreement for Facility Management Services Lump Sum Basis																																													

All Facility Management Services related Contracts/ Agreement placed through GeM shall be governed by following set of Terms and Conditions:

1. General terms and conditions for Services ("GTC");
2. Service Specific Terms and Conditions ("STC") of the Services contracts shall include the Service Level Agreement ("SLA") for the service;
3. BID / Reverse Auction specific Additional Terms and Conditions ("ATC") as specified by the Buyer.

The above terms and conditions are in reverse order of precedence i.e. ATC supersedes Service specific STC which supersede GTC, whenever there are any conflicting provisions. The above set of terms and conditions along with scope of work and SLA as enumerated in the document shall be construed to be part of the Contract between the Buyer and the Service Provider. The service will be provided in bid only mode.

1 Objectives and Goals

The objective of this Agreement is to ensure that all the commitments and obligations are in place to ensure consistent delivery of services to the Buyer by the Service Provider. The goals of this Agreement are to:

- i. Provide clear reference to service ownership, accountability, roles and responsibilities of both parties
- ii. Present a clear, concise and measurable description of services offered to the Buyer
- iii. Establish terms and conditions for all the involved stakeholders, it also includes the actions to be taken in case of failure to comply with conditions specified
- iv. To ensure that both the parties understand the consequences in case of termination of services due to any of the stated reasons

The Agreement will act as a reference document that both the parties have understood the above-mentioned terms and conditions and have agreed to comply by the same. The Agreement can also be revised/ modified on mutual consent of the stakeholders.

2 Parties to the Agreement

The main stakeholders associated with this Agreement are below-

- i. **Buyer:** The Buyer is responsible to provide clear instructions, approvals and timely payments for the services availed
- ii. **Service Provider:** The Service Provider is responsible to provide all the required services in timely manner. The Service Provider may also include seller, any authorized agents, assignees, successors and nominees as described in the Agreement

The responsibilities and obligations of the stakeholders have been outlined in this document. The document also encompasses service level/ deductions in case of non-adherence to the defined terms and conditions. It is assumed that all stakeholders have read and understood the same before signing the document.

3 Scope of Services

This service deals with hiring of facility management services which encompasses all activities related to keeping a complex operating with all its infrastructural and maintenance related requirements. This service includes multiple disciplines to ensure functionality, comfort, safety and efficiency of the built environment by integrating people, place, process and technology. It typically includes a wide range of function and support services such as housekeeping, security, property or building management, basic engineering services, mail and messenger services, records management, safety and other support duties.

Type of Model: This service offering is on Lump sum basis, for the contract duration, the Buyer can take the item-wise pricing of various components involved in this service, through Financial Upload document.

Types of Services: This service offering provides multiple services under a single contract for professional maintenance and upkeep of the property (commercial, residential, hospitality, healthcare, industrial, etc.). Buyer of this service will have the option to choose the type of service and service components as per their requirement, for which the following categories have been defined:

#	Services	Service Component
1	Housekeeping	· Cleaning & Sanitation
		· Front Desk Management
		· Mail Management/ Runner
		· Waste Management (other than healthcare facility)
		· Waste Management (Healthcare)
		· Laundry Services
2	Security Services	· Work Routine Services (Healthcare)
		· Work Routine Services (other than healthcare facility)
		· Regular work of Guest House/ Hostel (Hospitality) (such as porter services, lift man, etc.)
		· Physical Security
		· Parking Management
3	Horticulture Services	· CCTV Control & Operations
		· Visitor Management & Access Control
4	Patient Support Services	· Gardening
		· Landscape
		· Assisting the patient in getting into or out of the bed
		· Attend to the personal hygiene of patients
		· Preparing and carrying the patients for operations, laboratory, X-ray and other investigations
		· Carrying and transporting patients to various wards/ departments in the hospital
		· Assist in maintaining stocks of linen and non-medical supplies
		· Assist the nurses or doctors in diagnostic and treatment procedures
		· Assist in sterilization of instruments, appliances and dressings and dressing of postoperative wounds

#	Services	Service Component
		· Bedbug control
		· Disinfestation
		· General Pest Control
		· Rodent control
		· Termite Control (Spot treatment/ drilling treatment)
5	Pest Control Service	· Vector control (mosquitos/ insects)
		· Cockroach control
		· Fumigation
		· Pest proofing (Pest proofing is closure of holes and cracks that may potentially cause pest infestation)
		· Infection control (Surface sterilization)
6	O&M of Civil Work	· Carpentry
		· Masonry
		· Painting
		· Sewer/ Drainage
		· Plumbing
7	O&M Mechanical	· Water Supply
		· Pumps
		· Fire Fighting System
		· Lift
		· Electrical Supply of HT/LT
8	O&M of Electrical Work	· DG Sets
		· UPS
		· AC Chillers
		· HVAC
		· Transformers

Manpower Required: Service Provider shall provide manpower based on the Buyer’s selection of manpower profile, quantity and skill level. The Buyer of this service will have the option to choose the type of manpower as per their requirement, for which the following categories have been defined:

#	Type of Manpower Required
1	Cleaner / Sweeper
2	Office Attendant
3	Receptionist
4	Mail Attendant/ Runner
5	Guest house attendant
6	Porter
7	Laundry wash boys
8	Security Guard
9	Gardener
10	Ward Boys/Girls
11	Plumber
12	Electrician
13	Fire Supervisor
14	AC Plant Operator
15	Help Desk Support Executive

Type of Manpower Required
16 Others - Please Specify

Consumables: The Service Provider shall provide consumables such as cleaning agents, equipment, etc. based on the Buyer's selection of cost to be borne by the Buyer/ Service Provider/ reimbursable by the Buyer. In case wherein consumables are to be provided by the Service Provider and the cost is to be included in the Contract cost, a list of suggestive consumables will be provided by the Buyer.

3.1 Service Details and Standards

- i. The Service Provider shall abide at all times by the all existing labor enactments and rules made there under, regulations, notifications and bye laws of the State or Central Government or local authority and any other labor law (including rules), regulations, bye laws that may be passed or notification that may be issued under any labor law in future either by the State or the Central Government or the local authority
- ii. The Service Provider shall make his own arrangements for the engagement of all staff and labor, local or other, and for their payment, housing, feeding and transport.
- iii. The Service Provider is responsible for co-ordination and management of delivery of services from AMC vendors/suppliers/contractors, therefore for ensuring safety compliance by them, FMC is required to monitor the delivery of service and report client in case of non-compliance of safety requirements immediately
- iv. The manpower deployed should maintain polite & courteous behavior towards the Buyer. "Misbehavior" which may include, but not limited to, consumption of alcohol during or prior to duty, denial of duty during service hours as defined by user, use of abusive language, theft, shall attract deductions as per provisions of the Contract.

3.2 Service Assumptions

- i. The Service Provider shall not sublet any part of the Contract. The Service Provider may act as an aggregator of manpower to be provided. However, it is the Service Provider who shall be responsible and liable to deliver the services as per the Contract.
- ii. The manpower provided by the Service Provider shall not be deemed employees of the Buyer hence the compliance of the applicable labor laws and acts and other relevant laws will be the sole responsibility of the Service Provider.
- iii. The Service Provider shall not deploy any manpower that is ailing from any contagious disease.
- iv. The Service Provider shall verify the character & antecedent of manpower to be deployed.
- v. The persons deployed during the course of their work shall perform integrity to the Buyer and shall not disclose/ share any qualified documents and information which they are not supposed to divulge to the Service Provider/ third parties.
- vi. The Service Provider shall indemnify the Buyer against all the losses, injuries and any kind of damage arrived due to its activities
- vii. The Buyer will in no way be responsible for violation of labor laws and /or infringement of any other law for the time being in force, either by the manpower provided or by the Service Provider.
- viii. The attendance of the employees will be entered in the register provided by the Service Provider and/or in the Aadhaar based Biometric attendance system at the Buyer's premises. The persons deployed should be polite, cordial and efficient while handling the assigned work and their actions should promote good will and enhance the image of the Corporation or office concerned. The Service Provider shall be responsible for any act of indiscipline on the part of the persons deployed.
- ix. The Service Provider shall ensure that all the relevant licenses / registrations / permissions which may be required for providing the services are valid during the entire period of the contract; failing so shall attract the appropriate deductions. The documents relevant in this regard shall be provided by the Service Provider to the Buyer on demand.
- x. The Service Provider shall be required to keep the Buyer updated about the change of address, change of the Management etc. from time to time.

4 Service Provider's Obligation

- i. The Service Provider shall ensure the level of service required is of the highest professional standard and shall ensure full compliance to the terms and conditions of the Contract.
- ii. The Service Provider shall attend to emergency works in time. No extra payment will be made for working on odd hours for emergency works.
- iii. The Service Provider will be required to submit list of the manpower being deployed with photo ID, address proof, police verification certificate and educational qualifications before deputing the workers. The Service Provider shall be solely responsible for the credentials/ acts of his staff /workers
- iv. The Service Provider shall provide at his own cost proper uniform and badges and photo identity cards to the manpower deployed.
- v. In an event that, for any reason, the manpower provided change their contact number during the tenure of the contract then service provider will immediately notify the buyer of the above change.
- vi. The Service Provider shall be responsible for ensuring compliance with the provisions related to Labour Law [Central/State] and specially Workmen Compensation Act, EPF Laws, ESIC Laws, Income tax laws and Minimum Wages Laws, Contract Labour (Regulations Abolition Act) and any other relevant acts as applicable at present or in future during the tenure of the Contract and as may be enforced from time to time. Onus of compliance of all the applicable Laws/Acts/Rules/Bye-Laws/Regulations/Standards/Guidelines/Notification/Recommended Practices, etc. shall rest with the Service Provider only and the Buyer will not be liable in any manner.
- vii. The Service Provider shall produce to the Buyer the details of payments of statutory benefits like bonus, leave, relief etc. from time to time to its personnel.
- viii. The Service Provider shall cover all its personnel under the relevant laws of EPF, Labor, ESIC etc. Proof of the same should be submitted by the Service Provider.
- ix. The Service Provider shall submit a copy of wages sheet showing monthly wages paid to its personnel.
- x. The Service Provider shall cover its personnel for personal accident and death whilst performing the duty and the Buyer shall own no liability and obligation in this regard.
- xi. The Service Provider shall also provide at its own cost all benefits statutory or otherwise to its deployed personnel and the Buyer shall not have any liability whatsoever on this account.
- xii. The Service Provider shall employ only manpower who has completed eighteen years of age and not above 65 years of age
- xiii. The Service Provider shall provide the documentary proof for the qualifications and experience of the manpower deployed by them. The bio-data, qualification and experience of the said manpower should be certified by the Service Provider.
- xiv. The Service Provider shall not deploy or shall discontinue deploying the person(s), if desired by the Buyer and must ensure prompt replacement of the personnel without any additional cost to the Buyer. The personnel being deployed shall ordinarily be continued and should not be changed without written intimation and consultation with the Buyer.
- xv. The Service Provider would be bound by the conditions with regard to police verification of the deployed staff and their medical fitness.
- xvi. Adequate supervision shall be provided to ensure correct performance of the services in accordance with the prevailing requirements agreed upon between the two parties.
- xvii. In an event that the Service Provider fails to deliver or fails to carry out tasks as per schedule due to absence of personnel or any other reasons, the Service Provider at his own cost shall make alternate arrangement by providing similar manpower for which agreement is entered into, without any extra charges. Failure to do so will evoke deductions and the Buyer shall have right to recover damages as per the provisions of the Contract.
- xviii. The Service Provider shall be personally responsible for any theft, misconduct and /or disobedience on the part of personnel so provided by him.
- xix. The working hours and days of the manpower will be as per the existing applicable rules of the respective Central/State Government organizations. However, they have to work on holidays, if necessary and required based on demand of work.
- xx. The Service Provider shall be fully responsible for the acts of their employees/ agents/ representatives / consultants/ team members and shall fully indemnify the Buyer for any kind of losses or

damages caused by its employees/ agents/ representatives/ team members/ consultants. The Buyer shall not be responsible for any claim from any employees/ agents/ representatives /consultant / team member employed or engaged by the Service Provider. The Service Provider shall wholly and fully be responsible for any such claims.

5 Buyer's Obligations

- i. The location for reporting shall be provided by the Buyer to the Service Provider.
- ii. The Buyer must immediately report to the designated representative of the Service Provider for any problems, complaints, incidents or accidents that occur during the contract including any form of inappropriate behavior/ improper uniform by the personnel.
- iii. The Buyer shall notify the Service Provider of any dishonest, wrongful or negligent acts or omissions of its personnel or agents in connection with the services as soon as possible after the Buyer becomes aware of them.
- iv. The Buyer may calculate their requirement of resources based on 8 hours per shift. For example, to hire a security personnel for a month (i.e. thirty service days) to offer the services for 24 hours on a 3-shift basis, the required number of resources would be 90 personnel for the month.

6 Service Tracking

Tracking of services ensures quality of service delivery in time bound manner, effective service tracking helps in analyzing the Service Provider's performance as well as the Buyer's timely inputs for services and leads to immediate actions against the defaulters if any. Service tracking shall be mandatory for the both Buyer and Service Provider, non-tracking of the same may lead to a deductions

6.1 Logbook

- i. The Service Provider shall maintain registers and checklists for each activity and the work done by each of the personnel shall be recorded on a Job Card, duly signed by the Buyer's representative. The Service Provider shall also submit a duly singed comprehensive report every month, detailing the services performed during the month.
- ii. The Service Provider shall thereafter update the logbook on the GeM portal as per the logbook process flow.
- iii. Once the Service Provider updates the logbook online, the Buyer shall either accept or reject these entries within the prescribed time lime. The Buyer will also record the any service non delivery or non-performance issues, and subsequent deductions. Failure to take action on logbook entries updated by service provider shall be deemed as accepted.
- iv. The Service Provider can raise an issue against the rejection of any entry by the Buyer within prescribed timelines of such rejection with the designated representative of the Buyer.

6.2 Service Performance and Feedback

- i. The principal point of contact for the issues arising out of this Agreement will be the Service Provider or a designated representative who shall be any employee of the Service Provider in administrative and managerial capacity and in a position of authority to resolve issues. Nonetheless, the Service Provider shall be solely responsible for maintaining the quality and level of services provided.
- ii. The Service Provider shall maintain a complaint register at the premises for the complaints by the Buyer.

7 Deductions

In case of noncompliance of the standards of the services to be provided as per this agreement, the Buyer would be at liberty to levy such deductions and terminate the Contract as per the conditions detailed out below:

#	Nature of Default	Default Details	Deductions			Remarks
			1st instance	2 nd instance	3 rd instance	
1	Non deployment of manpower	Non-deployment of total manpower mentioned in the contract as per the date of joining	Up to 15 days, @1 % per day of the total value and beyond 15 days cancellation of contract with cancellation charges @ 10% of the order value	Up to 15 days, @2 % per day of the total value and beyond 15 days cancellation of contract with cancellation charges @ 10% of the order value	Cancellation of contract with cancellation charges @ 10% of the order value	-
2	Failure to address deficiencies/ complaints brought to notice by the Buyer	Deficiencies/ complaints not addressed promptly	Deduction of Rs. 500/- (Rupees Five Hundred Only)	Deduction of Rs. 800/- (Rupees Eight Hundred Only)	Deduction of Rs. 1000/- (Rupees One Thousand Only)	After 3 rd instance, the Buyer may continue to impose the same deductions as imposed for 3 rd instance.
3	If employee is found disclosing any confidential information/ document to the Service Provider/ any third parties		Cancellation of the contract with cancellation charges @ 10% of the order value along with recovery of losses caused (if any) and legal action against the Service Provider depending on the gravity of the act			
4	If the employee is found responsible for any theft, loss of material/ articles and damages		Immediate payment in actuals, equivalent to the value of the article theft/ lost/ damaged. Replacement of employee within 2 days	Immediate payment in actuals, equivalent to the value of the article theft/ lost/ damaged. Replacement of employee within 2 days/ cancellation of contract as decided by the Buyer depending on the gravity of the act.	Cancellation of the contract with cancellation charges @ 10% of the order value	
	If the employee is found		Warning/ counselling of employee as decided by	Warning/ counselling/ Immediate replacement of employee within 2 days as	Cancellation of the contract with	

5	responsible for disobedience/ misconduct		the Buyer depending on the gravity of the act	Decisions decided by the Buyer and Warning to Service Provider depending on the gravity of the act	cancellation charges @ 10% of the order value	
#	Nature of Default	Default Details	1st instance	2 nd instance	3 rd instance	Remarks
6	Delay in payments of take-home remuneration by the Service Provider and deposit of EPF and ESI (both employee and employer share)		Rs. 100 per day for each default, warning to Service Provider to deposit the said amount within 7 working days	Rs. 200 per day for each default, hold on all type of payments to Service Provider till the said amount is deposited to respective stakeholders and proof of same is submitted to Buyer	Cancellation of the contract with cancellation charges @ 10% of the order value	
7	If the employee is absent or takes leave for more than 2 days without informing or taking prior approval.		Substitute within 2 days failing which, @ 1 % per day of the total value (excluding service tax etc.) of the absent resources up to 15 days. Beyond 15 days, cancellation of the contract with cancellation charges @ 10% of the order value	Substitute within 2 days failing which, @ 3 % per day of the total value (excluding service tax etc.) of the absent resources up to 15 days. Beyond 15 days, cancellation of the contract with cancellation charges @ 10% of the order value	Cancellation of the contract with cancellation charges @ 10% of the order value	
8	If the employee is found responsible for adopting illegal and foul methods or exercising any corrupt practice in collusion with any third party or officials at the workplace		Immediate replacement within 2 days/ cancellation of the contract with cancellation charges @ 10%, as decided by the Buyer depending on the gravity of the act.	Cancellation of the contract with cancellation charges @ 10% of the order value	-	
- Deductions for a specific month / period shall be capped at 10% of bill generated for that month / period. - If any SLA is breached beyond 3 instances in any billing period, then same shall be treated as a breach of Contract and the Buyer will have full rights to terminate the contract after giving a notice of 30 days.						

8 Payment Terms

8.1 Payment Condition

- The payment shall be made as per the financial quotes submitted by the Service Provider and accepted by the Buyer.
- No advance payment shall be made to the Service Provider.
- The price quoted shall cover all aspects of service delivery.
- The Service Provider shall also deposit EPF and ESI of both employer and employee share within 15th day of the month of payment for the support staff engaged from their account and prefer the bill to the Buyer Department for reimbursement of employer share only.
- Employers share of EPF & ESI actually deposited to the respective authorities with proof of deposit of both employee and employer share by the end of the second week of the succeeding month. Employee share of EPF and ESI contribution shall be recovered from the gross remuneration & balance amount is to be released to the persons employed.
- The Service Providing Agency shall furnish statement of amount paid for the month to the persons deployed along with cheque number and date and Bank account from which the payment has been made. Service Providing agency is to furnish copy of bank statement in support of amount paid as and when required by the Buyer.
- The Service Provider shall be responsible for timely payment of take-home remuneration to the supporting staff and deposit of EPF and ESI (both employee and employer share), failing which a deduction will be deducted.
- The Service Provider shall submit before the Buyer, one copy of the return within 7 days from the date of filing of monthly / quarterly / half yearly / annual return if any before the EPF and ESI authorities.
- The payment to the Service Provider will be made on monthly and quarterly basis, depending upon the actual duration of the services rendered as per order.
- Any violation of contractual obligations by the Service Provider/employee shall attract deductions as mentioned against each obligation. The Service Provider confirms and agrees that penalty whenever becomes payable, the same shall be deducted by the user department from the payments due to the Service Provider.
- All applicable taxes and duties except GST, shall be payable by the Service Provider and the Buyer shall not entertain any claims whatsoever with respect to the same. The Service Provider shall pay the GST and the price quoted is inclusive.
- The Service Provider shall ensure payment regularly for the deployed manpower to their entitlements like monthly salaries/wages etc. and submit the documentary proof of the salary paid as per the terms and conditions of the contract. Bill for the subsequent month will be paid only after submission of certificate of disbursement of wages of previous month.
- In case of any changes in the minimum wages as per the Applicable Laws during the Contract period, Buyer shall pay the Service Provider the difference in wage from the amount mentioned in the contract on pro rata basis.
- The cost of the Contract shall be valid for initial contract period. No price escalation, other than minimum wages revision, shall be entertained by the Buyer during the period.

8.2 Payment Cycle

- Payment shall be made once the Service Provider submits the invoice for the same as per the prescribed process flow.
- The Buyer shall make the payment within prescribed timelines as per the payment process flow upon submission of invoice, logbook and service feedback.

8.3 Payment Process

- Payment shall be made only after submission of invoices, logbook, service feedback, non-submission of the same may lead to delay/ deduction in payment.
- All the deductions/ fine/ interest (if applicable) will be settled before making the payments. Service Provider shall not have any objection on the same.
- Payment will be made through bank transfer only, in no circumstance cash/ cheque payment will be made.

9 Amendment of Contract

During service delivery period some conditions may occur when the Buyer and/ or Service Provider may require amending the Agreement, some of such conditions may be as followed-

i. *Amendment of the Contract after event of Force Majeure:* In case of occurrence of any exceptional event/ circumstance which has affected either party directly to perform the agreed services, the agreement can be amended. However, cause, evidence and nature of such effect shall be notified to the other party.

ii. *Amendment in statutory variations:* .

iii. *Variation of the Contract as per both parties' consent:* Variation of the Contract shall be done as per mutual consent of both parties; no party shall be made liable to pay/ get any compensation for agreement amendment. The variation in the contract can be through the following, however, the variation put together shall not reduce or exceed 25% of contract value:

a. Increase or decrease in the manpower requirement or services to be provided

b. Increase or decrease in duration of contract

10 Termination of Contract

The Agreement shall be come to an end either on completion of the Contract Period or shall be terminated for the following reasons:

i. *Mutual consent:* The contract may be terminated based on mutual consent in case the services are no longer required. Termination based on mutual consent will not attract any deductions or shall not be liable for any extra payments other than payment of invoices raised till the time of termination including notice period.

ii. *Breach of contractual obligations:* Any incidents considered as the breach of contract will result in immediate termination of services. The Buyer shall have the right to terminate the Contract effective immediately by giving written notice to the Service Provider if, the Service Provider breaches a material provision of this Contract where that breach is not capable of remedy; or if the Service Provider breaches any provision of this Contract and fails to remedy the breach within 14 days after receiving notice requiring it to do so.

iii. *Breach of SLAs:* The contract may also be terminated if i) the cumulative deductions rise to 10% of the contract value ii) repeated breach of any SLA beyond 3 instances as per the Buyer's discretion.

However, termination of this Contract shall not affect any accrued rights or remedies of either party.

अतिरिक्त आवश्यक डेटा/दस्तावेज़: खरीदार | Additional Required Data/Document(s) : Buyer

1. Details of the premise : [click here](#)
2. Scope of work : [click here](#)

ईपीबीजी विवरण | ePBG Detail

सलाहकार बैंक Advisory Bank :	State Bank of India
ईपीबीजी प्रतिशत (%) ePBG Percentage(%):	5.00
बोली लगाने वाले को बोली के नियमों और शर्तों के अनुसार लागू ईपीबीजी प्रस्तुत करना होगा The bidder shall furnish ePBG as applicable as per bid's terms and conditions	

नियम और शर्तें | Terms and Conditions

1. General Terms and Conditions-

- 1.1 This contract is governed by the [General Terms and Conditions](#), conditions stipulated to this Product/Service as provided in the Marketplace.
- 1.2 This Contract between the Seller and the Buyer, is for the supply of the Goods and/ or Services, detailed in the schedule above, in accordance with the General Terms and Conditions (GTC) unless otherwise superseded by Goods / Services specific Special Terms and Conditions (STC) and/ or BID/Reverse Auction Additional Terms and Conditions (ATC), as applicable
- 1.3 All GeM Sellers / Service Providers are mandated to ensure compliance with all the applicable laws / acts / rules including but not limited to all Labour Laws such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972 etc. Any non-compliance will be treated as breach of contract and Buyer may take suitable actions as per GeM Contract.

2. Buyer Added Bid Specific Terms and Conditions-

2.1 Service & Support:

Escalation Matrix For Service Support : Bidder/OEM must provide Escalation Matrix of Telephone Numbers for Service Support.

2.2 Buyer Added Bid Specific ATC:

Buyer uploaded ATC document [Click here to view the file.](#)

नोट: यह सिस्टम जनरेटेड फाइल है। कोई हस्ताक्षर की आवश्यकता नहीं है।

Note: This is system generated file. No signature is required.

अनुबंध | Contract



अनुबंध क्रमांक | Contract No: GEMC-511687755989415

अनुबंध तिथि | Generated Date : 09-Jul-2025

बोली/आरए/पीबीपी संख्या | Bid/RA/PBP No.: [GEM/2025/B/5929534](#)

संगठन विवरण Organisation Details प्ररूप Type : State Government मंत्रालय Ministry : - विभाग Department : Health & Family Welfare Department Gujarat संगठन का नाम Organisation Name : N/A कार्यालय क्षेत्र Office Zone: CHC NIZAR		खरीदार विवरण Buyer Details पद Designation : DENTAL SURGEN संपर्क नंबर Contact No. : 02628-223181- ईमेल आईडी Email ID : buycon196.hfwdg.gj@gembuyer.in जीएसटीआईएन GSTIN : - पता Address : REFERRAL HOSPITAL & COMMUNITY HEALTH CENTRE, Kukarmunda TA-Kukarmunda DIST-TAPI PIN CODE NO-394380, Surat, GUJARAT-394380, India				
वित्तीय स्वीकृति विवरण Financial Approval Detail आईएफडी सहमति IFD Concurrence : No प्रशासनिक अनुमोदन का पदनाम Designation of Administrative Approval: chc kukarmunda वित्तीय अनुमोदन का पदनाम Designation of Financial Approval : chc kukarmunda		भुगतान प्राधिकरण विवरण Paying Authority Details Role: PAO भुगतान का तरीका Payment Mode: Offline पद Designation : Account Cum DEO ईमेल आईडी Email ID : pao151.hfwdg.gj@gembuyer.in जीएसटीआईएन GSTIN : - पता Address: REFERRAL HOSPITAL & COMMUNITY HEALTH CENTRE, Kukarmunda TA-Kukarmunda DIST-TAPI PIN CODE NO-394380, Surat, GUJARAT-394380, India				
विक्रेता विवरण Seller Details जेम विक्रेता आईडी GeM Seller ID : 0D0E200001130179 कंपनी का नाम Company Name : SHIV TRADING संपर्क नंबर Contact No. : 08866545280 ईमेल आईडी Email ID : shivtradingsrt@gmail.com पता Address : FIRST,1,VAIBHAV COMPLEX,NEAR VAIBHAV CINEMA, Surat, GUJARAT-394650, - एमएसएमई पंजीकरण संख्या MSME Registration number : - जीएसटीआईएन GSTIN: 24AISP8250F1ZR (R)						
*जिसके नाम के पक्ष में GST/TAX इनवॉइस पेश किया जाएगा GST / Tax invoice to be raised in the name of - Buyer						
वितरण निर्देश Delivery Instructions : NA						
उत्पाद विवरण Product Details						
#	आइटम विवरण Item Description	आइटम विवरण Ordered Quantity	इकाई Unit	इकाई मूल्य (INR) Unit Price (INR)	कर विभाजन (INR) Tax Bifurcation (INR)	मूल्य (INR में सभी शुल्क और कर सहित) Price (Inclusive of all Duties and Taxes in INR)
1	उत्पाद का नाम Product Name : niscomed LCD Display Cardiac Monitor with defibrillator ब्रांड Brand : niscomed ब्रांड प्रकार Brand Type : Registered Brand कैटलॉग की स्थिति Catalogue Status: OEM verified catalogue कैसे बेचा जा रहा है Selling As : Reseller not verified by OEM श्रेणी का नाम और चतुर्थांश Category Name & Quadrant : Cardiac Monitor with defibrillator (Q2) मॉडल Model: BIPHASIC DEFIBRILLATOR एचएसएन कोड HSN Code: HSN not specified by seller	2	pieces	298,490	NA	596,980
कुल ऑर्डर मूल्य Total Order Value (in INR)						596,980
परोक्षी विवरण Consignee Detail						
क्र.सं. S.No	परोक्षी Consignee	वस्तु Item	लॉट नंबर Lot No.	मात्रा Quantity	दिनांक के बाद डिलीवरी शुरू करना है Delivery Start After	वितरण पूरा कब तक करना है Delivery To Be Completed By
	पद Designation : - ईमेल आईडी Email ID : buycon196.hfwdg.gj@gembuyer.in					

1	संपर्क Contact : 02628-223181- जीएसटीआईएन GSTIN : - पता Address : REFERRAL HOSPITAL & COMMUNITY HEALTH CENTRE, Kukarmunda TA-Kukarmunda DIST-TAPI PIN CODE NO-394380, Surat, GUJARAT-394380, India	niscomed LCD Display Cardiac Monitor with defibrillator	-	2	09-Jul-2025	24-Jul-2025
Product Specification for niscomed LCD Display Cardiac Monitor with defibrillator						
विनिर्देश Specification		उप-विनिर्देश Sub-Spec				मूल्य Value
Standards	Conformity to Certification (In case of EU CE/CE European certification from notified body)					European CE
	Certification number and date					NA
	Conformity to Manufactures Certification					ISO 9001 & ISO 13485
	Conformity to Safety Standards					IEC 60601-2-4 or Equivalent BIS
Performance Parameters	Capability parameter of defibrillator					ECG Monitoring , defibrillation
	Technology of defibrillator					Biphasic technology
	Modes in defibrillator					Automated external defibrillation and manual
	Maximum energy selection in joules					200
	Capability of ECG Monitoring					ECG leads , multi function electrodes , paddles
	Number of wave-forms					4
	Patient compatibility to defibrillate					Adult ,pediatric patients
	Type of display					LCD
	Size of display screen in inch					6
	Provision to display ECG waveform on bright high resolution display					Yes
	Facility to have synchronized cardio version					Yes
	Ability to display CPR index on screen real time					No
	Ability to filter out CPR artefacts to see organised rhythms without interrupting chest compression					Yes
	Provision of within built rechargeable battery					Yes
	Battery backup to deliver number of shocks at maximum energy					50
	Weight of defibrillator with battery and paddles in Kg					7
	Provision of in built recorder					Yes
	Provision of printing ECG trace & stored information					Yes
	Facility of External non-invasive pacing					No
	Type of external transcutaneous pacing modes					Both Demand mode and fixed mode
	Pulse width of External non-invasive pacing in milli seconds					NA
	Ability to measure chest compression rate and depth in real time with visual feedback on screen with rate and depth indicator					Not Provided
	Facility to monitor EtCO2					Yes
	Facility to monitor NIBP					Yes
	Facility to monitor SPO2					Yes
	Upgradability to monitor EtCO2					No
	Upgradability to monitor NIBP					No
	Upgradability to monitor SPO2					No
	ECG monitoring					Using 12 leads
	Provision of user selectable alarm settings					Yes
	The machine should work on mains as well as on rechargeable battery					Yes
	Ability to select energy from paddles					Yes
	Ability to charge and discharge through paddles as well as from main unit					Yes
	Facility for internal defibrillation					No
	Charging time for maximum energy in seconds					7

	Mechanism of self test of unit	Automatic and manual
	Unit should do self test with facility to give printout of defibrillator testing report and also have code ready indicator on unit	Yes
	Provision of stainless steel trolley with lockable castors	No
	Suitability of defibrillator for transport on ground (ambulance)	Yes
	Defibrillator suitable to use at high altitudes and in air craft	No
	Defibrillator should display selected energy	Yes
	Defibrillator should display delivered energy	No
	Suitability of defibrillator for transportation in air (aircraft)	Yes
	Availability of suitable protection for dust and water	Yes
Accessories	Li-ion Battery	1
	ECG cable	1
	NIBP pediatric cuff with hose	1
	NIBP adult cuff with hose	1
	Reusable airway adaptor to be used with ETCO2 main stream / side stream sensor and cable	1
	Disposable airway adapter with EtCO2 mainstream sensor and cable	2 each for incubated and non incubated patient
	External defibrillator paddles (pediatric in built in adult)	1
	Multi Function Defibrillator & Monitoring pads/gel sheets	10
	Recorder paper roll	10
	Reusable CPR feedback sensor/or similar product reused	Not provided
Miscellaneous Parameters	Warranty (Option of comprehensive warranty is available through bidding only, which if opted will supersede normal warranty in the catalogue)	2
	Original User / Technical manuals to be supplied in English in hard and soft copy	Yes
	Original copy of operating and service manuals to be supplied in English in hard and soft copy	Yes
	Calibration and preventive maintenance certificate has to be provided as per requirement	Yes
	Installation, Demonstration and training to be provided at consignee end at any part of country	Yes
	The Principal Manufacturer Must Have Direct Presence/approved service center In India	Yes
	Advanced maintenance task required shall be documented and procedures required for local calibration and routine maintenance and list of imp spare parts with accessories along with part numbers to be furnished	Yes
	Availability of toll free facility for technical support maintained by OEM or authorized agencies	Yes
	Provide Certificate from the principal that spare parts will be available from next 10 years at the time of supplies to the buyer	Yes
	Copies of all certifications to be provided to buyer on demand at time of supplies	Yes
शुद्धिपत्र Corrigendum 1. तक बढ़ाया गया Extended Upto : 2025-03-03 11:00:00 2. तक बढ़ाया गया Extended Upto : 2025-03-04 14:00:00 3. तक बढ़ाया गया Extended Upto : 2025-03-05 18:00:00 ईपीबीजी विवरण ePBG Detail		
सलाहकार बैंक Advisory Bank :		NA
ईपीबीजी प्रतिशत (%) ePBG Percentage(%):		NA
नियम और शर्तें Terms and Conditions		
1. Special terms and conditions- Version:2 effective from 21-10-2022 1.1 1. All Provisions of Drugs and Cosmetics Act, 1940 and Rules made there under as amended till date will always be applicable. This will include all notifications issued by <i>Central Drugs Standard Control Organisation(CDSCO)</i> , Ministry of Health & Family Welfare (MoHFW) and Department of Pharmaceuticals (DOP), Ministry of Chemicals & Fertilizers time to time in this regard. 2. The sellers are registered on GeM based on self-declaration of valid Drug License, product certification, test reports etc. However, buyers must check and validate the details at their end for all applicable licenses and certifications e.g., validity and authenticity/genuineness of drug license, product certification, manufacturer certification/licenses, test reports etc. 3. The price offered by the seller shall not, in any case exceed the DPCO controlled price, if any, fixed by the Central/State Government, the Maximum Retail Price (MRP) and the selling price. The seller must reduce the prices if there is any reduction in DPCO ceiling price, if any.		

4. **Comprehensive warranty:** Comprehensive warranty shall include preventive maintenance including calibration as per technical/ service /operational manual of the manufacturer, service charges and spares. During the warranty period commencing from date of the successful completion of warranty period, Service personnel shall visit each consignee site as recommended in the manufacturer's technical/ service /operational manual, at least once in six months. warranty shall not be including the consumables. Further there will be 98% uptime warranty during warranty period on 24 (hrs) X 7 (days) X 365 (days) basis, with penalty, to extend warranty period by double the downtime period.
5. **Service centres:** Details of Service outlets in India to render services for equipment to be furnished to buyer/consignees with complete address, telephone numbers, e mails etc at time of making the supplies. It shall be the responsibility of seller to ensure that authorized service centres are available to cater to the areas where supplies are made within reasonable distance from where the service calls can be handled. Details of toll-free numbers for service call and online registration of service requests also to be provided buyer/consignee at the time of supplies.
6. **Source of supply:** It shall be responsibility of seller to provide Documents regarding source of equipments such as copy of Performa invoice or any other documents to establish that the products supplied are manufactured by OEM indicated and sourced from them.
7. **Packing and Marking:** Medical equipments being very delicate and sensitive packing for the goods should be strong and durable enough to withstand transit including transshipment (if any), rough handling, open storage etc. without any damage, deterioration etc. .The size, weights and volumes of the packing cases, remoteness of the final destination of the goods, availability or otherwise of transport and handling facilities at all points during transit up to final destination,. Quality of packing, the manner of marking within & outside the packages and provision of accompanying documentation shall take into consideration the type of medical equipments being supplied. The accessories shall be suitably labelled and packed. Each of the package shall be marked on three sides with indelible paint of proper quality: indicating contract number and date, brief description of goods including quantity, Packing list reference number, country of origin of goods and any other relevant details.
8. **Spare Parts:** Seller shall provide materials, information etc. pertaining to spare parts manufactured and supplied by the OEM. It shall be ensured that the required spares are available for purchase at least for 10 years from date of supplies. In case due to any reasons the production of the spare parts is discontinued sufficient advance notice should be given to the buyer/consignee before such discontinuation to provide adequate time to purchase the required spare parts etc. Further, OEM and their service centres/dealers shall carry sufficient inventories to assure ex-stock supply of consumables and spares for the equipments so that the same are available. OEM or reseller shall always accord most favoured client status to the buyer/consignee and shall give the most competitive price for spares and consumables of its machines/equipments supplied.
9. **Installation, Training, Manuals:** Seller shall be responsible to carry out Installation & commissioning, Supervision and Demonstration of the goods. They shall provide required jigs and tools for assembly, minor civil works for the completion of the installation and Training of Consignee's representatives for operating and maintaining the equipment and supplying required number of operation & maintenance manual for the goods. In case the category parameters are specifying any requirements regarding the installations, training and manuals the same shall also be applicable.
10. **Electrical safety checking:** Sellers are required to make sure that they furnish the list of equipments for carrying out routine and preventive maintenance to buyer/consignee .They should make sure to periodically check the electrical safety aspects as per BIS Safety Standards or equivalent .In case they do not have required equipment for such testing should ensure that the equipments checked for electrical safety compliance through labs with facilities for such checking during every preventive maintenance call.
11. **Software:** All software updates should be provided free of cost during warranty period.
12. Any other Terms and Conditions which is not included or at variance with the conditions specified in STC/GTC, may be added by the buyer through Additional Terms and Conditions in the bid to ensure items are procured from authentic/validated source with appropriate and applicable quality. The above terms and conditions are in reverse order of precedence i.e. ATC shall supersede specific STC which shall supersede General Terms and Conditions ("GTC"), whenever there are any conflicting provisions.

2. General Terms and Conditions-

- 2.1 This contract is governed by the [General Terms and Conditions](#), conditions stipulated to this Product/Service as provided in the Marketplace.
- 2.2 This Contract between the Seller and the Buyer, is for the supply of the Goods and/ or Services, detailed in the schedule above, in accordance with the General Terms and Conditions (GTC) unless otherwise superseded by Goods / Services specific Special Terms and Conditions (STC) and/ or BID/Reverse Auction Additional Terms and Conditions (ATC), as applicable
- 2.3 All GeM Sellers / Service Providers are mandated to ensure compliance with all the applicable laws / acts / rules including but not limited to all Labour Laws such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972 etc. Any non-compliance will be treated as breach of contract and Buyer may take suitable actions as per GeM Contract.

3. Buyer Added Bid Specific Terms and Conditions-

3.1 Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 % of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

3.2 Generic

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

3.3 Turnover:

Bidder Turn Over Criteria: The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

3.4 Turnover:

OEM Turn Over Criteria: The minimum average annual financial turnover of the OEM of the offered product during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the OEM is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria. In case of bunch bids, the OEM of CATEGORY RELATED TO primary product having highest bid value should meet this criterion.

3.5 Service & Support:

Escalation Matrix For Service Support : Bidder/OEM must provide Escalation Matrix of Telephone Numbers for Service Support.

3.6 Service & Support:

Dedicated /toll Free Telephone No. for Service Support : BIDDER/OEM must have Dedicated/toll Free Telephone No. for Service Support.

3.7 Certificates:

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

3.8 Certificates:

ISO 9001: The bidder or the OEM of the offered products must have ISO 9001 certification.

3.9 Past Project Experience:

Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.

3.10 Past Project Experience:

The Bidder / OEM {themselves or through reseller(s)}, should have executed project for supply and installation / commissioning of same or similar Category Products during preceding 3 financial years (i.e. current year and three previous financial years) as on opening of bid, as per following criteria:

- (i) Single order of at least 35% of estimated bid value; or
- (ii) Two orders of at least 20% each of estimated bid value; or
- (iii) Three orders of at least 15% each of estimated bid value.

Satisfactory Performance certificate issued by respective Buyer Organization for the above Orders should be uploaded with bid. In case of bunch bids, the Category related to primary product having highest bid value should meet this criterion

3.11 Buyer Added Bid Specific ATC:

Buyer uploaded ATC document [Click here to view the file](#).

नोट: यह सिस्टम जनरेटेड फाइल है। कोई हस्ताक्षर की आवश्यकता नहीं है। इस दस्तावेज़ का प्रिंट आउट भुगतान/लेनदेन उद्देश्य के लिए मान्य नहीं है।

Note: This is system generated file. No signature is required. Print out of this document is not valid for payment/ transaction purpose.

अनुबंध | Contract



अनुबंध क्रमांक | Contract No: GEMC-511687756662758
अनुबंध तिथि | Contract Generated Date : 30-Oct-2025
बोली/आरए/पीबीपी संख्या | Bid/RA/PBP No.: [GEM/2025/B/6349819](#)

संगठन विवरण Organisation Details	खरीदार विवरण Buyer Details
प्ररूप Type : State Government मंत्रालय Ministry : - विभाग Department : Agriculture and Co-operation Department Gujarat संगठन का नाम Organisation Name : Directorate of Agriculture कार्यालय क्षेत्र Office Zone: Joint Director of Agriculture Extension Surat	पद Designation : Assistant Director of Agriculture Training संपर्क नंबर Contact No. : - ईमेल आईडी Email ID : buycon89.da.gj@gembuyer.in जीएसटीआईएन GSTIN : - पता Address : Office of Deputy Director of Agriculture (Training) Farmer Training Center, Navapur Road, Ahwa, Dist. Dang, The Dangs, 394710, The Dangs, GUJARAT-394710, India

वित्तीय स्वीकृति विवरण Financial Approval Detail	भुगतान प्राधिकरण विवरण Paying Authority Details
आईएफडी सहमति IFD Concurrence : No प्रशासनिक अनुमोदन का पदनाम Designation of Administrative Approval: Deputy Director of Agriculture (Training) ,Ahwa-Dang वित्तीय अनुमोदन का पदनाम Designation of Financial Approval : Deputy Director of Agriculture (Training) ,Ahwa-Dang	Role: BUYER भुगतान का तरीका Payment Mode: Offline पद Designation : Assistant Director of Agriculture Training ईमेल आईडी Email ID : buycon89.da.gj@gembuyer.in जीएसटीआईएन GSTIN : - पता Address: Office of Deputy Director of Agriculture (Training) Farmer Training Center, Navapur Road, Ahwa, Dist. Dang, The Dangs, 394710, The Dangs, GUJARAT-394710, India

प्रेषिती विवरण Consignee Details			
क्र.सं. S.No	प्रेषिती नाम & पता Consignee Name & Address	सेवा विवरण Service Description	मात्रा Quantity
1	संपर्क Contact : - ईमेल आईडी Email ID : buycon89.da.gj@gembuyer.in जीएसटीआईएन GSTIN : - पता Address : Office of Deputy Director of Agriculture (Training) Farmer Training Center, Navapur Road, Ahwa, Dist. Dang, The Dangs, 394710, The Dangs, GUJARAT-394710, India	Facility Management Services - LumpSum Based - Commercial; Establishment of natural Farming Crops processing, sorting and Packaging Uni; Consumables to be provided by service provider (inclusive in contract cost)	1

सेवा प्रदाता विवरण Service Provider Details	
जेम विक्रेता आईडी GeM Seller ID : कंपनी का नाम Company Name : संपर्क नंबर Contact No. : ईमेल आईडी Email ID : पता Address : एमएसएमई पंजीकरण संख्या MSME Registration number : जीएसटीआईएन GSTIN:	0D0E200001130179 SHIV TRADING 08866545280 shivtradingsrt@gmail.com FIRST,1,VAIBHAV COMPLEX,NEAR VAIBHAV CINEMA, Surat, GUJARAT-394650, - - 24AISPV8250F1ZR (R)
खरीदार द्वारा सत्यापित एमएसएमई स्थिति MSME Status as verified by buyer :	Not Verified

*जिसके नाम के पक्ष में GST/TAX इनवॉइस पेश किया जाएगा | GST / Tax invoice to be raised in the name of - Buyer

सेवा विवरण Service Details

सेवा प्रारंभ दिनांक (नवीनतम) | Service Start Date (latest by): 02-Nov-2025 सेवा समाप्ति तिथि | Service End Date : 12-Dec-2025

श्रेणी नाम | Category Name : Facility Management Services - LumpSum Based

बिलिंग चक्र | Billing Cycle: monthly

विवरण Description		To be set as 1	Total Bid Value(Lumpsum quote)
Type of Premises	Commercial	1	5036492
Type of services required	Establishment of natural Farming Crops processing, sorting and Packaging Uni		
Cost for Consumables/ Materials	Consumables to be provided by service provider (inclusive in contract cost)		
Service component	Establishment of natural Farming Crops processing, sorting and Packaging Uni		
कुल राशि (रु०) Total Amount (Formula) : (Total Bid Value(Lumpsum quote)*1)			
ऐडऑन के बिना कुल मूल्य Total Value without Addons(INR)			5036492
कुल एडऑन मूल्य Total Addon Value(INR)			0
ऐडऑन सहित कुल मूल्य Total Value Including Addons(INR)			5036492

अनुबंध की राशि Amount of Contract
सभी शुल्क और करों सहित कुल अनुबंध मूल्य Total Contract Value Including All Duties and Taxes(INR)
5036492

एसएलए विवरण SLA Details
Service Level Agreement for Facility Management Services
Lump Sum Basis

All Facility Management Services related Contracts/ Agreement placed through GeM shall be governed by following set of Terms and Conditions:

1. General terms and conditions for Services ("GTC");
2. Service Specific Terms and Conditions ("STC") of the Services contracts shall include the Service Level Agreement ("SLA") for the service;
3. BID / Reverse Auction specific Additional Terms and Conditions ("ATC") as specified by the Buyer.

The above terms and conditions are in reverse order of precedence i.e. ATC supersedes Service specific STC which supersede GTC, whenever there are any conflicting provisions. The above set of terms and conditions along with scope of work and SLA as enumerated in the document shall be construed to be part of the Contract between the Buyer and the Service Provider. The service will be provided in bid only mode.

1 Objectives and Goals

The objective of this Agreement is to ensure that all the commitments and obligations are in place to ensure consistent delivery of services to the Buyer by the Service Provider. The goals of this Agreement are to:

- i. Provide clear reference to service ownership, accountability, roles and responsibilities of both parties
- ii. Present a clear, concise and measurable description of services offered to the Buyer
- iii. Establish terms and conditions for all the involved stakeholders, it also includes the actions to be taken in case of failure to comply with conditions specified
- iv. To ensure that both the parties understand the consequences in case of termination of services due to any of the stated reasons

The Agreement will act as a reference document that both the parties have understood the above-mentioned terms and conditions and have agreed to comply by the same. The Agreement can also be revised/ modified on mutual consent of the stakeholders.

2 Parties to the Agreement

The main stakeholders associated with this Agreement are below-

- i. **Buyer:** The Buyer is responsible to provide clear instructions, approvals and timely payments for the services availed
- ii. **Service Provider:** The Service Provider is responsible to provide all the required services in timely manner. The Service Provider may also include seller, any authorized agents, assignees, successors and nominees as described in the Agreement

The responsibilities and obligations of the stakeholders have been outlined in this document. The document also encompasses service level/ deductions in case of non-adherence to the defined terms and conditions. It is assumed that all stakeholders have read and understood the same before signing the document.

3 Scope of Services

This service deals with hiring of facility management services which encompasses all activities related to keeping a complex operating with all its infrastructural and maintenance related requirements. This service includes multiple disciplines to ensure functionality, comfort, safety and efficiency of the built environment by integrating people, place, process and technology. It typically includes a wide range of function and support services such as housekeeping, security, property or building management, basic engineering services, mail and messenger services, records management, safety and other support duties.

Type of Model: This service offering is on Lump sum basis, for the contract duration, the Buyer can take the item-wise pricing of various components involved in this service, through Financial Upload document.

Types of Services: This service offering provides multiple services under a single contract for professional maintenance and upkeep of the property (commercial, residential, hospitality, healthcare, industrial, etc.). Buyer of this service will have the option to choose the type of service and service components as per their requirement, for which the following categories have been defined:

#	Services	Service Component
1	Housekeeping	· Cleaning & Sanitation
		· Front Desk Management
		· Mail Management/ Runner
		· Waste Management (other than healthcare facility)
		· Waste Management (Healthcare)
		· Laundry Services
		· Work Routine Services (Healthcare)
2	Security Services	· Work Routine Services (other than healthcare facility)
		· Regular work of Guest House/ Hostel (Hospitality) (such as porter services, lift man, etc.)
		· Physical Security
		· Parking Management
		· CCTV Control & Operations
3	Horticulture Services	· Visitor Management & Access Control
		· Gardening
4	Patient Support Services	· Landscape
		· Assisting the patient in getting into or out of the bed
		· Attend to the personal hygiene of patients
		· Preparing and carrying the patients for operations, laboratory, X-ray and other investigations
		· Carrying and transporting patients to various wards/ departments in the hospital
		· Assist in maintaining stocks of linen and non-medical supplies
		· Assist the nurses or doctors in diagnostic and treatment procedures
		· Assist in sterilization of instruments, appliances and dressings and dressing of postoperative wounds

#	Services	Service Component
		· Bedbug control · Disinfestation · General Pest Control · Rodent control · Termite Control (Spot treatment/ drilling treatment)
5	Pest Control Service	· Vector control (mosquitos/ insects) · Cockroach control · Fumigation · Pest proofing (Pest proofing is closure of holes and cracks that may potentially cause pest infestation) · Infection control (Surface sterilization)
		· Plumbing · Water Supply
6	O&M Mechanical	· Pumps · Fire Fighting System · Lift
		· Electrical Supply of HT/LT · DG Sets
7	O&M of Electrical Work	· UPS · AC Chillers · HVAC · Transformers
Manpower Required: Service Provider shall provide manpower based on the Buyer's selection of manpower profile, quantity and skill level. The Buyer of this service will have the option to choose the type of manpower as per their requirement, for which the following categories have been defined:		
#	Type of Manpower Required	
1	Cleaner / Sweeper	
2	Office Attendant	
3	Receptionist	
4	Mail Attendant/ Runner	
5	Guest house attendant	
6	Porter	
7	Laundry wash boys	
8	Security Guard	
9	Gardener	
10	Ward Boys/Girls	
11	Plumber	
12	Electrician	
13	Fire Supervisor	
14	AC Plant Operator	
15	Help Desk Support Executive	
16	Others - Please Specify	
Consumables: The Service Provider shall provide consumables such as cleaning agents, equipment, etc. based on the Buyer's selection of cost to be borne by the Buyer/ Service Provider/ reimbursable by the Buyer. In case wherein consumables are to be provided by the Service Provider and the cost is to be included in the Contract cost, a list of suggestive consumables will be provided by the Buyer.		

3.1 Service Details and Standards

- i. The Service Provider shall abide at all times by the all existing labor enactments and rules made there under, regulations, notifications and bye laws of the State or Central Government or local authority and any other labor law (including rules), regulations, bye laws that may be passed or notification that may be issued under any labor law in future either by the State or the Central Government or the local authority
- ii. The Service Provider shall make his own arrangements for the engagement of all staff and labor, local or other, and for their payment, housing, feeding and transport.
- iii. The Service Provider is responsible for co-ordination and management of delivery of services from AMC vendors/suppliers/contractors, therefore for ensuring safety compliance by them, FMC is required to monitor the delivery of service and report client in case of non-compliance of safety requirements immediately
- iv. The manpower deployed should maintain polite & courteous behavior towards the Buyer. "Misbehavior" which may include, but not limited to, consumption of alcohol during or prior to duty, denial of duty during service hours as defined by user, use of abusive language, theft, shall attract deductions as per provisions of the Contract.

3.2 Service Assumptions

- i. The Service Provider shall not sublet any part of the Contract. The Service Provider may act as an aggregator of manpower to be provided. However, it is the Service Provider who shall be responsible and liable to deliver the services as per the Contract.
- ii. The manpower provided by the Service Provider shall not be deemed employees of the Buyer hence the compliance of the applicable labor laws and acts and other relevant laws will be the sole responsibility of the Service Provider.
- iii. The Service Provider shall not deploy any manpower that is ailing from any contagious disease.
- iv. The Service Provider shall verify the character & antecedent of manpower to be deployed.
- v. The persons deployed during the course of their work shall perform integrity to the Buyer and shall not disclose/ share any qualified documents and information which they are not supposed to divulge to the Service Provider/ third parties.
- vi. The Service Provider shall indemnify the Buyer against all the losses, injuries and any kind of damage arrived due to its activities
- vii. The Buyer will in no way be responsible for violation of labor laws and /or infringement of any other law for the time being in force, either by the manpower provided or by the Service Provider.
- viii. The attendance of the employees will be entered in the register provided by the Service Provider and/or in the Aadhaar based Biometric attendance system at the Buyer's premises. The persons deployed should be polite, cordial and efficient while handling the assigned work and their actions should promote good will and enhance the image of the Corporation or office concerned. The Service Provider shall be responsible for any act of indiscipline on the part of the persons deployed.
- ix. The Service Provider shall ensure that all the relevant licenses / registrations / permissions which may be required for providing the services are valid during the entire period of the contract; failing so shall attract the appropriate deductions. The documents relevant in this regard shall be provided by the Service Provider to the Buyer on demand.
- x. The Service Provider shall be required to keep the Buyer updated about the change of address, change of the Management etc. from time to time.

4 Service Provider's Obligation

- i. The Service Provider shall ensure the level of service required is of the highest professional standard and shall ensure full compliance to the terms and conditions of the Contract.
- ii. The Service Provider shall attend to emergency works in time. No extra payment will be made for working on odd hours for emergency works.
- iii. The Service Provider will be required to submit list of the manpower being deployed with photo ID, address proof, police verification certificate and educational qualifications before deputing the workers. The Service Provider shall be solely responsible for the credentials/ acts of his staff /workers
- iv. The Service Provider shall provide at his own cost proper uniform and badges and photo identity cards to the manpower deployed.
- v. In an event that, for any reason, the manpower provided change their contact number during the tenure of the contract then service provider will immediately notify the buyer of the above change.
- vi. The Service Provider shall be responsible for ensuring compliance with the provisions related to Labour Law [Central/State] and specially Workmen Compensation Act, EPF Laws, ESIC Laws, Income tax laws and Minimum Wages Laws, Contract Labour (Regulations Abolition Act) and any other relevant acts as applicable at present or in future during the tenure of the Contract and as may be enforced from time to time. Onus of compliance of all the applicable Laws/Acts/Rules/Bye-Laws/Regulations/Standards/Guidelines/Notification/Recommended Practices, etc. shall rest with the Service Provider only and the Buyer will not be liable in any manner.
- vii. The Service Provider shall produce to the Buyer the details of payments of statutory benefits like bonus, leave, relief etc. from time to time to its personnel.
- viii. The Service Provider shall cover all its personnel under the relevant laws of EPF, Labor, ESIC etc. Proof of the same should be submitted by the Service Provider.
- ix. The Service Provider shall submit a copy of wages sheet showing monthly wages paid to its personnel.
- x. The Service Provider shall cover its personnel for personal accident and death whilst performing the duty and the Buyer shall own no liability and obligation in this regard.
- xi. The Service Provider shall also provide at its own cost all benefits statutory or otherwise to its deployed personnel and the Buyer shall not have any liability whatsoever on this account.
- xii. The Service Provider shall employ only manpower who has completed eighteen years of age and not above 65 years of age
- xiii. The Service Provider shall provide the documentary proof for the qualifications and experience of the manpower deployed by them. The bio-data, qualification and experience of the said manpower should be certified by the Service Provider.
- xiv. The Service Provider shall not deploy or shall discontinue deploying the person(s), if desired by the Buyer and must ensure prompt replacement of the personnel without any additional cost to the Buyer. The personnel being deployed shall ordinarily be continued and should not be changed without written intimation and consultation with the Buyer.
- xv. The Service Provider would be bound by the conditions with regard to police verification of the deployed staff and their medical fitness.
- xvi. Adequate supervision shall be provided to ensure correct performance of the services in accordance with the prevailing requirements agreed upon between the two parties.
- xvii. In an event that the Service Provider fails to deliver or fails to carry out tasks as per schedule due to absence of personnel or any other reasons, the Service Provider at his own cost shall make alternate arrangement by providing similar manpower for which agreement is entered into, without any extra charges. Failure to do so will evoke deductions and the Buyer shall have right to recover damages as per the provisions of the Contract.
- xviii. The Service Provider shall be personally responsible for any theft, misconduct and /or disobedience on the part of personnel so provided by him.
- xix. The working hours and days of the manpower will be as per the existing applicable rules of the respective Central/State Government organizations. However, they have to work on holidays, if necessary and required based on demand of work.
- xx. The Service Provider shall be fully responsible for the acts of their employees/ agents/ representatives / consultants/ team members and shall fully indemnify the Buyer for any kind of losses or damages caused by its employees/ agents/ representatives/ team members/ consultants. The Buyer shall not be responsible for any claim from any employees/ agents/ representatives /consultant / team member employed or engaged by the Service Provider. The Service Provider shall wholly and fully be responsible for any such claims.

5 Buyer's Obligations

- i. The location for reporting shall be provided by the Buyer to the Service Provider.
- ii. The Buyer must immediately report to the designated representative of the Service Provider for any problems, complaints, incidents or accidents that occur during the contract including any form of inappropriate behavior/ improper uniform by the personnel.

iii. The Buyer shall notify the Service Provider of any dishonest, wrongful or negligent acts or omissions of its personnel or agents in connection with the services as soon as possible after the Buyer becomes aware of them.

iv. The Buyer may calculate their requirement of resources based on 8 hours per shift. For example, to hire a security personnel for a month (i.e. thirty service days) to offer the services for 24 hours on a 3-shift basis, the required number of resources would be 90 personnel for the month.

6 Service Tracking

Tracking of services ensures quality of service delivery in time bound manner, effective service tracking helps in analyzing the Service Provider's performance as well as the Buyer's timely inputs for services and leads to immediate actions against the defaulters if any. Service tracking shall be mandatory for the both Buyer and Service Provider, non-tracking of the same may lead to a deductions

6.1 Logbook

i. The Service Provider shall maintain registers and checklists for each activity and the work done by each of the personnel shall be recorded on a Job Card, duly signed by the Buyer's representative. The Service Provider shall also submit a duly signed comprehensive report every month, detailing the services performed during the month.

ii. The Service Provider shall thereafter update the logbook on the GeM portal as per the logbook process flow.

iii. Once the Service Provider updates the logbook online, the Buyer shall either accept or reject these entries within the prescribed time limit. The Buyer will also record the any service non delivery or non-performance issues, and subsequent deductions. Failure to take action on logbook entries updated by service provider shall be deemed as accepted.

iv. The Service Provider can raise an issue against the rejection of any entry by the Buyer within prescribed timelines of such rejection with the designated representative of the Buyer.

6.2 Service Performance and Feedback

i. The principal point of contact for the issues arising out of this Agreement will be the Service Provider or a designated representative who shall be any employee of the Service Provider in administrative and managerial capacity and in a position of authority to resolve issues. Nonetheless, the Service Provider shall be solely responsible for maintaining the quality and level of services provided.

ii. The Service Provider shall maintain a complaint register at the premises for the complaints by the Buyer.

7 Deductions

In case of noncompliance of the standards of the services to be provided as per this agreement, the Buyer would be at liberty to levy such deductions and terminate the Contract as per the conditions detailed out below:

#	Nature of Default	Default Details	Deductions			Remarks
			1st instance	2 nd instance	3 rd instance	
1	Non deployment of manpower	Non-deployment of total manpower mentioned in the contract as per the date of joining	Up to 15 days, @1 % per day of the total value and beyond 15 days cancellation of contract with cancellation charges @ 10% of the order value	Up to 15 days, @2 % per day of the total value and beyond 15 days cancellation of contract with cancellation charges @ 10% of the order value	Cancellation of contract with cancellation charges @ 10% of the order value	-
2	Failure to address deficiencies/ complaints brought to notice by the Buyer	Deficiencies/ complaints not addressed promptly	Deduction of Rs. 500/- (Rupees Five Hundred Only)	Deduction of Rs. 800/- (Rupees Eight Hundred Only)	Deduction of Rs. 1000/- (Rupees One Thousand Only)	After 3 rd instance, the Buyer may continue to impose the same deductions as imposed for 3 rd instance.
3	If employee is found disclosing any confidential information/ document to the Service Provider/ any third parties		Cancellation of the contract with cancellation charges @ 10% of the order value along with recovery of losses caused (if any) and legal action against the Service Provider depending on the gravity of the act			
4	If the employee is found responsible for any theft, loss of material/ articles and damages		Immediate payment in actuals, equivalent to the value of the article theft/ lost/ damaged. Replacement of employee within 2 days	Immediate payment in actuals, equivalent to the value of the article theft/ lost/ damaged. Replacement of employee within 2 days/ cancellation of contract as decided by the Buyer depending on the gravity of the act.	Cancellation of the contract with cancellation charges @ 10% of the order value	
5	If the employee is found responsible for disobedience/ misconduct		Warning/ counselling of employee as decided by the Buyer depending on the gravity of the act	Warning/ counselling/ Immediate replacement of employee within 2 days as decided by the Buyer and Warning to Service Provider depending on the gravity of the act	Cancellation of the contract with cancellation charges @ 10% of the order value	
	Delay in payments of take-home remuneration by the		Rs. 100 per day for each	Rs. 200 per day for each default, hold on all type of payments to Service	Cancellation of the	

#	Nature of Breach	Default Details	Deductions	Remarks
6	Service Provider and deposit of EPF and ESI (both employer and employee share)		default, warning to Service Provider to deposit the said amount within 7 working days	Provider till the said amount is deposited to respective stakeholders and proof of same is submitted to Buyer
7	If the employee is absent or takes leave for more than 2 days without informing or taking prior approval.		Substitute within 2 days failing which, @ 1 % per day of the total value (excluding service tax etc.) of the absent resources up to 15 days. Beyond 15 days, cancellation of the contract with cancellation charges @ 10% of the order value	Substitute within 2 days failing which, @ 3 % per day of the total value (excluding service tax etc.) of the absent resources up to 15 days. Beyond 15 days, cancellation of the contract with cancellation charges @ 10% of the order value
8	If the employee is found responsible for adopting illegal and foul methods or exercising any corrupt practice in collusion with any third party or officials at the workplace		Immediate replacement within 2 days/ cancellation of the contract with cancellation charges @ 10%, as decided by the Buyer depending on the gravity of the act.	Cancellation of the contract with cancellation charges @ 10% of the order value
- Deductions for a specific month / period shall be capped at 10% of bill generated for that month / period. - If any SLA is breached beyond 3 instances in any billing period, then same shall be treated as a breach of Contract and the Buyer will have full rights to terminate the contract after giving a notice of 30 days.				

8 Payment Terms

8.1 Payment Condition

- The payment shall be made as per the financial quotes submitted by the Service Provider and accepted by the Buyer.
- No advance payment shall be made to the Service Provider.
- The price quoted shall cover all aspects of service delivery.
- The Service Provider shall also deposit EPF and ESI of both employer and employee share within 15th day of the month of payment for the support staff engaged from their account and prefer the bill to the Buyer Department for reimbursement of employer share only.
- Employers share of EPF & ESI actually deposited to the respective authorities with proof of deposit of both employee and employer share by the end of the second week of the succeeding month. Employee share of EPF and ESI contribution shall be recovered from the gross remuneration & balance amount is to be released to the persons employed.
- The Service Providing Agency shall furnish statement of amount paid for the month to the persons deployed along with cheque number and date and Bank account from which the payment has been made. Service Providing agency is to furnish copy of bank statement in support of amount paid as and when required by the Buyer.
- The Service Provider shall be responsible for timely payment of take-home remuneration to the supporting staff and deposit of EPF and ESI (both employee and employer share), failing which a deduction will be deducted.
- The Service Provider shall submit before the Buyer, one copy of the return within 7 days from the date of filing of monthly / quarterly / half yearly / annual return if any before the EPF and ESI authorities.
- The payment to the Service Provider will be made on monthly and quarterly basis, depending upon the actual duration of the services rendered as per order.
- Any violation of contractual obligations by the Service Provider/employee shall attract deductions as mentioned against each obligation. The Service Provider confirms and agrees that penalty whenever becomes payable, the same shall be deducted by the user department from the payments due to the Service Provider.
- All applicable taxes and duties except GST, shall be payable by the Service Provider and the Buyer shall not entertain any claims whatsoever with respect to the same. The Service Provider shall pay the GST and the price quoted is inclusive.
- The Service Provider shall ensure payment regularly for the deployed manpower to their entitlements like monthly salaries/wages etc. and submit the documentary proof of the salary paid as per the terms and conditions of the contract. Bill for the subsequent month will be paid only after submission of certificate of disbursement of wages of previous month.
- In case of any changes in the minimum wages as per the Applicable Laws during the Contract period, Buyer shall pay the Service Provider the difference in wage from the amount mentioned in the contract on pro rata basis.
- The cost of the Contract shall be valid for initial contract period. No price escalation, other than minimum wages revision, shall be entertained by the Buyer during the period.

8.2 Payment Cycle

- Payment shall be made once the Service Provider submits the invoice for the same as per the prescribed process flow.
- The Buyer shall make the payment within prescribed timelines as per the payment process flow upon submission of invoice, logbook and service feedback.

8.3 Payment Process

- Payment shall be made only after submission of invoices, logbook, service feedback, non-submission of the same may lead to delay/ deduction in payment.
- All the deductions/ fine/ interest (if applicable) will be settled before making the payments. Service Provider shall not have any objection on the same.
- Payment will be made through bank transfer only, in no circumstance cash/ cheque payment will be made.

9 Amendment of Contract

During service delivery period some conditions may occur when the Buyer and/ or Service Provider may require amending the Agreement, some of such conditions may be as followed-

- Amendment of the Contract after event of Force Majeure:* In case of occurrence of any exceptional event/ circumstance which has affected either party directly to perform the agreed services, the agreement can be amended. However, cause, evidence and nature of such effect shall be notified to the other party.
- Amendment in statutory variations:* .

iii. *Variation of the Contract as per both parties' consent:* Variation of the Contract shall be done as per mutual consent of both parties; no party shall be made liable to pay/ get any compensation for agreement amendment. The variation in the contract can be through the following, however, the variation put together shall not reduce or exceed 25% of contract value:

a. Increase or decrease in the manpower requirement or services to be provided

b. Increase or decrease in duration of contract

10 Termination of Contract

The Agreement shall be come to an end either on completion of the Contract Period or shall be terminated for the following reasons:

i. *Mutual consent:* The contract may be terminated based on mutual consent in case the services are no longer required. Termination based on mutual consent will not attract any deductions or shall not be liable for any extra payments other than payment of invoices raised till the time of termination including notice period.

ii. *Breach of contractual obligations:* Any incidents considered as the breach of contract will result in immediate termination of services. The Buyer shall have the right to terminate the Contract effective immediately by giving written notice to the Service Provider if, the Service Provider breaches a material provision of this Contract where that breach is not capable of remedy; or if the Service Provider breaches any provision of this Contract and fails to remedy the breach within 14 days after receiving notice requiring it to do so.

iii. *Breach of SLAs:* The contract may also be terminated if i) the cumulative deductions rise to 10% of the contract value ii) repeated breach of any SLA beyond 3 instances as per the Buyer's discretion.

However, termination of this Contract shall not affect any accrued rights or remedies of either party.

अतिरिक्त आवश्यक डेटा/दस्तावेज़: खरीदार | Additional Required Data/Document(s) : Buyer

1. Geographic Presence in states : Gujarat
2. Total experience in providing facility management services to government departments, public sector companies, and government autonomous organizations: : 3YEAR
3. Details of the premise : [click here](#)
4. Scope of work : [click here](#)

अतिरिक्त डेटा/दस्तावेज़ : विक्रेता | Additional Data/Document(s) : Seller

1. Additional Doc 1 (Requested in ATC) : [click here](#)
2. Additional Doc 2 (Requested in ATC) : [click here](#)
3. Certificate (Requested in ATC) : [click here](#)

ईपीबीजी विवरण | ePBG Detail

सलाहकार बैंक Advisory Bank :	NA
ईपीबीजी प्रतिशत (%) ePBG Percentage(%):	NA

नियम और शर्तें | Terms and Conditions

1. General Terms and Conditions-

- 1.1 This contract is governed by the [General Terms and Conditions](#), conditions stipulated to this Product/Service as provided in the Marketplace.
- 1.2 This Contract between the Seller and the Buyer, is for the supply of the Goods and/ or Services, detailed in the schedule above, in accordance with the General Terms and Conditions (GTC) unless otherwise superseded by Goods / Services specific Special Terms and Conditions (STC) and/ or BID/Reverse Auction Additional Terms and Conditions (ATC), as applicable
- 1.3 All GeM Sellers / Service Providers are mandated to ensure compliance with all the applicable laws / acts / rules including but not limited to all Labour Laws such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972 etc. Any non-compliance will be treated as breach of contract and Buyer may take suitable actions as per GeM Contract.

2. Buyer Added Bid Specific Terms and Conditions-

2.1 Generic

OPTION CLAUSE: The buyer can increase or decrease the contract quantity or contract duration up to 25 percent at the time of issue of the contract. However, once the contract is issued, contract quantity or contract duration can only be increased up to 25 percent. Bidders are bound to accept the revised quantity or duration

2.2 Purchase Preference (State):

Bid reserved for MSE from the State of Bid Inviting Authority: Procurement under this bid is reserved for purchase from Micro and Small Enterprises from the State of Bid Inviting Authority having valid Udyam Registration and whose credentials are validated online through Udyam Registration portal. If the bidder wants to avail themselves of the reservation benefit, the bidder must be the manufacturer / OEM of the offered product on GeM. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible to participate in this bid. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility based on documentary evidence submitted, while evaluating the bid. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2.3 Purchase Preference (State):

Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs from the State of Bid Inviting Authority having valid Udyam Registration and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry / State of Bid inviting authority. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service and Buyer will decide eligibility for purchase preference based on documentary evidence submitted, while evaluating the bid. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 5 % of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 5 percentage of total quantity. The buyers are advised to refer the OM No. F.1/4/2021-PPD dated 18.05.2023 OM_No.1_4_2021_PPD_dated_18.05.2023 for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2.4 Generic

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

2.5 Forms of EMD and PBG:

Bidders can also submit the EMD with Account Payee Demand Draft in favour of

DEPUTY DIRECTOR OF AGRICULTURE

payable at

Office of the Deputy Director of Agriculture (Training) Farmer Training Centre, Navapur road, Ahwa-Dang Dist: Dang (Gujarat)

Bidder has to upload scanned copy / proof of the DD along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date / Bid Opening date.

2.6 Certificates:

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

2.7 Past Project Experience:

Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.

2.8 Buyer Added Bid Specific ATC:

Buyer uploaded ATC document [Click here to view the file](#).

Note: Service Providers are required to raise invoices online as per the contract terms on GeM portal. Timely invoice submission is mandatory for compliances, smooth payment processing, and will also contribute to improving their ratings.

नोट: यह सिस्टम जनरेटेड फाइल है। कोई हस्ताक्षर की आवश्यकता नहीं है।

Note: This is system generated file. No signature is required.

अनुबंध | Contract



अनुबंध क्रमांक | Contract No: GEMC-511687766777662

अनुबंध तिथि | Generated Date : 09-Jul-2025

बोली/आरए/पीबीपी संख्या | Bid/RA/PBP No.: [GEM/2025/B/5790384](#)

संगठन विवरण Organisation Details	खरीदार विवरण Buyer Details
प्ररूप Type : State Government मंत्रालय Ministry : - विभाग Department : Health & Family Welfare Department Gujarat संगठन का नाम Organisation Name : N/A कार्यालय क्षेत्र Office Zone: SUBDISTRICT HOSPITAL SONGADH	पद Designation : JR PHARMACIST संपर्क नंबर Contact No. : 79902-75834- ईमेल आईडी Email ID : buycon349.hfwdg.gj@gembuyer.in जीएसटीआईएन GSTIN : - SDH OFFICE NAME SUB-DISTRICT HOSPITAL SONGADH PIN CODE 394670 TALUKO SONGADH DIST TAPI OFFICE पता Address : LAMDLIN 02624 222060, 223060 EMAIL ID chcsongadh.health.tapi1@gmail.com, Surat, GUJARAT-394670, India

वित्तीय स्वीकृति विवरण Financial Approval Detail	भुगतान प्राधिकरण विवरण Paying Authority Details
आईएफडी सहमति IFD Concurrence : No प्रशासनिक अनुमोदन का पदनाम Designation of Administrative Approval: CHC Songadh वित्तीय अनुमोदन का पदनाम Designation of Financial Approval : CHC Songadh	Role: PAO भुगतान का तरीका Payment Mode: Offline पद Designation : ACCO ईमेल आईडी Email ID : pao254.hfwdg.gj@gembuyer.in जीएसटीआईएन GSTIN : - SDH OFFICE NAME SUB-DISTRICT HOSPITAL SONGADH PIN CODE 394670 TALUKO SONGADH DIST TAPI OFFICE पता Address: LAMDLIN 02624 222060, 223060 EMAIL ID chcsongadh.health.tapi1@gmail.com, Surat, GUJARAT-394670, India

विक्रेता विवरण Seller Details
जेम विक्रेता आईडी GeM Seller ID : 0D0E200001130179 कंपनी का नाम Company Name : SHIV TRADING संपर्क नंबर Contact No. : 08866545280 ईमेल आईडी Email ID : shivtradingsrt@gmail.com पता Address : FIRST,1,VAIBHAV COMPLEX,NEAR VAIBHAV CINEMA, Surat, GUJARAT-394650, - एमएसएमई पंजीकरण संख्या MSME Registration number : - जीएसटीआईएन GSTIN: 24AISP8250F1ZR (R)

*जिसके नाम के पक्ष में GST/TAX इनवॉइस पेश किया जाएगा | GST / Tax invoice to be raised in the name of - Buyer

वितरण निर्देश | Delivery Instructions : NA

उत्पाद विवरण Product Details						
#	आइटम विवरण Item Description	आइटम विवरण Ordered Quantity	इकाई Unit	इकाई मूल्य (INR) Unit Price (INR)	कर विभाजन (INR) Tax Bifurcation (INR)	मूल्य (INR में सभी शुल्क और कर सहित) Price (Inclusive of all Duties and Taxes in INR)
1	उत्पाद का नाम Product Name : niscomed ECG Machine 3 Channel ब्रांड Brand : niscomed ब्रांड प्रकार Brand Type : Registered Brand कैटलॉग की स्थिति Catalogue Status: OEM verified catalogue कैसे बेचा जा रहा है Selling As : Reseller not verified by OEM श्रेणी का नाम और चतुर्थांश Category Name & Quadrant : Electrocardiography (ECG) Machine (V2) (Q2) मॉडल Model: FLIGHT301 एचएसएन कोड HSN Code: HSN not specified by seller	2	pieces	119,230	NA	238,460
कुल ऑर्डर मूल्य Total Order Value (in INR)						238,460

प्रेषिती विवरण Consignee Detail						
क्र.सं. S.No	प्रेषिती Consignee	वस्तु Item	लॉट नंबर Lot No.	मात्रा Quantity	दिनांक के बाद डिलीवरी शुरू करना है Delivery Start After	वितरण पूरा कब तक करना है Delivery To Be Completed By

1	पद Designation :- ईमेल आईडी Email ID : buycon349.hfwdg.gj@gembuyer.in संपर्क Contact : 79902-75834- जीएसटीआईएन GSTIN :- पता Address : SDH OFFICE NAME SUB-DISTRICT HOSPITAL SONGADH PIN CODE 394670 TALUKO SONGADH DIST TAPI OFFICE LAMDLINE 02624 222060, 223060 EMAIL ID chcsongadh.health.tapi1@gmail.com, Surat, GUJARAT-394670, India	niscomed ECG Machine 3 Channel	-	2	09-Jul-2025	24-Jul-2025
Product Specification for niscomed ECG Machine 3 Channel						
विनिर्देश Specification		उप-विनिर्देश Sub-Spec	मूल्य Value			
GENERAL FEATURES	Product Description		ECG Machine			
	Purpose		An ECG is a noninvasive routine examination of the electrical activity of the heart that is used to reflect underlying heart conditions			
PRODUCT INFORMATION	Operating modes of ECG Machine		Automatic, Manual and Rhythm			
	ECG machine should have ECG lead annotation facility		Yes			
	Leads which is in ECG machine should be able to acquire simultaneously and interpret them		12			
	Number of channels		3 Channel			
	ECG machine should acquire lead ECG for both adult and pediatric patients		Yes			
	The ECG machine should have facility to show lead fail indication		Yes			
	The ECG machine should have facility to show lead reversal indication		Yes			
	The ECG machine should have facility to show the impedance to quality check of connection		Yes			
	Acquisition time for ECG Machine in sec		10 sec			
	Digital sampling rate for Pacemaker spike detection		40000 s/sec/channel			
	Recording of digital sampling for pacemaker		1000 s/sec/channel			
	ECG machine should have real time colour backlit display of ECG waveforms with signal quality indication for each lead		Yes			
	ECG machine should have frequency filters		Artifact, AC and low and high pass frequency filters			
	Number of ECGs which can be store in ECG Machine		151 to 200			
	ECG machine should have full screen preview of ECG report for quality assessment checks prior to print		Yes			
	Type of inbuilt screen		LCD			
	Size of screen in inches		7			
	Display resolution of ECG machine in pixels		640 x 480			
	ECG machine should have interpretation facility of the amplitudes, duration and morphologies of ECG waveforms and associated rhythm for adult and pediatric patient		Yes			
	ECG machine should have alphanumeric keyboard for patient data entry		Virtual			
	Availability of latest interpretation software		Yes			
	Wireless acquisition module with RF technology		Yes			
	System should have the dedicated software to download the ECG form machine in PDF format		Yes			
PRINTER	Printer Type		Thermal Printer			
	Recorder Paper Size		A4 Size			
	Recorder Speed		25 mm/sec			
	Resolution of digital array printer		200 dpi x 500 dpi			
	Number of Thermal paper		500			
	ECG machine report format		Report formats of 3x4, 6x2, Rhythm for up to selected leads, 12 lead extended measurement, 1 minute of continuous waveform data for 1 selected lead			
	Provision of Battery		Yes			
	Battery Type		Built in Rechargeable Battery			
	Battery capacity of continuous rhythm recording on single charge (minutes)		30			
			30 ECG or 30 minutes of continous rhythm recording on single			

BATTERY	Battery capacity	charge
	Connectivity to ECG Machine	LAN
	Storage on external portable memories	USB support
	The individual patient lead should be change without replacing the whole patient cable assembly	Yes
ENVIRONNMENTS PARAMETERS	Operating temperature and humidity	Temperature of 10 to 40 degree Celsius and Relative Humidity of 15 to 90%
POWER SUPPLY	Power input	220-240 V AC, 50 Hz fitted with Indian plug
ACCESSORIES	ECG Machine 12 leads with interpretation	1
	Patient Cable	2
	Chest Electrodes Adult (set of Six)	1
	Chest Electrodes Paediatric (set of Six)	2
	Limb Electrodes	2 for adults and 2 for paediatric
	Power cable for charging	Yes
	Supplied with Clip electrode	Yes
	Compatible trolley provided	Yes
CERTIFICATION & REPORTS	Compliance to Medical Device Rules (MDR) 2017 as amended till date	Yes
	Availability of valid drug license for the product issued from the competent authority defined under Drugs and Cosmetic Act 1940 and Rules made there under as amended till date	Yes
	Valid Drug License Number	DL-NAR-128429
	Manufacturing unit certification	ISO:13485 (Latest)
	Additional voluntary certification available	NA
	Availability of Test Report for each supplied batch/product as per Medical Device Rules (MDR) 2017 as amended till date	Yes
	Compliance to Safety Standards	IS 13450:Part 2:Sec 25 / IEC 60601-2-25
	Submission of all necessary certifications, licenses and test reports to the buyer at the time of bid submission and/or along with supplies as per buyer requirement	Yes
WARRANTY	Warranty (Option of comprehensive warranty is available through bidding only, which if opted will supersede normal warranty in the catalogue)	3 year
ADDITIONAL REQUIREMENTS	Additional Requirements	NA
Miscellaneous Parameters	User/Technical/Maintenance manuals to be supplied in English in hard and soft copy	Yes
	The Principal Manufacturer must have direct Presence/approved service center In India	Yes
	Installation and demonstration of equipment and training to be provided after completing supplies before acceptance	Yes

ईपीबीजी विवरण | ePBG Detail

सलाहकार बैंक Advisory Bank :	NA
ईपीबीजी प्रतिशत (%) ePBG Percentage(%):	NA

नियम और शर्तें | Terms and Conditions

1. Special terms and conditions- Version:1 effective from 23-08-2023

- 1.1
- All Provisions of Drugs and Cosmetics Act, 1940 and Rules (including Medical Device Rule 2017) made there under as amended till date will always be applicable. This will include all notifications issued by Central Drugs Standard Control Organization (CDSCO), Ministry of Health & Family Welfare (MoHFW) and Department of Pharmaceuticals (DOP), Ministry of Chemicals & Fertilizers time to time in this regard.
 - The sellers are registered on GeM based on self-declaration of valid Drug License, product certification, test reports etc. However, buyers must check and validate the details at their end for all applicable licenses and certifications e.g., validity and authenticity/genuineness of drug license, product certification, manufacturer certification/licenses, test reports etc.
 - In case of authorized resellers/distributors, it will be the legal & regulatory liability of the manufacturer to ensure that their resellers/distributors are operating in compliance with all relevant laws and regulations and are properly licensed to sell the manufacturer's products, including verifying the validity and authenticity of drug license held by them.

4. The price offered by the seller/bidder shall not, in any case exceed the DPCO/NPPA controlled price or price fixed by State Government, if any. The seller must reduce the prices if there is any reduction in DPCO/NPPA ceiling price or price fixed by State Government, if any.
5. Any other Terms and Conditions which is not included or at variance with the conditions specified in STC/GTC, may be added by the buyer through Additional Terms and Conditions (ATC) in the bid to ensure items are procured from authentic/validated source with appropriate and applicable quality. The above terms and conditions are in reverse order of precedence i.e. ATC shall supersede specific STC which shall supersede General Terms and Conditions ("GTC"), whenever there are any conflicting provisions.
6. Comprehensive warranty: Comprehensive warranty shall include preventive maintenance including calibration as per technical/ service /operational manual of the manufacturer, service charges and spares. During the warranty period commencing from date of the successful completion of warranty period, Service personnel shall visit each consignee site as recommended in the manufacturer's technical/ service /operational manual, at least once in six months. warranty shall not be including the consumables. Further there will be 98% uptime warranty during warranty period on 24 (hrs) X 7 (days) X 365 (days) basis, with penalty, to extend warranty period by double the downtime period.
7. Service centres: Details of Service outlets in India to render services for equipment to be furnished to buyer/consignees with complete address, telephone numbers, e mails etc at time of making the supplies. It shall be the responsibility of seller to ensure that authorized service centres are available to cater to the areas where supplies are made within reasonable distance from where the service calls can be handled. Details of toll-free numbers for service call and online registration of service requests also to be provided buyer/consignee at the time of supplies.
8. Source of supply: It shall be responsibility of seller to provide Documents regarding source of equipments such as copy of Performa invoice or any other documents to establish that the products supplied are manufactured by OEM indicated and sourced from them.
9. Packing and Marking: Medical equipments being very delicate and sensitive packing for the goods should be strong and durable enough to withstand transit including transshipment (if any), rough handling, open storage etc. without any damage, deterioration etc. .The size, weights and volumes of the packing cases, remoteness of the final destination of the goods, availability or otherwise of transport and handling facilities at all points during transit up to final destination,. Quality of packing, the manner of marking within & outside the packages and provision of accompanying documentation shall take into consideration the type of medical equipments being supplied. The accessories shall be suitably labelled and packed. Each of the package shall be marked on three sides with indelible paint of proper quality: indicating contract number and date, brief description of goods including quantity, Packing list reference number, country of origin of goods and any other relevant details.
10. Spare Parts: Seller shall provide materials, information etc. pertaining to spare parts manufactured and supplied by the OEM. It shall be ensured that the required spares are available for purchase at least for 10 years from date of supplies. In case due to any reasons the production of the spare parts is discontinued sufficient advance notice should be given to the buyer/consignee before such discontinuation to provide adequate time to purchase the required spare parts etc. Further, OEM and their service centres/dealers shall carry sufficient inventories to assure ex-stock supply of consumables and spares for the equipments so that the same are available. OEM or reseller shall always accord most favoured client status to the buyer/consignee and shall give the most competitive price for spares and consumables of its machines/equipments supplied.
11. Installation, Training, Manuals: Seller shall be responsible to carry out Installation & commissioning, Supervision and Demonstration of the goods. They shall provide required jigs and tools for assembly, minor civil works for the completion of the installation and Training of Consignee's representatives for operating and maintaining the equipment and supplying required number of operation & maintenance manual for the goods. In case the category parameters are specifying any requirements regarding the installations, training and manuals the same shall also be applicable.
12. Electrical safety checking: Sellers are required to make sure that they furnish the list of equipments for carrying out routine and preventive maintenance to buyer/consignee .They should make sure to periodically check the electrical safety aspects as per BIS Safety Standards or equivalent .In case they do not have required equipment for such testing should ensure that the equipments checked for electrical safety compliance through labs with facilities for such checking during every preventive maintenance call.
13. Software: All software updates should be provided free of cost during warranty period.

2. General Terms and Conditions-

- 2.1 This contract is governed by the [General Terms and Conditions](#), conditions stipulated to this Product/Service as provided in the Marketplace.
- 2.2 This Contract between the Seller and the Buyer, is for the supply of the Goods and/ or Services, detailed in the schedule above, in accordance with the General Terms and Conditions (GTC) unless otherwise superseded by Goods / Services specific Special Terms and Conditions (STC) and/ or BID/Reverse Auction Additional Terms and Conditions (ATC), as applicable
- 2.3 All GeM Sellers / Service Providers are mandated to ensure compliance with all the applicable laws / acts / rules including but not limited to all Labour Laws such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972 etc. Any non-compliance will be treated as breach of contract and Buyer may take suitable actions as per GeM Contract.

3. Buyer Added Bid Specific Terms and Conditions-

3.1 Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity by up to 25% of the contracted quantity during the currency of the contract at the contracted rates. Bidders are bound to accept the orders accordingly.

3.2 Generic

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

3.3 Turnover:

Bidder Turn Over Criteria: The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

3.4 Turnover:

OEM Turn Over Criteria: The minimum average annual financial turnover of the OEM of the offered product during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the OEM is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria. In case of bunch bids, the OEM of CATEGORY RELATED TO primary product having highest bid value should meet this criterion.

3.5 Service & Support:

Dedicated /toll Free Telephone No. for Service Support : BIDDER/OEM must have Dedicated/toll Free Telephone No. for Service Support.

3.6 Service & Support:

Escalation Matrix For Service Support : Bidder/OEM must provide Escalation Matrix of Telephone Numbers for Service Support.

3.7 Certificates:

ISO 9001: The bidder or the OEM of the offered products must have ISO 9001 certification.

3.8 Certificates:

अनुबंध | Contract



अनुबंध क्रमांक | Contract No: GEMC-511687767720963

अनुबंध तिथि | Generated Date : 19-Dec-2025

बोली/आरए/पीबीपी संख्या | Bid/RA/PBP No.: [GEM/2025/B/6603951](#)

संगठन विवरण Organisation Details	खरीदार विवरण Buyer Details
प्ररूप Type : State Government	पद Designation : JR pharmacist
मंत्रालय Ministry : -	संपर्क नंबर Contact No. : 02649-234103-
विभाग Department : Health & Family Welfare Department Gujarat	ईमेल आईडी Email ID : buyer1.hfwdg.gj@gembuyer.in
संगठन का नाम Organisation Name : N/A	जीएसटीआईएन GSTIN : -
कार्यालय क्षेत्र Office Zone: SDH DEDIAPADA NARMADA	पता Address : SUB DISTRICT HOSPITAL(GOVERNMENT HOSPITAL), MOZDA ROAD, DEDIAPADA, Bharuch, GUJARAT-393040, India

वित्तीय स्वीकृति विवरण Financial Approval Detail	भुगतान प्राधिकरण विवरण Paying Authority Details
आईएफडी सहमति IFD Concurrence : No	Role: PAO
प्रशासनिक अनुमोदन का पदनाम Designation of Administrative Approval: officer	भुगतान का तरीका Payment Mode: Offline
वित्तीय अनुमोदन का पदनाम Designation of Financial Approval: officer	पद Designation : Medical Officer CL II
	ईमेल आईडी Email ID : pay2.hfwdg.gj@gembuyer.in
	जीएसटीआईएन GSTIN : -
	पता Address: SUB DISTRICT HOSPITAL(GOVERNMENT HOSPITAL), MOZDA ROAD, DEDIAPADA, Bharuch, GUJARAT-393040, India

विक्रेता विवरण Seller Details
जेम विक्रेता आईडी GeM Seller ID : 0D0E200001130179
कंपनी का नाम Company Name : SHIV TRADING
संपर्क नंबर Contact No. : 08866545280
ईमेल आईडी Email ID : shivtradingsrt@gmail.com
पता Address : FIRST,1,VAIBHAV COMPLEX,NEAR VAIBHAV CINEMA, Surat, GUJARAT-394650, -
एमएसएमई पंजीकरण संख्या MSME Registration number : -
जीएसटीआईएन GSTIN: 24AISPV8250F1ZR (R)
खरीदार द्वारा सत्यापित एमएसएमई स्थिति MSME Status as verified by buyer : Not Verified

*जिसके नाम के पक्ष में GST/TAX इनवॉइस पेश किया जाएगा | GST / Tax invoice to be raised in the name of - Buyer

वितरण निर्देश | Delivery Instructions : NA

उत्पाद विवरण Product Details						
#	आइटम विवरण Item Description	आइटम विवरण Ordered Quantity	इकाई Unit	इकाई मूल्य (INR) Unit Price (INR)	कर विभाजन (INR) Tax Bifurcation (INR)	मूल्य (INR में सभी शुल्क और कर सहित) Price (Inclusive of all Duties and Taxes in INR)
1	उत्पाद का नाम Product Name : ARKRAY 150 (Minimum Samples The Analyser Is Capable To Analyse) High Performance Liquid Chromatography (Hplc) System ब्रांड Brand : ARKRAY ब्रांड प्रकार Brand Type : Registered Brand कैटलॉग की स्थिति Catalogue Status: Catalogue not verified by OEM कैसे बेचा जा रहा है Selling As : OEM verified Reseller श्रेणी का नाम और चतुर्थांश Category Name & Quadrant : High Performance Liquid Chromatography (HPLC) System (Q3) मॉडल Model: 8180T एचएसएन कोड HSN Code: HSN not specified by seller	1	pieces	5,178,800	NA	5,178,800
कुल ऑर्डर मूल्य Total Order Value (in INR)						5,178,800

परेषिती विवरण Consignee Detail						
क्र.सं. S.No	परेषिती Consignee	वस्तु Item	लॉट नंबर Lot No.	मात्रा Quantity	दिनांक के बाद डिलीवरी शुरू करना है Delivery Start After	वितरण पूरा कब तक करना है Delivery To Be Completed By

1	पद Designation :- ईमेल आईडी Email ID : buyer1.hfwdg.gj@gembuyer.in संपर्क Contact : 02649-234103- जीएसटीआईएन GSTIN :- पता Address : SUB DISTRICT HOSPITAL(GOVERNMENT HOSPITAL), MOZDA ROAD, DEDIAPADA, Bharuch, GUJARAT-393040, India	ARKRAY 150 (Minimum Samples The Analyser Is Capable To Analyse) High Performance Liquid Chromatography (Hplc) System	-	1	19-Dec-2025	08-Jan-2026
Product Specification for ARKRAY 150 (Minimum Samples The Analyser Is Capable To Analyse) High Performance Liquid Chromatography (Hplc) System						
Set 1	विनिर्देश Specification	उप-विनिर्देश Sub-Spec	मूल्य Value			
		Configuration & Usage of the system:	Automated & Integrated system dedicated to HbA1c, Thalassaemia and Hemoglobinopathy testing and screening based on HPLC technology.			
		System has ability to screen and quantitate hemoglobins Hb A2, Hb A, Hb F and Hb A1c:	Yes			
		System has ability to detect the most commonly occurring abnormal hemoglobins like Hb S, Hb D, Hb E, Hb C, Hb Q-India and other rare abnormal hemoglobins:	Yes			
		HPLC system shall be supplied with complete ready to use kit with Buffers in transparent plastic tanks to view the level of buffers ; columns, primers, calibrators & sample vials:	Yes			
		Sample Throughput time per sample :	Lesser than 7 minutes per sample (Assay time for HbA1c testing: <= 4 minutes, Assay time for A2/F/A1c testing: <= 6.5 minutes)			
		Number of samples the Analyser is capable to analyse (minimum), concurrently:	150			
		HPLC equipment shall be supplied with an offline CD-ROM which should be a searchable database with approximately 800 chromatograms of fully classified abnormal hemoglobins and Thalassemias:	Yes			
		HPLC System have in-kit external standards for instrument calibration ensuring accurate quantitation of results:	Yes			
		HPLC system contains Low pulsation dual piston pump with programmable solvent delivery system:	Yes			
		Availability of a bi-directional Laboratory Interface System (LIS):	Yes			
		Alarm Facility:	Have a visible alarm system for low buffer in the mobile phase reservoirs, low level value for cartridge injections and overflow for the waste tank, as well as built in alarms for calibration failure.			
		Sample identification; HPLC system is capable of positive sample identification using a Barcode reader:	No			
		HPLC system have an inbuilt system check facility which checks that all the system parameters (eg, cartridge, buffer, reagent, waste etc) are ready before the sample analysis:	Yes			
		HPLC system the facility of primary tube sampling and direct dilution of the samples without manual intervention:	Yes			
		HPLC system have a dual program mode to perform either HbA1c or HbA2/Hb F/HbA1c without changing any reagents or columns:	Yes			
		HPLC system should not require changing of reagents while switching from HbA1c to HbA2/Hb F/HbA1c testing mode:	Yes			
		HPLC system should be able to detect correct A1c values in presence of abnormal Hemoglobin variants like HbD, HbE, HbS & HbC:	Yes			
		HPLC System offers both NGSP & IFCC value reporting on the same patient report, control & calibrator report:	Yes			
		Has facility to print a hard copy report giving identification and information on the subtype and quantity of hemoglobins detected, to view current and stored chromatograms & should enable storage of chromatograms:	Yes			
		Data Storage & accessibility:	80 GB (at least) hard disk with a remote data access feature when connected to LAN or Intranet.			
		For tHPLC System shall be supplied with Seller's commitment to provide normal and abnormal controls for Hb A2, Hb F and Hb S and provide quality control program to help compare results with similar users worldwide:	Yes			
		Availability of external quality assurance service (EQAS) for Hemoglobin variants and offline library of chromatograms for result interpretation:	Yes			
		Availability of Software and capability for real time viewing of the analysis of the sample:	Yes			
		If the HPLC system have feature of capillary collection kit for remote sample				

	collection with sample stability at 2-8 degree C for 14 days:	Yes
Certifications	HPLC System is NGSP (National Glycohemoglobin Standardisation Program) Certified and traceable to IFCC reference method:	Yes
	Whether the product is US FDA certified:	No
	Whether the product is CE European certified:	Yes
खरीदार परिभाषित अतिरिक्त विशिष्टता के लिए Buyer Defined Additional Specification for ARKRAY 150 (Minimum Samples The Analyser Is Capable To Analyse) High Performance Liquid Chromatography (Hplc) System		
विनिर्देश Specification		मूल्य Value
AS PER SCOPE OF WORK		AS PER SCOPE OF WORK
तकनीकी-वाणिज्यिक स्पष्टीकरण Techno-Commercial Clarification : Click here to download		
शुद्धिपत्र Corrigendum		
1. तक बढ़ाया गया Extended Upto : 2025-09-08 16:00:00		
ईपीबीजी विवरण ePBG Detail		
सलाहकार बैंक Advisory Bank :		NA
ईपीबीजी प्रतिशत (%) ePBG Percentage(%):		NA
नियम और शर्तें Terms and Conditions		
1. General Terms and Conditions-		
1.1 This contract is governed by the General Terms and Conditions , conditions stipulated to this Product/Service as provided in the Marketplace.		
1.2 This Contract between the Seller and the Buyer, is for the supply of the Goods and/ or Services, detailed in the schedule above, in accordance with the General Terms and Conditions (GTC) unless otherwise superseded by Goods / Services specific Special Terms and Conditions (STC) and/ or BID/Reverse Auction Additional Terms and Conditions (ATC), as applicable		
1.3 All GeM Sellers / Service Providers are mandated to ensure compliance with all the applicable laws / acts / rules including but not limited to all Labour Laws such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972 etc. Any non-compliance will be treated as breach of contract and Buyer may take suitable actions as per GeM Contract.		
2. Buyer Added Bid Specific Terms and Conditions-		
2.1 Generic		
OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be (Increased quantity ÷ Original quantity) × Original delivery period (in days), subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.		
2.2 Buyer Added Bid Specific ATC:		
Buyer Added text based ATC clauses		
DOCUMENTS :		
1. GST		
2. MSME		
3. NOTARY OF 300 FOR NO BLACKLIST		
4. OEM AUTHORISED CERTIFICATE		
5. TURNOVER CERTIFICATE SIGN BY CA		
6. EMD SEND TO BUYER LOCATION WITHIN 3 DAYS AFTER BID END DATE		
7. ALL SPECIFICATION WHICH LISTED BELOW IS SHOULD BE PRESENT IN PRODUCT . VARIFY BY SIGN COPY ON LATTERHEAD . CATALOUGE ATTCHED		
SPECIFICATION		
Automated HPLC system, dedicated to thalassemia and Hemoglobinopathy testing and screening		
The system should be able to screen and quantitate haemoglobin HbA1c, HbA2, HbA and Hb		

F and detect the most commonly occurring abnormal haemoglobin like HbS, HbD HbE, HbC, HbQ India, HbD-Iran and other rare abnormal haemoglobins in a single chromatograph.

The system should have the provision of presumptive identification of Hb Barts and HbH and various alpha chain variants like Hb J Meerut, Hb Q India, etc.

Unit Should be able to process 100 samples at a time and with a testing time less than 3.5 minutes per test

The company should have an installation base in India and should be able to provide the relevant product and service support.

The system should have spinning of vacutainer before aspiration to avoid improper sampling.

The system should have automatic barcode positioning facility.

Complete ready to use kit should be provided with Buffers in Aluminium packs; columns, primers, calibrators and sample vials.

The reagents and Consumables should be available in individual packs for purchasing separately.

The system should have an on-board QC menu capable of storing the quality control data and printing the standard deviation and coefficient of variation values.

The company should provide normal and abnormal third-party controls for HbA2, HbF and HbS and provide External Quality Assurance Scheme (EQAS) to help computer results with similar users worldwide.

It should have a built-in column thermostat for reproducibility of results.

The HPLC should have a dual piston pump so that each elution buffer has a different pump and the buffers work efficiently.

The system should have Built in printing facility.

The column should give minimum 5000 Tests.

System should be certified by NGSP / CE.

The system should have special rack for Anaemic sample testing.

There should be an off line library of Chromatograms for interpretation.

The system should have interfacing software.

The system should have ON BOARD reagent management system.

Separate racks for Calibration, hemolysing sample.

Provision for continuous loading should be there.

The column should give minimum 5000 Tests.

Complete ready to use kit should be provided with Buffers in Aluminium packs; columns, primers, calibrators and sample vials.

Warranty- 5 years from the date of supply.

System should be supplied with consumables for minimum 5000 tests.

अनुबंध | Contract



अनुबंध क्रमांक | Contract No: GEMC-511687771629636

अनुबंध तिथि | Generated Date : 13-Jul-2024

बोली/आरए/पीबीपी संख्या | Bid/RA/PBP No.: [GEM/2024/B/5109065](#)

संगठन विवरण Organisation Details	खरीदार विवरण Buyer Details
प्रारूप Type : State Government मंत्रालय Ministry : - विभाग Department : Women and Child Development Department Gujarat संगठन का नाम Organisation Name : N/A कार्यालय क्षेत्र Office Zone: Block No. 20/1, Dr. Jivraj Mehta Bhavan, Gandhinagar	पद Designation : Program officer संपर्क नंबर Contact No. : 02877-222313-123 ईमेल आईडी Email ID : po-icds-gir@gujarat.gov.in जीएसटीआईएन GSTIN : 24rkt03937D1DD पता Address : Program Officer-ICDS, Jilla Seva Sadan, Talala-Veraval Road, Inaj Village, District-Girsomnath – 362265. (Please note: this consignee is in Gir Somnath district and not in Junagadh district. Due to some issue, GeM system does not accept the new PIN code of Gir Somnath district), JUNAGADH, GUJARAT-362265, India

वित्तीय स्वीकृति विवरण Financial Approval Detail	भुगतान प्राधिकरण विवरण Paying Authority Details
आईएफडी सहमति IFD Concurrence : No प्रशासनिक अनुमोदन का पदनाम Designation of Administrative Approval: DDO वित्तीय अनुमोदन का पदनाम Designation of Financial Approval: DDO	Role: BUYER भुगतान का तरीका Payment Mode: Offline पद Designation : Program officer ईमेल आईडी Email ID : po-icds-gir@gujarat.gov.in जीएसटीआईएन GSTIN : 24rkt03937D1DD पता Address: Program Officer-ICDS, Jilla Seva Sadan, Talala-Veraval Road, Inaj Village, District-Girsomnath – 362265. (Please note: this consignee is in Gir Somnath district and not in Junagadh district. Due to some issue, GeM system does not accept the new PIN code of Gir Somnath district), Junagadh, GUJARAT-362265, India

विक्रेता विवरण Seller Details
जेम विक्रेता आईडी GeM Seller ID : 0D0E200001130179 कंपनी का नाम Company Name : SHIV TRADING संपर्क नंबर Contact No. : 08866545280 ईमेल आईडी Email ID : shivtradingsrt@gmail.com पता Address : FIRST,1,VAIBHAV COMPLEX,NEAR VAIBHAV CINEMA, Surat, GUJARAT-394650, - एमआईआई स्थिति MII Status : True एमएसएमई सत्यापित MSME verified : No एमएसएमई पंजीकरण संख्या MSME Registration number : - जीएसटीआईएन GSTIN: 24AISPV8250F1ZR (R)

*जिसके नाम के पक्ष में GST/TAX इनवॉइस पेश किया जाएगा | GST / Tax invoice to be raised in the name of - Buyer

वितरण निर्देश | Delivery Instructions : ok

उत्पाद विवरण Product Details						
#	आइटम विवरण Item Description	आइटम विवरण Ordered Quantity	इकाई Unit	इकाई मूल्य (INR) Unit Price (INR)	कर विभाजन (INR) Tax Bifurcation (INR)	मूल्य (INR में सभी शुल्क और कर सहित) Price (Inclusive of all Duties and Taxes in INR)
1	उत्पाद का नाम Product Name : Unbranded RO & UV both SS304 Drinking Water Coolers With Built In Water Purification System ब्रांड Brand : NA ब्रांड प्रकार Brand Type : Unbranded कैटलॉग की स्थिति Catalogue Status: Catalogue not verified by OEM कैसे बेचा जा रहा है Selling As : Reseller not verified by OEM श्रेणी का नाम और चतुर्थांश Category Name & Quadrant : Drinking Water Coolers With Built In Water Purification System (Uv Or Ro) (Q3) मॉडल Model: Stainless Steel Water Dispenser एचएसएन कोड HSN Code: HSN not specified by seller	142	pieces	138,153	NA	19,617,726
कुल ऑर्डर मूल्य Total Order Value (in INR)						19,617,726

परोक्षिती विवरण Consignee Detail

क्र.सं. S.No	प्रेषित Consignee	वस्तु Item	लॉट नंबर Lot No.	मात्रा Quantity	दिनांक के बाद डिलीवरी शुरू करना है Delivery Start After	तक करना है Delivery To Be Completed By
1	पद Designation : - ईमेल आईडी Email ID : po-icds-gir@gujarat.gov.in संपर्क Contact : 02877-222313-123 जीएसटीआईएन GSTIN : 24rktp03937D1DD पता Address : Program Officer-ICDS, Jilla Seva Sadan, Talala-Veraval Road, Inaj Village, District-Girsomnath – 362265. (Please note: this consignee is in Gir Somnath district and not in Junagadh district. Due to some issue, GeM system does not accept the new PIN code of Gir Somnath district), JUNAGADH, GUJARAT-362265, India	Unbranded RO & UV both SS304 Drinking Water Coolers With Built In Water Purification System	-	142	13-Jul-2024	26-Sep-2024
Product Specification for Unbranded RO & UV both SS304 Drinking Water Coolers With Built In Water Purification System						
विनिर्देश Specification	उप-विनिर्देश Sub-Spec	मूल्य Value				
Certification	Certification	NA				
	Availability of toll free facility for technical support maintained by OEM or authorized agencies	Yes				
	Installation and demonstration to be given before acceptance	Yes				
	Number of free services during warranty	3				
	Warranty of Machine	1 year				
	Life of RO filters(Liters)	14000-16000				
	UV Water purifier conforms IS 14724 : 1999	Yes				
	Warranty of Compressor	1 year				
	Water Cooler unit conforms to IS 1475-1	Yes				
Construction	Body Material	SS304				
	UV lamps rating (Watt)	24				
	Refrigerent	R134a				
	Evaporator material	Pure Copper				
	Number of Faucets	6				
	Insulation	PUF				
	Length	150 centimeter				
	Weight	90 kilogram				
	Storage Capacity	50 liter				
	Height	180 centimeter				
	Material of Faucets	SS				
	Width	100 centimeter				
	Storage Tank Material	Stainless Steel 304				
	Condensor material	Copper				
	No of UV circuit purification	1				
Performance	Stages of Purification	Sediment Purification,Carbon block purification,Anti scalant purification,Reverse osmosis membrane purification,Post carbon block filtration,UV purification				
	Input quality of water in TDS for pre-filtration	>=800				
	Water Filter Type	RO & UV both				
	Auto flushing system	No				
	RO membrane rating in GPD	125				
	No of RO membrane corresponding to given rating	2				
	Reminerlisation feature	Yes				
	Cooling Capacity, Ltr/hr	50				
	Operating Temperaure	49 degree Celsius				
	RO booster pump operating Voltage	12V				
	RO Booster Pump available	Yes				

	Output quality of water in TDS post filtration	=<200
	Purification capacity, Ltr/hr	50
	Power Requirement	220-240V AC
	Max flow Rate, Ltr/min	50
टिप्पणी Note:: Seller has given an undertaking that it has made arrangements for getting the stores from an authorized distributor / dealer / channel partner of the OEM of the offered product. At the time of delivery of goods, Seller will provide necessary chain documents (in the form of GST Invoice) to prove that the supplied goods are genuine and are being sourced from an authorized distributor / dealer / channel partner of the OEM. In case of any complaint about genuineness of the supplied products, Seller shall be responsible for providing genuine replacement supplies.		
खरीदार परिभाषित अतिरिक्त विशिष्टता के लिए Buyer Defined Additional Specification for Unbranded RO & UV both SS304 Drinking Water Coolers With Built In Water Purification System		
विनिर्देश Specification		मूल्य Value
PH Sensor		yes
TDS Sensor		yes
Android App For Measurement Sensor Value		Yes
ईपीबीजी विवरण ePBG Detail		
सलाहकार बैंक Advisory Bank :		NA
ईपीबीजी प्रतिशत (%) ePBG Percentage(%):		NA
नियम और शर्तें Terms and Conditions		
1. General Terms and Conditions-		
1.1 This contract is governed by the General Terms and Conditions , conditions stipulated to this Product/Service as provided in the Marketplace.		
1.2 This Contract between the Seller and the Buyer, is for the supply of the Goods and/ or Services, detailed in the schedule above, in accordance with the General Terms and Conditions (GTC) unless otherwise superseded by Goods / Services specific Special Terms and Conditions (STC) and/ or BID/Reverse Auction Additional Terms and Conditions (ATC), as applicable		
2. Buyer Added Bid Specific Terms and Conditions-		
2.1 Generic.		
OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity by up to 25% of the contracted quantity during the currency of the contract at the contracted rates. Bidders are bound to accept the orders accordingly.		
2.2 Scope of Supply.		
Scope of supply (Bid price to include all cost components) : Supply Installation Testing Commissioning of Goods and Training of operators and providing Statutory Clearances required (if any)		
2.3 Turnover.		
Bidder Turn Over Criteria: The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.		
2.4 Turnover.		
OEM Turn Over Criteria: The minimum average annual financial turnover of the OEM of the offered product during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the OEM is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria. In case of bunch bids, the OEM of CATEGORY RELATED TO primary product having highest bid value should meet this criterion.		
2.5 Service & Support:		
Availability of Service Centres: Bidder/OEM must have a Functional Service Centre in the State of each Consignee's Location in case of carry-in warranty. (Not applicable in case of goods having on-site warranty). If service center is not already there at the time of bidding, successful bidder / OEM shall have to establish one within 30 days of award of contract. Payment shall be released only after submission of documentary evidence of having Functional Service Centre.		
2.6 Service & Support:		
Dedicated /toll Free Telephone No. for Service Support : BIDDER/OEM must have Dedicated/toll Free Telephone No. for Service Support.		
2.7 Service & Support:		
Escalation Matrix For Service Support : Bidder/OEM must provide Escalation Matrix of Telephone Numbers for Service Support.		
2.8 Sample Clause:		
After award of contract – Successful Bidder shall have to get advance sample approved from buyer before bulk manufacturing / starting bulk supplies. Successful Bidder shall submit		
5		

samples for Buyer's approval, within 5 days of award of contract. Buyer shall, as per contract specifications framework, either approve the advance sample or will provide complete list of modification required in the sample within 5 days of receipt of advance sample. Seller shall be required to ensure supply as per approved sample with modifications as communicated by Buyer. If there is delay from buyer side in approval of advance sample – the delivery period shall be refixed without LD for the period of delay in sample approval. In case, the sample is found to have major deviations / not conforming to the Contract specifications, the buyer at its discretion may call for fresh samples for approval before allowing bulk supplies or may terminate the contract after notifying the deviations to the seller. Unless otherwise provided in the contract, all samples required for test shall be supplied by the contractor free of cost. Where under the contract, the contractor is required to submit an advance sample, any expenses incurred by the contractor on or in connection with the production of stores in bulk, before the sample has been approved unconditionally shall be borne by the Seller and he shall not claim any compensation in the event of such sample being found unacceptable by the Buyer / Consignee.

2.9 Past Project Experience:

Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.

2.10 Buyer Added Bid Specific ATC:

Buyer uploaded ATC document [Click here to view the file](#).

2.11 Buyer Added Bid Specific ATC:

Buyer Added text based ATC clauses

- Bidder Must have to provided Android access application (Life Time Access) to measure TDS & PH Level Of Water Periodically
-

नोट: यह सिस्टम जनरेटेड फाइल है। कोई हस्ताक्षर की आवश्यकता नहीं है। इस दस्तावेज़ का प्रिंट आउट भुगतान/लेनदेन उद्देश्य के लिए मान्य नहीं है।

Note: This is system generated file. No signature is required. Print out of this document is not valid for payment/ transaction purpose.

अनुबंध | Contract



अनुबंध क्रमांक | Contract No: GEMC-511687780273015
 अनुबंध तिथि | Contract Generated Date : 07-Mar-2026
 बोली/आरए/पीबीपी संख्या | Bid/RA/PBP No.: [GEM/2026/B/7170681](#)
 खरीद का माध्यम | Procurement Mode: BID/RA

संगठन विवरण Organisation Details प्ररूप Type : State Government मंत्रालय Ministry : - विभाग Department : Health & Family Welfare Department Gujarat संगठन का नाम Organisation Name : N/A कार्यालय क्षेत्र Office Zone: STATE HOSPITAL DHARAMPUR VALSAD		खरीदार विवरण Buyer Details पद Designation : PHARMACY संपर्क नंबर Contact No. : 02633-242044-0000 ईमेल आईडी Email ID : sdhhdharampur.health.valsad@gmail.com जीएसटीआईएन GSTIN : - पता Address : Garden Road State Hospital,Dharampur Dist Valsad, Valsad, GUJARAT-396050, India															
वित्तीय स्वीकृति विवरण Financial Approval Detail आईएफडी सहमति IFD Concurrence : No प्रशासनिक अनुमोदन का पदनाम Designation of Administrative Approval: SUPERINTENDENT वित्तीय अनुमोदन का पदनाम Designation of Financial Approval : ACCOUNTANT		भुगतान प्राधिकरण विवरण Paying Authority Details Role: PAO भुगतान का तरीका Payment Mode: Offline पद Designation : ADMINSTATION ईमेल आईडी Email ID : ms-health-dhsdh@gujarat.gov.in जीएसटीआईएन GSTIN : - पता Address: Garden Road State Hospital,Dharampur Dist Valsad, Valsad, GUJARAT-396050, India															
परेषिती विवरण Consignee Details <table border="1"> <thead> <tr> <th>क्र.सं. S.No</th> <th>परेषिती नाम & पता Consignee Name & Address</th> <th>सेवा विवरण Service Description</th> <th>मात्रा Quantity</th> </tr> </thead> <tbody> <tr> <td>1</td> <td> संपर्क Contact : 02633-242044-0000 ईमेल आईडी Email ID : sdhhdharampur.health.valsad@gmail.com जीएसटीआईएन GSTIN : - पता Address : Garden Road State Hospital,Dharampur Dist Valsad, Valsad, GUJARAT-396050, India </td> <td>Facility Management Services - LumpSum Based - Hospitality; Health Equipment; Consumables to be provided by service provider (inclusive in contract cost)</td> <td>Project/Lumpsum Based</td> </tr> </tbody> </table>				क्र.सं. S.No	परेषिती नाम & पता Consignee Name & Address	सेवा विवरण Service Description	मात्रा Quantity	1	संपर्क Contact : 02633-242044-0000 ईमेल आईडी Email ID : sdhhdharampur.health.valsad@gmail.com जीएसटीआईएन GSTIN : - पता Address : Garden Road State Hospital,Dharampur Dist Valsad, Valsad, GUJARAT-396050, India	Facility Management Services - LumpSum Based - Hospitality; Health Equipment; Consumables to be provided by service provider (inclusive in contract cost)	Project/Lumpsum Based						
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सेवा प्रदाता विवरण Service Provider Details जेम विक्रेता आईडी GeM Seller ID : 0D0E200001130179 कंपनी का नाम Company Name : SHIV TRADING संपर्क नंबर Contact No. : 08866545280 ईमेल आईडी Email ID : shivtradingstr@gmail.com पता Address : FIRST,1,VAIBHAV COMPLEX,NEAR VAIBHAV CINEMA, Surat, GUJARAT-394650, - एमएसएमई पंजीकरण संख्या MSME Registration number : - जीएसटीआईएन GSTIN: 24AISPV8250F1ZR (R) खरीदार द्वारा सत्यापित एमएसएमई स्थिति MSME Status as verified by buyer : Not Verified																	
*जिसके नाम के पक्ष में GST/TAX इनवॉइस पेश किया जाएगा GST / Tax invoice to be raised in the name of - Buyer																	
सेवा विवरण Service Details सेवा प्रारंभ दिनांक (नवीनतम) Service Start Date (latest by): 10-Mar-2026 सेवा समाप्ति तिथि Service End Date : 11-Jun-2026																	
श्रेणी नाम Category Name : Facility Management Services - LumpSum Based																	
बिलिंग चक्र Billing Cycle: weekly <table border="1"> <thead> <tr> <th colspan="2">विवरण Description</th> <th>Quantity</th> <th>Total Bid Value(Lumpsum quote)</th> </tr> </thead> <tbody> <tr> <td>Type of Premises</td> <td>Hospitality</td> <td rowspan="4">Project/Lumpsum Based</td> <td rowspan="4">837000</td> </tr> <tr> <td>Type of services required</td> <td>Health Equipment</td> </tr> <tr> <td>Cost for Consumables/ Materials</td> <td>Consumables to be provided by service provider (inclusive in contract cost)</td> </tr> <tr> <td>Service component</td> <td>Health Equipment</td> </tr> </tbody> </table>				विवरण Description		Quantity	Total Bid Value(Lumpsum quote)	Type of Premises	Hospitality	Project/Lumpsum Based	837000	Type of services required	Health Equipment	Cost for Consumables/ Materials	Consumables to be provided by service provider (inclusive in contract cost)	Service component	Health Equipment
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ऐडऑन के बिना कुल मूल्य Total Value without Addons(INR)			837000														
कुल ऐडऑन मूल्य Total Addon Value(INR)			0														
ऐडऑन सहित कुल मूल्य Total Value Including Addons(INR)			837000														
अनुबंध की राशि Amount of Contract <table border="1"> <tr> <td>सभी शुल्क और करों सहित कुल अनुबंध मूल्य Total Contract Value Including All Duties and Taxes(INR)</td> <td>837000</td> </tr> </table>				सभी शुल्क और करों सहित कुल अनुबंध मूल्य Total Contract Value Including All Duties and Taxes(INR)	837000												
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एसएलए विवरण SLA Details Service Level Agreement for Facility Management Services Lump Sum Basis																	

All Facility Management Services related Contracts/ Agreement placed through GeM shall be governed by following set of Terms and Conditions:

1. General terms and conditions for Services ("GTC");
2. Service Specific Terms and Conditions ("STC") of the Services contracts shall include the Service Level Agreement ("SLA") for the service;
3. BID / Reverse Auction specific Additional Terms and Conditions ("ATC") as specified by the Buyer.

The above terms and conditions are in reverse order of precedence i.e. ATC supersedes Service specific STC which supersede GTC, whenever there are any conflicting provisions. The above set of terms and conditions along with scope of work and SLA as enumerated in the document shall be construed to be part of the Contract between the Buyer and the Service Provider. The service will be provided in bid only mode.

1 Objectives and Goals

The objective of this Agreement is to ensure that all the commitments and obligations are in place to ensure consistent delivery of services to the Buyer by the Service Provider. The goals of this Agreement are to:

- i. Provide clear reference to service ownership, accountability, roles and responsibilities of both parties
- ii. Present a clear, concise and measurable description of services offered to the Buyer
- iii. Establish terms and conditions for all the involved stakeholders, it also includes the actions to be taken in case of failure to comply with conditions specified
- iv. To ensure that both the parties understand the consequences in case of termination of services due to any of the stated reasons

The Agreement will act as a reference document that both the parties have understood the above-mentioned terms and conditions and have agreed to comply by the same. The Agreement can also be revised/ modified on mutual consent of the stakeholders.

2 Parties to the Agreement

The main stakeholders associated with this Agreement are below-

- i. **Buyer:** The Buyer is responsible to provide clear instructions, approvals and timely payments for the services availed
- ii. **Service Provider:** The Service Provider is responsible to provide all the required services in timely manner. The Service Provider may also include seller, any authorized agents, assignees, successors and nominees as described in the Agreement

The responsibilities and obligations of the stakeholders have been outlined in this document. The document also encompasses service level/ deductions in case of non-adherence to the defined terms and conditions. It is assumed that all stakeholders have read and understood the same before signing the document.

3 Scope of Services

This service deals with hiring of facility management services which encompasses all activities related to keeping a complex operating with all its infrastructural and maintenance related requirements. This service includes multiple disciplines to ensure functionality, comfort, safety and efficiency of the built environment by integrating people, place, process and technology. It typically includes a wide range of function and support services such as housekeeping, security, property or building management, basic engineering services, mail and messenger services, records management, safety and other support duties.

Type of Model: This service offering is on Lump sum basis, for the contract duration, the Buyer can take the item-wise pricing of various components involved in this service, through Financial Upload document.

Types of Services: This service offering provides multiple services under a single contract for professional maintenance and upkeep of the property (commercial, residential, hospitality, healthcare, industrial, etc.). Buyer of this service will have the option to choose the type of service and service components as per their requirement, for which the following categories have been defined:

#	Services	Service Component
1	Housekeeping	· Cleaning & Sanitation
		· Front Desk Management
		· Mail Management/ Runner
		· Waste Management (other than healthcare facility)
		· Waste Management (Healthcare)
		· Laundry Services
		· Work Routine Services (Healthcare)
2	Security Services	· Work Routine Services (other than healthcare facility)
		· Regular work of Guest House/ Hostel (Hospitality) (such as porter services, lift man, etc.)
		· Physical Security
		· Parking Management
		· CCTV Control & Operations
3	Horticulture Services	· Visitor Management & Access Control
		· Gardening
		· Landscape
4	Patient Support Services	· Assisting the patient in getting into or out of the bed
		· Attend to the personal hygiene of patients
		· Preparing and carrying the patients for operations, laboratory, X-ray and other investigations
		· Carrying and transporting patients to various wards/ departments in the hospital
		· Assist in maintaining stocks of linen and non-medical supplies
		· Assist the nurses or doctors in diagnostic and treatment procedures
		· Assist in sterilization of instruments, appliances and dressings and dressing of postoperative wounds

#	Services	Service Component
		· Bedbug control · Disinfestation · General Pest Control · Rodent control · Termite Control (Spot treatment/ drilling treatment)
5	Pest Control Service	· Vector control (mosquitos/ insects) · Cockroach control · Fumigation · Pest proofing (Pest proofing is closure of holes and cracks that may potentially cause pest infestation) · Infection control (Surface sterilization)
6	O&M Mechanical	· Plumbing · Water Supply · Pumps · Fire Fighting System · Lift
7	O&M of Electrical Work	· Electrical Supply of HT/LT · DG Sets · UPS · AC Chillers · HVAC · Transformers

Manpower Required: Service Provider shall provide manpower based on the Buyer's selection of manpower profile, quantity and skill level. The Buyer of this service will have the option to choose the type of manpower as per their requirement, for which the following categories have been defined:

#	Type of Manpower Required
1	Cleaner / Sweeper
2	Office Attendant
3	Receptionist
4	Mail Attendant/ Runner
5	Guest house attendant
6	Porter
7	Laundry wash boys
8	Security Guard
9	Gardener
10	Ward Boys/Girls
11	Plumber
12	Electrician
13	Fire Supervisor
14	AC Plant Operator
15	Help Desk Support Executive
16	Others - Please Specify

Consumables: The Service Provider shall provide consumables such as cleaning agents, equipment, etc. based on the Buyer's selection of cost to be borne by the Buyer/ Service Provider/ reimbursable by the Buyer. In case wherein consumables are to be provided by the Service Provider and the cost is to be included in the Contract cost, a list of suggestive consumables will be provided by the Buyer.